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Contract for the sale and purchase of land - 2022 edition

TERM	MEANING OF TERM	NSW DAN:
vendor's agent	WITHOUT THE INTERVENTION OF AN AGENT	phone fax ref
	Email:	
co-agent	Not Applicable	phone fax ref
vendor	MOSS VALE INDUSTRIAL PROPERTIES PTY LIMITED (ACN 168 795 042) Pikkat Avenue, Mittagang NSW 2575	
vendor's solicitor	OWEN HODGE LAWYERS Level 3, 171 Clarence Street, Sydney NSW 2000 PO Box 197, Hurstville BC NSW 1481 email: rmh@owenhodge.com.au	phone (02) 9549 0770 fax (02) 8008 1618 ref Roger Harkin
date of completion	See Special Conditions	
Land (address, plan details and title reference)	6 BULWER ROAD, MOSS VALE Lot 2 in an unregistered plan which is part of Lot 4 in Deposited Plan 746930 Part Folio Identifier 4/746930	
improvements	☒ VACANT POSSESSION ☐ subject to existing tenancies ☐ HOUSE ☐ garage ☐ carport ☐ home unit ☐ carspace ☐ storage space ☒ none ☐ other:	
attached copies	☒ documents in the List of Documents as marked or numbered: ☐ other documents:	

A real estate agent is permitted by legislation to fill up the items in this box in a sale of residential property.

inclusions	☐ air conditioning	☐ clothes line	☐ fixed floor coverings	☐ range hood
	☐ blinds	☐ curtains	☐ insect screens	☐ solar panels
	☐ built-in wardrobes	☐ dishwasher	☐ light fittings	☐ stove
	☐ ceiling fans	☐ EV charger	☐ pool equipment	☐ TV antenna
	☐ other:			
exclusions				
purchaser	CAPTCHA NO 5 PTY LIMITED (ABN 34 660 069 750)			
	12 Sandstock Way, Bella Vista NSW 2153			
purchaser's solicitor	MARSDENS LAW GROUP		phone	(02) 4626 5077
	Level 1, 49 Dumaresq Street, Campbelltown 2560		fax	(02) 4626 4826
	PO Box 291, Campbelltown NSW 2560		ref	BW:CKN:446426
	email: bwong@marsdens.net.au			
price	\$	6,279,750.00	Exclusive of GST	
deposit	\$	400,000.00	(10% of the price, unless otherwise stated)	
balance	\$	5,879,750.00		
contract date	19 September 2023		(if not stated, the date this contract was made)	

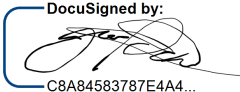
Where there is more than one purchaser ☐ JOINT TENANTS
☐ tenants in common ☐ in unequal shares

GST AMOUNT (optional) The price excludes GST.

buyer's agent

Note: Clause 20.15 provides "Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked."

SIGNING PAGE

VENDOR	PURCHASER
Signed by Vendor Vendor	Signed by Purchaser Purchaser
VENDOR (COMPANY)	PURCHASER (COMPANY)
Signed by in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below: Signature of authorised person Signature of authorised person Name of authorised person Name of authorised person Office held Office held	Signed by Captcha No 5 Pty Limited in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below: DocuSigned by:  C8A84583787E4A4... Signature of authorised person Signature of authorised person Joseph Frederick Sassen Name of authorised person Name of authorised person Sole Director/Secretary Office held Office held

ChoicesVendor agrees to accept a **deposit bond** ☒ NO ☐ yes**Nominated Electronic Lodgment Network ELN** (clause 4)**Manual transaction** (clause 30) ☒ NO ☐ yes

(if yes, vendor must provide further details, including any applicable exception, in the space below):

Parties agree that the deposit be invested (clause 2.9) ☒ NO ☐ yes**Tax information (the parties promise this is correct as far as each party is aware)****Land tax** is adjustable ☒ NO ☐ yes**GST:** Taxable supply ☐ NO ☒ yes in full ☐ yes to an extentMargin scheme will be used in making the taxable supply ☒ NO ☐ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☐ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☐ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

Purchaser must make an **GSTRW payment**: ☒ NO ☐ yes (if yes, vendor must provide further details)

If the details below are not fully completed at the contract date, the vendor must provide all these details in a separate notice at least 7 days before the date for completion.

GSTRW payment (GST residential withholding payment) – further details

Frequently the supplier will be the vendor. However, sometimes further information will be required as to which entity is liable for GST, for example, if the supplier is a partnership, a trust, part of a GST group or a participant in a GST joint venture.

Supplier's name:

Supplier's ABN:

Supplier's GST branch number (if applicable):

Supplier's business address:

Supplier's representative:

Supplier's contact phone number:

Supplier's proportion of **GSTRW payment**:**If more than one supplier, provide the above details for each supplier.**Amount purchaser must pay – price multiplied by the **GSTRW rate** (residential withholding rate): \$Amount must be paid: ☐ AT COMPLETION ☐ at another time (specify):Is any of the consideration not expressed as an amount in money? ☐ NO ☐ yes

If "yes", the GST inclusive market value of the non-monetary consideration: \$

Other details (including those required by regulation or the ATO forms):

List of Documents

General ☐ 1 property certificate for the land ☐ 2 plan of the land ☒ 3 unregistered plan of the land ☒ 4 plan of land to be subdivided ☐ 5 document that is to be lodged with a relevant plan ☒ 6 section 10.7(2) planning certificate under Environmental Planning and Assessment Act 1979 ☐ 7 additional information included in that certificate under section 10.7(5) ☒ 8 sewerage infrastructure location diagram (service location diagram) ☒ 9 sewerage lines location diagram (sewerage service diagram) ☐ 10 document that created or may have created an easement, profit à prendre, restriction on use or positive covenant disclosed in this contract ☐ 11 <i>planning agreement</i> ☐ 12 section 88G certificate (positive covenant) ☐ 13 survey report ☐ 14 building information certificate or building certificate given under <i>legislation</i> ☐ 15 occupation certificate ☐ 16 lease (with every relevant memorandum or variation) ☐ 17 other document relevant to tenancies ☐ 18 licence benefiting the land ☐ 19 old system document ☐ 20 Crown purchase statement of account ☐ 21 building management statement ☐ 22 form of requisitions ☐ 23 <i>clearance certificate</i> ☐ 24 land tax certificate Home Building Act 1989 ☐ 25 insurance certificate ☐ 26 brochure and warning ☐ 27 evidence of alternative indemnity cover Swimming Pools Act 1992 ☐ 28 certificate of compliance ☐ 29 evidence of registration ☐ 30 relevant occupation certificate ☐ 31 certificate of non-compliance ☐ 32 detailed reasons of non-compliance	Strata or community title (clause 23 of the contract) ☐ 33 property certificate for strata common property ☐ 34 plan creating strata common property ☐ 35 strata by-laws ☐ 36 strata development contract or statement ☐ 37 strata management statement ☐ 38 strata renewal proposal ☐ 39 strata renewal plan ☐ 40 leasehold strata – lease of lot and common property ☐ 41 property certificate for neighbourhood property ☐ 42 plan creating neighbourhood property ☐ 43 neighbourhood development contract ☐ 44 neighbourhood management statement ☐ 45 property certificate for precinct property ☐ 46 plan creating precinct property ☐ 47 precinct development contract ☐ 48 precinct management statement ☐ 49 property certificate for community property ☐ 50 plan creating community property ☐ 51 community development contract ☐ 52 community management statement ☐ 53 document disclosing a change of by-laws ☐ 54 document disclosing a change in a development or management contract or statement ☐ 55 document disclosing a change in boundaries ☐ 56 information certificate under Strata Schemes Management Act 2015 ☐ 57 information certificate under Community Land Management Act 2021 ☐ 58 disclosure statement – off the plan contract ☐ 59 other documents relevant to off the plan contract Other ☐ 60 Other: Not Applicable
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HOLDER OF STRATA OR COMMUNITY TITLE RECORDS – Name, address, email address and telephone number

IMPORTANT NOTICE TO VENDORS AND PURCHASERS

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

WARNING—SMOKE ALARMS

The owners of certain types of buildings and strata lots must have smoke alarms, or in certain cases heat alarms, installed in the building or lot in accordance with regulations under the *Environmental Planning and Assessment Act 1979*. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

WARNING—LOOSE-FILL ASBESTOS INSULATION

Before purchasing land that includes residential premises, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A, built before 1985, a purchaser is strongly advised to consider the possibility that the premises may contain loose-fill asbestos insulation, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A. In particular, a purchaser should—

- (a) search the Register required to be maintained under the *Home Building Act 1989*, Part 8, Division 1A, and
- (b) ask the relevant local council whether it holds records showing that the residential premises contain loose-fill asbestos insulation.

For further information about loose-fill asbestos insulation, including areas in which residential premises have been identified as containing loose-fill asbestos insulation, contact NSW Fair Trading.

Cooling off period (purchaser's rights)

- 1** This is the statement required by the *Conveyancing Act 1919*, section 66X. This statement applies to a contract for the sale of residential property.
- 2** EXCEPT in the circumstances listed in paragraph 3, the purchaser may rescind the contract before 5pm on—
 - (a) for an off the plan contract—the tenth business day after the day on which the contract was made, or
 - (b) in any other case—the fifth business day after the day on which the contract was made.
- 3** There is NO COOLING OFF PERIOD—
 - (a) if, at or before the time the contract is made, the purchaser gives to the vendor, or the vendor's solicitor or agent, a certificate that complies with the Act, section 66W, or
 - (b) if the property is sold by public auction, or
 - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in, or
 - (d) if the contract is made in consequence of the exercise of an option to purchase the property, other than an option that is void under the Act, section 66ZG.
- 4** A purchaser exercising the right to cool off by rescinding the contract forfeits 0.25% of the purchase price of the property to the vendor.
- 5** The vendor is entitled to recover the forfeited amount from an amount paid by the purchaser as a deposit under the contract. The purchaser is entitled to a refund of any balance.

DISPUTES

If you get into a dispute with the other party, the Law Society and Real Estate Institute encourage you to use informal procedures such as negotiation, independent expert appraisal, the Law Society Conveyancing Dispute Resolution Scheme or mediation (for example mediation under the Law Society Mediation Program).

AUCTIONS

Regulations made under the Property and Stock Agents Act 2002 prescribe a number of conditions applying to sales by auction.

WARNINGS

1. Various Acts of Parliament and other matters can affect the rights of the parties to this contract. Some important matters are actions, claims, decisions, licences, notices, orders, proposals or rights of way involving:

APA Group Australian Taxation Office Council County Council Department of Planning and Environment Department of Primary Industries Electricity and gas Land and Housing Corporation Local Land Services	NSW Department of Education NSW Fair Trading Owner of adjoining land Privacy Public Works Advisory Subsidence Advisory NSW Telecommunications Transport for NSW Water, sewerage or drainage authority
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 If you think that any of these matters affects the property, tell your solicitor.
2. A lease may be affected by the Agricultural Tenancies Act 1990, the Residential Tenancies Act 2010 or the Retail Leases Act 1994.
3. If any purchase money is owing to the Crown, it will become payable before obtaining consent, or if no consent is needed, when the transfer is registered.
4. If a consent to transfer is required under legislation, see clause 27 as to the obligations of the parties.
5. The vendor should continue the vendor's insurance until completion. If the vendor wants to give the purchaser possession before completion, the vendor should first ask the insurer to confirm this will not affect the insurance.
6. Most purchasers will have to pay transfer duty (and, sometimes, if the purchaser is not an Australian citizen, surcharge purchaser duty) on this contract. Some purchasers may be eligible to choose to pay first home buyer choice property tax instead of transfer duty. If a payment is not made on time, interest and penalties may be incurred.
7. If the purchaser agrees to the release of deposit, the purchaser's right to recover the deposit may stand behind the rights of others (for example the vendor's mortgagee).
8. The purchaser should arrange insurance as appropriate.
9. Some transactions involving personal property may be affected by the Personal Property Securities Act 2009.
10. A purchaser should be satisfied that finance will be available at the time of completing the purchase.
11. Where the market value of the property is at or above a legislated amount, the purchaser may have to comply with a foreign resident capital gains withholding payment obligation (even if the vendor is not a foreign resident). If so, this will affect the amount available to the vendor on completion.
12. Purchasers of some residential properties may have to withhold part of the purchase price to be credited towards the GST liability of the vendor. If so, this will also affect the amount available to the vendor. More information is available from the ATO.

The vendor sells and the purchaser buys the *property* for the price under these provisions instead of Schedule 3 Conveyancing Act 1919, subject to any *legislation* that cannot be excluded.

1 Definitions (a term in italics is a defined term)

1.1 In this contract, these terms (in any form) mean –

<i>adjustment date</i>	the earlier of the giving of possession to the purchaser or completion;
<i>adjustment figures</i>	details of the adjustments to be made to the price under clause 14;
<i>authorised Subscriber</i>	a <i>Subscriber</i> (not being a <i>party's solicitor</i>) named in a notice served by a <i>party</i> as being authorised for the purposes of clause 20.6.8;
<i>bank</i>	the Reserve Bank of Australia or an authorised deposit-taking institution which is a bank, a building society or a credit union;
<i>business day</i>	any day except a bank or public holiday throughout NSW or a Saturday or Sunday;
<i>cheque</i>	a cheque that is not postdated or stale;
<i>clearance certificate</i>	a certificate within the meaning of s14-220 of Schedule 1 to the <i>TA Act</i> , that covers one or more days falling within the period from and including the contract date to completion;
<i>completion time</i>	the time of day at which completion is to occur;
<i>conveyancing rules</i>	the rules made under s12E of the Real Property Act 1900;
<i>deposit-bond</i>	a deposit bond or guarantee with each of the following approved by the vendor – • the issuer; • the expiry date (if any); and • the amount;
<i>depositholder</i>	vendor's agent (or if no vendor's agent is named in this contract, the vendor's <i>solicitor</i> , or if no vendor's <i>solicitor</i> is named in this contract, the buyer's agent);
<i>discharging mortgagee</i>	any discharging mortgagee, chargee, covenant chargee or caveator whose provision of a <i>Digitally Signed</i> discharge of mortgage, discharge of charge or withdrawal of caveat is required in order for unencumbered title to the <i>property</i> to be transferred to the purchaser;
<i>document of title</i>	document relevant to the title or the passing of title;
<i>ECNL</i>	the Electronic Conveyancing National Law (NSW);
<i>electronic document</i>	a dealing as defined in the Real Property Act 1900 which may be created and <i>Digitally Signed</i> in an <i>Electronic Workspace</i> ;
<i>electronic transaction</i>	a <i>Conveyancing Transaction</i> to be conducted for the <i>parties</i> by their legal representatives as <i>Subscribers</i> using an <i>ELN</i> and in accordance with the <i>ECNL</i> and the <i>participation rules</i> ;
<i>electronic transfer</i>	a transfer of land under the Real Property Act 1900 for the <i>property</i> to be prepared and <i>Digitally Signed</i> in the <i>Electronic Workspace</i> established for the purposes of the <i>parties' Conveyancing Transaction</i> ;
<i>FRCGW percentage</i>	the percentage mentioned in s14-200(3)(a) of Schedule 1 to the <i>TA Act</i> (12.5% as at 1 July 2017);
<i>FRCGW remittance</i>	a remittance which the purchaser must make under s14-200 of Schedule 1 to the <i>TA Act</i> , being the lesser of the <i>FRCGW percentage</i> of the price (inclusive of GST, if any) and the amount specified in a <i>variation served by a party</i> ;
<i>GST Act</i>	A New Tax System (Goods and Services Tax) Act 1999;
<i>GST rate</i>	the rate mentioned in s4 of A New Tax System (Goods and Services Tax Imposition - General) Act 1999 (10% as at 1 July 2000);
<i>GSTRW payment</i>	a payment which the purchaser must make under s14-250 of Schedule 1 to the <i>TA Act</i> (the price multiplied by the <i>GSTRW rate</i>);
<i>GSTRW rate</i>	the rate determined under ss14-250(6), (8) or (9) of Schedule 1 to the <i>TA Act</i> (as at 1 July 2018, usually 7% of the price if the margin scheme applies, 1/11 th if not);
<i>incoming mortgagee</i>	any mortgagee who is to provide finance to the purchaser on the security of the <i>property</i> and to enable the purchaser to pay the whole or part of the price;
<i>legislation</i>	an Act or a by-law, ordinance, regulation or rule made under an Act;
<i>manual transaction</i>	a <i>Conveyancing Transaction</i> in which a dealing forming part of the <i>Lodgment Case</i> at or following completion cannot be <i>Digitally Signed</i> ;
<i>normally</i>	subject to any other provision of this contract;
<i>participation rules</i>	the participation rules as determined by the <i>ECNL</i> ;
<i>party</i>	each of the vendor and the purchaser;
<i>property</i>	the land, the improvements, all fixtures and the inclusions, but not the exclusions;
<i>planning agreement</i>	a valid voluntary agreement within the meaning of s7.4 of the Environmental Planning and Assessment Act 1979 entered into in relation to the <i>property</i> ;
<i>populate</i>	to complete data fields in the <i>Electronic Workspace</i> ;

<i>requisition</i>	an objection, question or requisition (but the term does not include a claim);
<i>rescind</i>	rescind this contract from the beginning;
<i>serve</i>	serve in writing on the other <i>party</i> ;
<i>settlement cheque</i>	an unendorsed <i>cheque</i> made payable to the person to be paid and – • issued by a <i>bank</i> and drawn on itself; or • if authorised in writing by the vendor or the vendor's <i>solicitor</i>, some other <i>cheque</i>;
<i>solicitor</i>	in relation to a <i>party</i> , the <i>party's</i> solicitor or licensed conveyancer named in this contract or in a notice served by the <i>party</i> ;
<i>TA Act</i>	Taxation Administration Act 1953;
<i>terminate</i>	terminate this contract for breach;
<i>title data</i>	the details of the title to the <i>property</i> made available to the <i>Electronic Workspace</i> by the <i>Land Registry</i> ;
<i>variation</i>	a variation made under s14-235 of Schedule 1 to the <i>TA Act</i> ;
<i>within</i>	in relation to a period, at any time before or during the period; and
<i>work order</i>	a valid direction, notice or order that requires work to be done or money to be spent on or in relation to the <i>property</i> or any adjoining footpath or road (but the term does not include a notice under s22E of the Swimming Pools Act 1992 or clause 22 of the Swimming Pools Regulation 2018).

- 1.2 Words and phrases used in this contract (italicised and in Title Case, such as *Conveyancing Transaction*, *Digitally Signed*, *Electronic Workspace*, *ELN*, *ELNO*, *Land Registry*, *Lodgment Case* and *Subscriber*) have the meanings given in the *participation rules*.

2 Deposit and other payments before completion

- 2.1 The purchaser must pay the deposit to the *depositholder* as stakeholder.
- 2.2 *Normally*, the purchaser must pay the deposit on the making of this contract, and this time is essential.
- 2.3 If this contract requires the purchaser to pay any of the deposit by a later time, that time is also essential.
- 2.4 The purchaser can pay any of the deposit by –
- 2.4.1 giving cash (up to \$2,000) to the *depositholder*;
 - 2.4.2 unconditionally giving a *cheque* to the *depositholder* or to the vendor, vendor's agent or vendor's *solicitor* for sending to the *depositholder*; or
 - 2.4.3 electronic funds transfer to the *depositholder's* nominated account and, if requested by the vendor or the *depositholder*, providing evidence of that transfer.
- 2.5 The vendor can *terminate* if –
- 2.5.1 any of the deposit is not paid on time;
 - 2.5.2 a *cheque* for any of the deposit is not honoured on presentation; or
 - 2.5.3 a payment under clause 2.4.3 is not received in the *depositholder's* nominated account by 5.00 pm on the third *business day* after the time for payment.
- This right to *terminate* is lost as soon as the deposit is paid in full.
- 2.6 If the vendor accepts a *deposit-bond* for the deposit, clauses 2.1 to 2.5 do not apply.
- 2.7 If the vendor accepts a *deposit-bond* for part of the deposit, clauses 2.1 to 2.5 apply only to the balance.
- 2.8 If any of the deposit or of the balance of the price is paid before completion to the vendor or as the vendor directs, it is a charge on the land in favour of the purchaser until *termination* by the vendor or completion, subject to any existing right.
- 2.9 If each *party* tells the *depositholder* that the deposit is to be invested, the *depositholder* is to invest the deposit (at the risk of the *party* who becomes entitled to it) with a *bank*, in an interest-bearing account in NSW, payable at call, with interest to be reinvested, and pay the interest to the *parties* equally, after deduction of all proper government taxes and financial institution charges and other charges.

3 Deposit-bond

- 3.1 This clause applies only if the vendor accepts a *deposit-bond* for the deposit (or part of it).
- 3.2 The purchaser must provide the *deposit-bond* to the vendor's *solicitor* (or if no solicitor the *depositholder*) at or before the making of this contract and this time is essential.
- 3.3 If the *deposit-bond* has an expiry date and completion does not occur by the date which is 14 days before the expiry date, the purchaser must *serve* a replacement *deposit-bond* at least 7 days before the expiry date. The time for service is essential.
- 3.4 The vendor must approve a replacement *deposit-bond* if –
- 3.4.1 it is from the same issuer and for the same amount as the earlier *deposit-bond*; and
 - 3.4.2 it has an expiry date at least three months after its date of issue.
- 3.5 A breach of clauses 3.2 or 3.3 entitles the vendor to *terminate*. The right to *terminate* is lost as soon as –
- 3.5.1 the purchaser *serves* a replacement *deposit-bond*; or
 - 3.5.2 the deposit is paid in full under clause 2.
- 3.6 Clauses 3.3 and 3.4 can operate more than once.

- 3.7 If the purchaser serves a replacement *deposit-bond*, the vendor must serve the earlier *deposit-bond*.
- 3.8 The amount of any *deposit-bond* does not form part of the price for the purposes of clause 16.5.
- 3.9 The vendor must give the purchaser any original *deposit-bond* –
- 3.9.1 on completion; or
- 3.9.2 if this contract is *rescinded*.
- 3.10 If this contract is *terminated* by the vendor –
- 3.10.1 *normally*, the vendor can immediately demand payment from the issuer of the *deposit-bond*; or
- 3.10.2 if the purchaser serves prior to *termination* a notice disputing the vendor's right to *terminate*, the vendor must forward any original *deposit-bond* (or its proceeds if called up) to the *depositholder* as stakeholder.
- 3.11 If this contract is *terminated* by the purchaser –
- 3.11.1 *normally*, the vendor must give the purchaser any original *deposit-bond*; or
- 3.11.2 if the vendor serves prior to *termination* a notice disputing the purchaser's right to *terminate*, the vendor must forward any original *deposit-bond* (or its proceeds if called up) to the *depositholder* as stakeholder.
- 4 Electronic transaction**
- 4.1 This *Conveyancing Transaction* is to be conducted as an *electronic transaction* unless –
- 4.1.1 the contract says this transaction is a *manual transaction*, giving the reason, or
- 4.1.2 a party serves a notice stating why the transaction is a *manual transaction*, in which case the parties do not have to complete earlier than 14 days after service of the notice, and clause 21.3 does not apply to this provision,
- and in both cases clause 30 applies.
- 4.2 If, because of clause 4.1.2, this *Conveyancing Transaction* is to be conducted as a *manual transaction* –
- 4.2.1 each party must –
- bear equally any disbursements or fees; and
 - otherwise bear that party's own costs;
- incurred because this *Conveyancing Transaction* was to be conducted as an *electronic transaction*; and
- 4.2.2 if a party has paid all of a disbursement or fee which, by reason of this clause, is to be borne equally by the parties, that amount must be adjusted under clause 14.
- 4.3 The parties must conduct the *electronic transaction* –
- 4.3.1 in accordance with the *participation rules* and the *ECNL*; and
- 4.3.2 using the nominated *ELN*, unless the parties otherwise agree. This clause 4.3.2 does not prevent a party using an *ELN* which can interoperate with the nominated *ELN*.
- 4.4 A party must pay the fees and charges payable by that party to the *ELNO* and the *Land Registry*.
- 4.5 *Normally*, the vendor must *within 7 days* of the contract date create and *populate* an *Electronic Workspace* with *title data* and the date for completion, and invite the purchaser to the *Electronic Workspace*.
- 4.6 If the vendor has not created an *Electronic Workspace* in accordance with clause 4.5, the purchaser may create and *populate* an *Electronic Workspace* and, if it does so, the purchaser must invite the vendor to the *Electronic Workspace*.
- 4.7 The parties must, as applicable to their role in the *Conveyancing Transaction* and the steps taken under clauses 4.5 or 4.6 –
- 4.7.1 promptly join the *Electronic Workspace* after receipt of an invitation;
- 4.7.2 create and *populate* an *electronic transfer*;
- 4.7.3 invite any *discharging mortgagee* or *incoming mortgagee* to join the *Electronic Workspace*; and
- 4.7.4 *populate* the *Electronic Workspace* with a nominated *completion time*.
- 4.8 If the transferee in the *electronic transfer* is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for that transfer.
- 4.9 The vendor can require the purchaser to include a covenant or easement in the *electronic transfer* only if this contract contains the wording of the proposed covenant or easement, and a description of the land burdened and benefited.
- 4.10 If the purchaser must make a *GSTRW payment* or an *FRCGW remittance*, the purchaser must *populate* the *Electronic Workspace* with the payment details for the *GSTRW payment* or *FRCGW remittance* payable to the Deputy Commissioner of Taxation at least 2 *business days* before the date for completion.
- 4.11 Before completion, the parties must ensure that –
- 4.11.1 all *electronic documents* which a party must *Digitally Sign* to complete the *electronic transaction* are *populated* and *Digitally Signed*;
- 4.11.2 all certifications required by the *ECNL* are properly given; and
- 4.11.3 they do everything else in the *Electronic Workspace* which that party must do to enable the *electronic transaction* to proceed to completion.
- 4.12 If the computer systems of any of the *Land Registry*, the *ELNO*, Revenue NSW or the Reserve Bank of Australia are inoperative for any reason at the *completion time* agreed by the parties, a failure to complete this contract for that reason is not a default under this contract on the part of either party.

- 4.13 If the computer systems of the *Land Registry* are inoperative for any reason at the *completion time* agreed by the *parties*, and the *parties* choose that financial settlement is to occur despite this, then on financial settlement occurring –
- 4.13.1 all *electronic documents Digitally Signed* by the vendor and any discharge of mortgage, withdrawal of caveat or other *electronic document* forming part of the *Lodgment Case* for the *electronic transaction* are taken to have been unconditionally and irrevocably delivered to the purchaser or the purchaser's mortgagee at the time of financial settlement together with the right to deal with the land; and
- 4.13.2 the vendor is taken to have no legal or equitable interest in the *property*.
- 4.14 If the *parties* do not agree about the delivery before completion of one or more documents or things that cannot be delivered through the *Electronic Workspace*, the *party* required to deliver the documents or things –
- 4.14.1 holds them on completion in escrow for the benefit of; and
- 4.14.2 must immediately after completion deliver the documents or things to, or as directed by; the *party* entitled to them.

5 Requisitions

- 5.1 If a form of *requisitions* is attached to this contract, the purchaser is taken to have made those *requisitions*.
- 5.2 If the purchaser is or becomes entitled to make any other *requisition*, the purchaser can make it only by *serving* it –
- 5.2.1 if it arises out of this contract or it is a general question about the *property* or title - *within* 21 days after the contract date;
- 5.2.2 if it arises out of anything *served* by the vendor - *within* 21 days after the later of the contract date and that *service*; and
- 5.2.3 in any other case - *within* a reasonable time.

6 Error or misdescription

- 6.1 *Normally*, the purchaser can (but only before completion) claim compensation for an error or misdescription in this contract (as to the *property*, the title or anything else and whether substantial or not).
- 6.2 This clause applies even if the purchaser did not take notice of or rely on anything in this contract containing or giving rise to the error or misdescription.
- 6.3 However, this clause does not apply to the extent the purchaser knows the true position.

7 Claims by purchaser

- Normally*, the purchaser can make a claim (including a claim under clause 6) before completion only by *serving* it with a statement of the amount claimed, and if the purchaser makes one or more claims before completion –
- 7.1 the vendor can *rescind* if in the case of claims that are not claims for delay –
- 7.1.1 the total amount claimed exceeds 5% of the price;
- 7.1.2 the vendor *serves* notice of intention to *rescind*; and
- 7.1.3 the purchaser does not *serve* notice waiving the claims *within* 14 days after that *service*; and
- 7.2 if the vendor does not *rescind*, the *parties* must complete and if this contract is completed –
- 7.2.1 the lesser of the total amount claimed and 10% of the price must be paid out of the price to and held by the *depositholder* until the claims are finalised or lapse;
- 7.2.2 the amount held is to be invested in accordance with clause 2.9;
- 7.2.3 the claims must be finalised by an arbitrator appointed by the *parties* or, if an appointment is not made *within* 1 month of completion, by an arbitrator appointed by the President of the Law Society at the request of a *party* (in the latter case the *parties* are bound by the terms of the Conveyancing Arbitration Rules approved by the Law Society as at the date of the appointment);
- 7.2.4 the purchaser is not entitled, in respect of the claims, to more than the total amount claimed and the *costs* of the purchaser;
- 7.2.5 net interest on the amount held must be paid to the *parties* in the same proportion as the amount held is paid; and
- 7.2.6 if the *parties* do not appoint an arbitrator and neither *party* requests the President to appoint an arbitrator *within* 3 months after completion, the claims lapse and the amount belongs to the vendor.

8 Vendor's rights and obligations

- 8.1 The vendor can *rescind* if –
- 8.1.1 the vendor is, on reasonable grounds, unable or unwilling to comply with a *requisition*;
- 8.1.2 the vendor *serves* a notice of intention to *rescind* that specifies the *requisition* and those grounds; and
- 8.1.3 the purchaser does not *serve* a notice waiving the *requisition* *within* 14 days after that *service*.

- 8.2 If the vendor does not comply with this contract (or a notice under or relating to it) in an essential respect, the purchaser can *terminate* by *serving* a notice. After the *termination* –
- 8.2.1 the purchaser can recover the deposit and any other money paid by the purchaser under this contract;
 - 8.2.2 the purchaser can sue the vendor to recover damages for breach of contract; and
 - 8.2.3 if the purchaser has been in possession a *party* can claim for a reasonable adjustment.

9 Purchaser's default

If the purchaser does not comply with this contract (or a notice under or relating to it) in an essential respect, the vendor can *terminate* by *serving* a notice. After the *termination* the vendor can –

- 9.1 keep or recover the deposit (to a maximum of 10% of the price);
- 9.2 hold any other money paid by the purchaser under this contract as security for anything recoverable under this clause –
 - 9.2.1 for 12 months after the *termination*; or
 - 9.2.2 if the vendor commences proceedings under this clause *within* 12 months, until those proceedings are concluded; and
- 9.3 sue the purchaser either –
 - 9.3.1 where the vendor has resold the *property* under a contract made *within* 12 months after the *termination*, to recover –
 - the deficiency on resale (with credit for any of the deposit kept or recovered and after allowance for any capital gains tax or goods and services tax payable on anything recovered under this clause); and
 - the reasonable costs and expenses arising out of the purchaser's non-compliance with this contract or the notice and of resale and any attempted resale; or
 - 9.3.2 to recover damages for breach of contract.

10 Restrictions on rights of purchaser

- 10.1 The purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
 - 10.1.1 the ownership or location of any fence as defined in the Dividing Fences Act 1991;
 - 10.1.2 a service for the *property* being a joint service or passing through another property, or any service for another property passing through the *property* ('service' includes air, communication, drainage, electricity, garbage, gas, oil, radio, sewerage, telephone, television or water service);
 - 10.1.3 a wall being or not being a party wall in any sense of that term or the *property* being affected by an easement for support or not having the benefit of an easement for support;
 - 10.1.4 any change in the *property* due to fair wear and tear before completion;
 - 10.1.5 a promise, representation or statement about this contract, the *property* or the title, not set out or referred to in this contract;
 - 10.1.6 a condition, exception, reservation or restriction in a Crown grant;
 - 10.1.7 the existence of any authority or licence to explore or prospect for gas, minerals or petroleum;
 - 10.1.8 any easement or restriction on use the substance of either of which is disclosed in this contract or any non-compliance with the easement or restriction on use; or
 - 10.1.9 anything the substance of which is disclosed in this contract (except a caveat, charge, mortgage, priority notice or writ).
- 10.2 The purchaser cannot *rescind* or *terminate* only because of a defect in title to or quality of the inclusions.
- 10.3 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* or require the vendor to change the nature of the title disclosed in this contract (for example, to remove a caution evidencing qualified title, or to lodge a plan of survey as regards limited title).

11 Compliance with work orders

- 11.1 *Normally*, the vendor must by completion comply with a *work order* made on or before the contract date and if this contract is completed the purchaser must comply with any other *work order*.
- 11.2 If the purchaser complies with a *work order*, and this contract is *rescinded* or *terminated*, the vendor must pay the expense of compliance to the purchaser.

12 Certificates and inspections

The vendor must do everything reasonable to enable the purchaser, subject to the rights of any tenant –

- 12.1 to have the *property* inspected to obtain any certificate or report reasonably required;
- 12.2 to apply (if necessary in the name of the vendor) for –
 - 12.2.1 any certificate that can be given in respect of the *property* under *legislation*; or
 - 12.2.2 a copy of any approval, certificate, consent, direction, notice or order in respect of the *property* given under *legislation*, even if given after the contract date; and
- 12.3 to make 1 inspection of the *property* in the 3 days before a time appointed for completion.

13 Goods and services tax (GST)

- 13.1 Terms used in this clause which are not defined elsewhere in this contract and have a defined meaning in the *GST Act* have the same meaning in this clause.
- 13.2 *Normally*, if a *party* must pay the price or any other amount to the other *party* under this contract, GST is not to be added to the price or amount.
- 13.3 If under this contract a *party* must make an adjustment or payment for an expense of another party or pay an expense payable by or to a third party (for example, under clauses 14 or 20.7) –
- 13.3.1 the *party* must adjust or pay on completion any GST added to or included in the expense; but
- 13.3.2 the amount of the expense must be reduced to the extent the party receiving the adjustment or payment (or the representative member of a GST group of which that party is a member) is entitled to an input tax credit for the expense; and
- 13.3.3 if the adjustment or payment under this contract is consideration for a taxable supply, an amount for GST must be added at the *GST rate*.
- 13.4 If this contract says this sale is the supply of a going concern –
- 13.4.1 the *parties* agree the supply of the *property* is a supply of a going concern;
- 13.4.2 the vendor must, between the contract date and completion, carry on the enterprise conducted on the land in a proper and business-like way;
- 13.4.3 if the purchaser is not registered by the date for completion, the *parties* must complete and the purchaser must pay on completion, in addition to the price, an amount being the price multiplied by the *GST rate* ("the retention sum"). The retention sum is to be held by the *depositholder* and dealt with as follows –
- if *within* 3 months of completion the purchaser serves a letter from the Australian Taxation Office stating the purchaser is registered with a date of effect of registration on or before completion, the *depositholder* is to pay the retention sum to the purchaser; but
 - if the purchaser does not serve that letter *within* 3 months of completion, the *depositholder* is to pay the retention sum to the vendor; and
- 13.4.4 if the vendor, despite clause 13.4.1, serves a letter from the Australian Taxation Office stating the vendor has to pay GST on the supply, the purchaser must pay to the vendor on demand the amount of GST assessed.
- 13.5 *Normally*, the vendor promises the margin scheme will not apply to the supply of the *property*.
- 13.6 If this contract says the margin scheme is to apply in making the taxable supply, the *parties* agree that the margin scheme is to apply to the sale of the *property*.
- 13.7 If this contract says the sale is not a taxable supply –
- 13.7.1 the purchaser promises that the *property* will not be used and represents that the purchaser does not intend the *property* (or any part of the *property*) to be used in a way that could make the sale a taxable supply to any extent; and
- 13.7.2 the purchaser must pay the vendor on completion in addition to the price an amount calculated by multiplying the price by the *GST rate* if this sale is a taxable supply to any extent because of –
- a breach of clause 13.7.1; or
 - something else known to the purchaser but not the vendor.
- 13.8 If this contract says this sale is a taxable supply in full and does not say the margin scheme applies to the *property*, the vendor must pay the purchaser on completion an amount of one-eleventh of the price if –
- 13.8.1 this sale is not a taxable supply in full; or
- 13.8.2 the margin scheme applies to the *property* (or any part of the *property*).
- 13.9 If this contract says this sale is a taxable supply to an extent –
- 13.9.1 clause 13.7.1 does not apply to any part of the *property* which is identified as being a taxable supply; and
- 13.9.2 the payments mentioned in clauses 13.7 and 13.8 are to be recalculated by multiplying the relevant payment by the proportion of the price which represents the value of that part of the *property* to which the clause applies (the proportion to be expressed as a number between 0 and 1). Any evidence of value must be obtained at the expense of the vendor.
- 13.10 *Normally*, on completion the vendor must give the recipient of the supply a tax invoice for any taxable supply by the vendor by or under this contract.
- 13.11 The vendor does not have to give the purchaser a tax invoice if the margin scheme applies to a taxable supply.
- 13.12 If the vendor is liable for GST on rents or profits due to issuing an invoice or receiving consideration before completion, any adjustment of those amounts must exclude an amount equal to the vendor's GST liability.
- 13.13 If the vendor serves details of a *GSTRW payment* which the purchaser must make, the purchaser does not have to complete earlier than 5 *business days* after that service and clause 21.3 does not apply to this provision.
- 13.14 If the purchaser must make a *GSTRW payment* the purchaser must, at least 2 *business days* before the date for completion, serve evidence of submission of a *GSTRW payment* notification form to the Australian Taxation Office by the purchaser or, if a direction under either clause 4.8 or clause 30.4 has been given, by the transferee named in the transfer the subject of that direction.

14 Adjustments

- 14.1 *Normally*, the vendor is entitled to the rents and profits and will be liable for all rates, water, sewerage and drainage service and usage charges, land tax, levies and all other periodic outgoings up to and including the *adjustment date* after which the purchaser will be entitled and liable.
- 14.2 The *parties* must make any necessary adjustment on completion, and –
- 14.2.1 the purchaser must provide the vendor with *adjustment figures* at least 2 *business days* before the date for completion; and
- 14.2.2 the vendor must confirm the *adjustment figures* at least 1 *business day* before the date for completion.
- 14.3 If an amount that is adjustable under this contract has been reduced under *legislation*, the *parties* must on completion adjust the reduced amount.
- 14.4 The *parties* must not adjust surcharge land tax (as defined in the Land Tax Act 1956) but must adjust any other land tax for the year current at the *adjustment date* –
- 14.4.1 only if land tax has been paid or is payable for the year (whether by the vendor or by a predecessor in title) and this contract says that land tax is adjustable;
- 14.4.2 by adjusting the amount that would have been payable if at the start of the year –
- the person who owned the land owned no other land;
 - the land was not subject to a special trust or owned by a non-concessional company; and
 - if the land (or part of it) had no separate taxable value, by calculating its separate taxable value on a proportional area basis.
- 14.5 The *parties* must not adjust any first home buyer choice property tax.
- 14.6 If any other amount that is adjustable under this contract relates partly to the land and partly to other land, the *parties* must adjust it on a proportional area basis.
- 14.7 If on completion the last bill for a water, sewerage or drainage usage charge is for a period ending before the *adjustment date*, the vendor is liable for an amount calculated by dividing the bill by the number of days in the period then multiplying by the number of unbilled days up to and including the *adjustment date*.
- 14.8 The vendor is liable for any amount recoverable for work started on or before the contract date on the *property* or any adjoining footpath or road.

15 Date for completion

The *parties* must complete by the date for completion and, if they do not, a *party* can serve a notice to complete if that *party* is otherwise entitled to do so.

16 Completion**• Vendor**

- 16.1 *Normally*, on completion the vendor must cause the legal title to the *property* (being the estate disclosed in this contract) to pass to the purchaser free of any charge, mortgage or other interest, subject to any necessary registration.
- 16.2 The legal title to the *property* does not pass before completion.
- 16.3 If the vendor gives the purchaser a document (other than the transfer) that needs to be lodged for registration, the vendor must pay the lodgment fee to the purchaser.
- 16.4 If a *party* serves a land tax certificate showing a charge on any of the land, by completion the vendor must do all things and pay all money required so that the charge is no longer effective against the land.

• Purchaser

- 16.5 On completion the purchaser must pay to the vendor –
- 16.5.1 the price less any –
- deposit paid;
 - *FRCGW remittance* payable;
 - *GSTRW payment*; and
 - amount payable by the vendor to the purchaser under this contract; and
- 16.5.2 any other amount payable by the purchaser under this contract.
- 16.6 If any of the deposit is not covered by a *deposit-bond*, at least 1 *business day* before the date for completion the purchaser must give the vendor an order signed by the purchaser authorising the *depositholder* to account to the vendor for the deposit, to be held by the vendor in escrow until completion.
- 16.7 On completion the deposit belongs to the vendor.

17 Possession

- 17.1 *Normally*, the vendor must give the purchaser vacant possession of the *property* on completion.
- 17.2 The vendor does not have to give vacant possession if –
- 17.2.1 this contract says that the sale is subject to existing tenancies; and
- 17.2.2 the contract discloses the provisions of the tenancy (for example, by attaching a copy of the lease and any relevant memorandum or variation).
- 17.3 *Normally*, the purchaser can claim compensation (before or after completion) or *rescind* if any of the land is affected by a protected tenancy (a tenancy affected by Schedule 2, Part 7 of the Residential Tenancies Act 2010).

18 Possession before completion

- 18.1 This clause applies only if the vendor gives the purchaser possession of the *property* before completion.
- 18.2 The purchaser must not before completion –
- 18.2.1 let or part with possession of any of the *property*;
 - 18.2.2 make any change or structural alteration or addition to the *property*; or
 - 18.2.3 contravene any agreement between the *parties* or any direction, document, *legislation*, notice or order affecting the *property*.
- 18.3 The purchaser must until completion –
- 18.3.1 keep the *property* in good condition and repair having regard to its condition at the giving of possession; and
 - 18.3.2 allow the vendor or the vendor's authorised representative to enter and inspect it at all reasonable times.
- 18.4 The risk as to damage to the *property* passes to the purchaser immediately after the purchaser enters into possession.
- 18.5 If the purchaser does not comply with this clause, then without affecting any other right of the vendor –
- 18.5.1 the vendor can before completion, without notice, remedy the non-compliance; and
 - 18.5.2 if the vendor pays the expense of doing this, the purchaser must pay it to the vendor with interest at the rate prescribed under s101 Civil Procedure Act 2005.
- 18.6 If this contract is *rescinded* or *terminated* the purchaser must immediately vacate the *property*.
- 18.7 If the *parties* or their *solicitors* on their behalf do not agree in writing to a fee or rent, none is payable.

19 Rescission of contract

- 19.1 If this contract expressly gives a *party* a right to *rescind*, the *party* can exercise the right –
- 19.1.1 only by *serving* a notice before completion; and
 - 19.1.2 in spite of any making of a claim or *requisition*, any attempt to satisfy a claim or *requisition*, any arbitration, litigation, mediation or negotiation or any giving or taking of possession.
- 19.2 *Normally*, if a *party* exercises a right to *rescind* expressly given by this contract or any *legislation* –
- 19.2.1 the deposit and any other money paid by the purchaser under this contract must be refunded;
 - 19.2.2 a *party* can claim for a reasonable adjustment if the purchaser has been in possession;
 - 19.2.3 a *party* can claim for damages, costs or expenses arising out of a breach of this contract; and
 - 19.2.4 a *party* will not otherwise be liable to pay the other *party* any damages, costs or expenses.

20 Miscellaneous

- 20.1 The *parties* acknowledge that anything stated in this contract to be attached was attached to this contract by the vendor before the purchaser signed it and is part of this contract.
- 20.2 Anything attached to this contract is part of this contract.
- 20.3 An area, bearing or dimension in this contract is only approximate.
- 20.4 If a *party* consists of 2 or more persons, this contract benefits and binds them separately and together.
- 20.5 A *party's solicitor* can receive any amount payable to the *party* under this contract or direct in writing that it is to be paid to another person.
- 20.6 A document under or relating to this contract is –
- 20.6.1 signed by a *party* if it is signed by the *party* or the *party's solicitor* (apart from a direction under clause 4.8 or clause 30.4);
 - 20.6.2 *served* if it is *served* by the *party* or the *party's solicitor*;
 - 20.6.3 *served* if it is *served* on the *party's solicitor*, even if the *party* has died or any of them has died;
 - 20.6.4 *served* if it is *served* in any manner provided in s170 of the Conveyancing Act 1919;
 - 20.6.5 *served* if it is sent by email or fax to the *party's solicitor*, unless in either case it is not received;
 - 20.6.6 *served* on a person if it (or a copy of it) comes into the possession of the person;
 - 20.6.7 *served* at the earliest time it is *served*, if it is *served* more than once; and
 - 20.6.8 *served* if it is provided to or by the *party's solicitor* or an *authorised Subscriber* by means of an *Electronic Workspace* created under clause 4. However, this does not apply to a notice making an obligation essential, or a notice of *rescission* or *termination*.
- 20.7 An obligation to pay an expense of another *party* of doing something is an obligation to pay –
- 20.7.1 if the *party* does the thing personally - the reasonable cost of getting someone else to do it; or
 - 20.7.2 if the *party* pays someone else to do the thing - the amount paid, to the extent it is reasonable.
- 20.8 Rights under clauses 4, 11, 13, 14, 17, 24, 30 and 31 continue after completion, whether or not other rights continue.
- 20.9 The vendor does not promise, represent or state that the purchaser has any cooling off rights.
- 20.10 The vendor does not promise, represent or state that any attached survey report is accurate or current.
- 20.11 A reference to any *legislation* (including any percentage or rate specified in *legislation*) is also a reference to any corresponding later *legislation*.
- 20.12 Each *party* must do whatever is necessary after completion to carry out the *party's* obligations under this contract.
- 20.13 Neither taking possession nor *serving* a transfer of itself implies acceptance of the *property* or the title.

- 20.14 The details and information provided in this contract (for example, on pages 1 - 4) are, to the extent of each *party's* knowledge, true, and are part of this contract.
- 20.15 Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked.
- 20.16 Each *party* consents to –
- 20.16.1 any *party* signing this contract electronically; and
- 20.16.2 the making of this contract by the exchange of counterparts delivered by email, or by such other electronic means as may be agreed in writing by the *parties*.
- 20.17 Each *party* agrees that electronic signing by a *party* identifies that *party* and indicates that *party's* intention to be bound by this contract.

21 Time limits in these provisions

- 21.1 If the time for something to be done or to happen is not stated in these provisions, it is a reasonable time.
- 21.2 If there are conflicting times for something to be done or to happen, the latest of those times applies.
- 21.3 The time for one thing to be done or to happen does not extend the time for another thing to be done or to happen.
- 21.4 If the time for something to be done or to happen is the 29th, 30th or 31st day of a month, and the day does not exist, the time is instead the last day of the month.
- 21.5 If the time for something to be done or to happen is a day that is not a *business day*, the time is extended to the next *business day*, except in the case of clauses 2 and 3.2.
- 21.6 *Normally*, the time by which something must be done is fixed but not essential.

22 Foreign Acquisitions and Takeovers Act 1975

- 22.1 The purchaser promises that the Commonwealth Treasurer cannot prohibit and has not prohibited the transfer under the Foreign Acquisitions and Takeovers Act 1975.
- 22.2 This promise is essential and a breach of it entitles the vendor to *terminate*.

23 Strata or community title

• Definitions and modifications

- 23.1 This clause applies only if the land (or part of it) is a lot in a strata, neighbourhood, precinct or community scheme (or on completion is to be a lot in a scheme of that kind).
- 23.2 In this contract –
- 23.2.1 'change', in relation to a scheme, means –
- a registered or registrable change from by-laws set out in this contract;
 - a change from a development or management contract or statement set out in this contract; or
 - a change in the boundaries of common property;
- 23.2.2 'common property' includes association property for the scheme or any higher scheme;
- 23.2.3 'contribution' includes an amount payable under a by-law;
- 23.2.4 'information certificate' includes a certificate under s184 Strata Schemes Management Act 2015 and s171 Community Land Management Act 2021;
- 23.2.5 'interest notice' includes a strata interest notice under s22 Strata Schemes Management Act 2015 and an association interest notice under s20 Community Land Management Act 2021;
- 23.2.6 'normal expenses', in relation to an owners corporation for a scheme, means normal operating expenses usually payable from the administrative fund of an owners corporation for a scheme of the same kind;
- 23.2.7 'owners corporation' means the owners corporation or the association for the scheme or any higher scheme;
- 23.2.8 'the *property*' includes any interest in common property for the scheme associated with the lot; and
- 23.2.9 'special expenses', in relation to an owners corporation, means its actual, contingent or expected expenses, except to the extent they are –
- normal expenses;
 - due to fair wear and tear;
 - disclosed in this contract; or
 - covered by moneys held in the capital works fund.
- 23.3 Clauses 11, 14.8 and 18.4 do not apply to an obligation of the owners corporation, or to property insurable by it.
- 23.4 Clauses 14.4.2 and 14.6 apply but on a unit entitlement basis instead of an area basis.
- Adjustments and liability for expenses**
- 23.5 The *parties* must adjust under clause 14.1 –
- 23.5.1 a regular periodic contribution;
- 23.5.2 a contribution which is not a regular periodic contribution but is disclosed in this contract; and
- 23.5.3 on a unit entitlement basis, any amount paid by the vendor for a normal expense of the owners corporation to the extent the owners corporation has not paid the amount to the vendor.

- 23.6 If a contribution is not a regular periodic contribution and is not disclosed in this contract –
- 23.6.1 the vendor is liable for it if it was determined on or before the contract date, even if it is payable by instalments; and
- 23.6.2 the purchaser is liable for all contributions determined after the contract date.
- 23.7 The vendor must pay or allow to the purchaser on completion the amount of any unpaid contributions for which the vendor is liable under clause 23.6.1.
- 23.8 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
- 23.8.1 an existing or future actual, contingent or expected expense of the owners corporation;
- 23.8.2 a proportional unit entitlement of the lot or a relevant lot or former lot, apart from a claim under clause 6; or
- 23.8.3 a past or future change in the scheme or a higher scheme.
- 23.9 However, the purchaser can *rescind* if –
- 23.9.1 the special expenses of the owners corporation at the later of the contract date and the creation of the owners corporation when calculated on a unit entitlement basis (and, if more than one lot or a higher scheme is involved, added together), less any contribution paid by the vendor, are more than 1% of the price;
- 23.9.2 in the case of the lot or a relevant lot or former lot in a higher scheme, a proportional unit entitlement for the lot is disclosed in this contract but the lot has a different proportional unit entitlement at the contract date or at any time before completion;
- 23.9.3 a change before the contract date or before completion in the scheme or a higher scheme materially prejudices the purchaser and is not disclosed in this contract; or
- 23.9.4 a resolution is passed by the owners corporation before the contract date or before completion to give to the owners in the scheme for their consideration a strata renewal plan that has not lapsed at the contract date and there is not attached to this contract a strata renewal proposal or the strata renewal plan.
- **Notices, certificates and inspections**
- 23.10 Before completion, the purchaser must serve a copy of an interest notice addressed to the owners corporation and signed by the purchaser.
- 23.11 After completion, the purchaser must insert the date of completion in the interest notice and send it to the owners corporation.
- 23.12 The vendor can complete and send the interest notice as agent for the purchaser.
- 23.13 The vendor must *serve* at least 7 days before the date for completion, an information certificate for the lot, the scheme or any higher scheme which relates to a period in which the date for completion falls.
- 23.14 The purchaser does not have to complete earlier than 7 days after *service* of the information certificate and clause 21.3 does not apply to this provision. On completion the purchaser must pay the vendor the prescribed fee for the information certificate.
- 23.15 The vendor authorises the purchaser to apply for the purchaser's own information certificate.
- 23.16 The vendor authorises the purchaser to apply for and make an inspection of any record or other document in the custody or control of the owners corporation or relating to the scheme or any higher scheme.
- **Meetings of the owners corporation**
- 23.17 If a general meeting of the owners corporation is convened before completion –
- 23.17.1 if the vendor receives notice of it, the vendor must immediately notify the purchaser of it; and
- 23.17.2 after the expiry of any cooling off period, the purchaser can require the vendor to appoint the purchaser (or the purchaser's nominee) to exercise any voting rights of the vendor in respect of the lot at the meeting.

24 Tenancies

- 24.1 If a tenant has not made a payment for a period preceding or current at the *adjustment date* –
- 24.1.1 for the purposes of clause 14.2, the amount is to be treated as if it were paid; and
- 24.1.2 the purchaser assigns the debt to the vendor on completion and will if required give a further assignment at the vendor's expense.
- 24.2 If a tenant has paid in advance of the *adjustment date* any periodic payment in addition to rent, it must be adjusted as if it were rent for the period to which it relates.
- 24.3 If the *property* is to be subject to a tenancy on completion or is subject to a tenancy on completion –
- 24.3.1 the vendor authorises the purchaser to have any accounting records relating to the tenancy inspected and audited and to have any other document relating to the tenancy inspected;
- 24.3.2 the vendor must *serve* any information about the tenancy reasonably requested by the purchaser before or after completion; and
- 24.3.3 *normally*, the purchaser can claim compensation (before or after completion) if –
- a disclosure statement required by the Retail Leases Act 1994 was not given when required;
 - such a statement contained information that was materially false or misleading;
 - a provision of the lease is not enforceable because of a non-disclosure in such a statement; or
 - the lease was entered into in contravention of the Retail Leases Act 1994.

- 24.4 If the *property* is subject to a tenancy on completion –
- 24.4.1 the vendor must allow or transfer –
- any remaining bond money or any other security against the tenant's default (to the extent the security is transferable);
 - any money in a fund established under the lease for a purpose and compensation for any money in the fund or interest earned by the fund that has been applied for any other purpose; and
 - any money paid by the tenant for a purpose that has not been applied for that purpose and compensation for any of the money that has been applied for any other purpose;
- 24.4.2 if the security is not transferable, each *party* must do everything reasonable to cause a replacement security to issue for the benefit of the purchaser and the vendor must hold the original security on trust for the benefit of the purchaser until the replacement security issues;
- 24.4.3 the vendor must give to the purchaser –
- at least 2 *business days* before the date for completion, a proper notice of the transfer (an attornment notice) addressed to the tenant, to be held by the purchaser in escrow until completion;
 - any certificate given under the Retail Leases Act 1994 in relation to the tenancy;
 - a copy of any disclosure statement given under the Retail Leases Act 1994;
 - a copy of any document served on the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion; and
 - any document served by the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion;
- 24.4.4 the vendor must comply with any obligation to the tenant under the lease, to the extent it is to be complied with by completion; and
- 24.4.5 the purchaser must comply with any obligation to the tenant under the lease, to the extent that the obligation is disclosed in this contract and is to be complied with after completion.
- 25 Qualified title, limited title and old system title**
- 25.1 This clause applies only if the land (or part of it) –
- 25.1.1 is under qualified, limited or old system title; or
- 25.1.2 on completion is to be under one of those titles.
- 25.2 The vendor must *serve* a proper abstract of title *within* 7 days after the contract date.
- 25.3 If an abstract of title or part of an abstract of title is attached to this contract or has been lent by the vendor to the purchaser before the contract date, the abstract or part is *served* on the contract date.
- 25.4 An abstract of title can be or include a list of documents, events and facts arranged (apart from a will or codicil) in date order, if the list in respect of each document –
- 25.4.1 shows its date, general nature, names of parties and any registration number; and
- 25.4.2 has attached a legible photocopy of it or of an official or registration copy of it.
- 25.5 An abstract of title –
- 25.5.1 must start with a good root of title (if the good root of title must be at least 30 years old, this means 30 years old at the contract date);
- 25.5.2 in the case of a leasehold interest, must include an abstract of the lease and any higher lease;
- 25.5.3 *normally*, need not include a Crown grant; and
- 25.5.4 need not include anything evidenced by the Register kept under the Real Property Act 1900.
- 25.6 In the case of land under old system title –
- 25.6.1 in this contract 'transfer' means conveyance;
- 25.6.2 the purchaser does not have to *serve* the transfer until after the vendor has *served* a proper abstract of title; and
- 25.6.3 each vendor must give proper covenants for title as regards that vendor's interest.
- 25.7 In the case of land under limited title but not under qualified title –
- 25.7.1 *normally*, the abstract of title need not include any document which does not show the location, area or dimensions of the land (for example, by including a metes and bounds description or a plan of the land);
- 25.7.2 clause 25.7.1 does not apply to a document which is the good root of title; and
- 25.7.3 the vendor does not have to provide an abstract if this contract contains a delimitation plan (whether in registrable form or not).
- 25.8 On completion the vendor must give the purchaser any *document of title* that relates only to the *property*.
- 25.9 If on completion the vendor has possession or control of a *document of title* that relates also to other property, the vendor must produce it as and where necessary.
- 25.10 The vendor must give a proper covenant to produce where relevant.
- 25.11 The vendor does not have to produce or covenant to produce a document that is not in the possession of the vendor or a mortgagee.
- 25.12 If the vendor is unable to produce an original document in the chain of title, the purchaser will accept a photocopy from the *Land Registry* of the registration copy of that document.

26 Crown purchase money

- 26.1 This clause applies only if purchase money is payable to the Crown, whether or not due for payment.
 26.2 The vendor is liable for the money, except to the extent this contract says the purchaser is liable for it.
 26.3 To the extent the vendor is liable for it, the vendor is liable for any interest until completion.
 26.4 To the extent the purchaser is liable for it, the *parties* must adjust any interest under clause 14.

27 Consent to transfer

- 27.1 This clause applies only if the land (or part of it) cannot be transferred without consent under *legislation* or a *planning agreement*.
 27.2 The purchaser must properly complete and then serve the purchaser's part of an application for consent to transfer of the land (or part of it) *within 7 days* after the contract date.
 27.3 The vendor must apply for consent *within 7 days* after *service* of the purchaser's part.
 27.4 If consent is refused, either *party* can *rescind*.
 27.5 If consent is given subject to one or more conditions that will substantially disadvantage a *party*, then that *party* can *rescind within 7 days* after receipt by or *service* upon the *party* of written notice of the conditions.
 27.6 If consent is not given or refused –
 27.6.1 *within 42 days* after the purchaser serves the purchaser's part of the application, the purchaser can *rescind*; or
 27.6.2 *within 30 days* after the application is made, either *party* can *rescind*.
 27.7 Each period in clause 27.6 becomes 90 days if the land (or part of it) is –
 27.7.1 under a *planning agreement*; or
 27.7.2 in the Western Division.
 27.8 If the land (or part of it) is described as a lot in an unregistered plan, each time in clause 27.6 becomes the later of the time and 35 days after creation of a separate folio for the lot.
 27.9 The date for completion becomes the later of the date for completion and 14 days after *service* of the notice granting consent to transfer.

28 Unregistered plan

- 28.1 This clause applies only if some of the land is described as a lot in an unregistered plan.
 28.2 The vendor must do everything reasonable to have the plan registered *within 6 months* after the contract date, with or without any minor alteration to the plan or any document to be lodged with the plan validly required or made under *legislation*.
 28.3 If the plan is not registered *within* that time and in that manner –
 28.3.1 the purchaser can *rescind*; and
 28.3.2 the vendor can *rescind*, but only if the vendor has complied with clause 28.2 and with any *legislation* governing the rescission.
 28.4 Either *party* can serve notice of the registration of the plan and every relevant lot and plan number.
 28.5 The date for completion becomes the later of the date for completion and 21 days after *service* of the notice.
 28.6 Clauses 28.2 and 28.3 apply to another plan that is to be registered before the plan is registered.

29 Conditional contract

- 29.1 This clause applies only if a provision says this contract or completion is conditional on an event.
 29.2 If the time for the event to happen is not stated, the time is 42 days after the contract date.
 29.3 If this contract says the provision is for the benefit of a *party*, then it benefits only that *party*.
 29.4 If anything is necessary to make the event happen, each *party* must do whatever is reasonably necessary to cause the event to happen.
 29.5 A *party* can *rescind* under this clause only if the *party* has substantially complied with clause 29.4.
 29.6 If the event involves an approval and the approval is given subject to a condition that will substantially disadvantage a *party* who has the benefit of the provision, the *party* can *rescind within 7 days* after either *party* serves notice of the condition.
 29.7 If the *parties* can lawfully complete without the event happening –
 29.7.1 if the event does not happen *within* the time for it to happen, a *party* who has the benefit of the provision can *rescind within 7 days* after the end of that time;
 29.7.2 if the event involves an approval and an application for the approval is refused, a *party* who has the benefit of the provision can *rescind within 7 days* after either *party* serves notice of the refusal; and
 29.7.3 the date for completion becomes the later of the date for completion and 21 days after the earliest of –
 • either *party* serving notice of the event happening;
 • every *party* who has the benefit of the provision serving notice waiving the provision; or
 • the end of the time for the event to happen.

- 29.8 If the *parties* cannot lawfully complete without the event happening –
- 29.8.1 if the event does not happen *within* the time for it to happen, either *party* can *rescind*;
 - 29.8.2 if the event involves an approval and an application for the approval is refused, either *party* can *rescind*;
 - 29.8.3 the date for completion becomes the later of the date for completion and 21 days after either *party* serves notice of the event happening.
- 29.9 A *party* cannot *rescind* under clauses 29.7 or 29.8 after the event happens.

30 Manual transaction

- 30.1 This clause applies if this transaction is to be conducted as a *manual transaction*.
- **Transfer**
 - 30.2 *Normally*, the purchaser must serve the transfer at least 7 days before the date for completion.
 - 30.3 If any information needed for the transfer is not disclosed in this contract, the vendor must serve it.
 - 30.4 If the purchaser serves a transfer and the transferee is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for that transfer.
 - 30.5 The vendor can require the purchaser to include a covenant or easement in the transfer only if this contract contains the wording of the proposed covenant or easement, and a description of the land burdened and benefited.
 - **Place for completion**
 - 30.6 *Normally*, the *parties* must complete at the completion address, which is –
 - 30.6.1 if a special completion address is stated in this contract - that address; or
 - 30.6.2 if none is stated, but a first mortgagee is disclosed in this contract and the mortgagee would usually discharge the mortgage at a particular place - that place; or
 - 30.6.3 in any other case - the vendor's *solicitor's* address stated in this contract.
 - 30.7 The vendor by reasonable notice can require completion at another place, if it is in NSW, but the vendor must pay the purchaser's additional expenses, including any agency or mortgagee fee.
 - 30.8 If the purchaser requests completion at a place that is not the completion address, and the vendor agrees, the purchaser must pay the vendor's additional expenses, including any agency or mortgagee fee.
 - **Payments on completion**
 - 30.9 On completion the purchaser must pay to the vendor the amounts referred to in clauses 16.5.1 and 16.5.2, by cash (up to \$2,000) or *settlement cheque*.
 - 30.10 *Normally*, the vendor can direct the purchaser to produce a *settlement cheque* on completion to pay an amount adjustable under this contract and if so –
 - 30.10.1 the amount is to be treated as if it were paid; and
 - 30.10.2 the *cheque* must be forwarded to the payee immediately after completion (by the purchaser if the *cheque* relates only to the *property* or by the vendor in any other case).
 - 30.11 If the vendor requires more than 5 *settlement cheques*, the vendor must pay \$10 for each extra *cheque*.
 - 30.12 If the purchaser must make a *GSTRW payment* the purchaser must –
 - 30.12.1 produce on completion a *settlement cheque* for the *GSTRW payment* payable to the Deputy Commissioner of Taxation;
 - 30.12.2 forward the *settlement cheque* to the payee immediately after completion; and
 - 30.12.3 serve evidence of receipt of payment of the *GSTRW payment* and a copy of the settlement date confirmation form submitted to the Australian Taxation Office.
 - 30.13 If the purchaser must pay an *FRCGW remittance*, the purchaser must –
 - 30.13.1 produce on completion a *settlement cheque* for the *FRCGW remittance* payable to the Deputy Commissioner of Taxation;
 - 30.13.2 forward the *settlement cheque* to the payee immediately after completion; and
 - 30.13.3 serve evidence of receipt of payment of the *FRCGW remittance*.

31 Foreign Resident Capital Gains Withholding

- 31.1 This clause applies only if –
- 31.1.1 the sale is not an excluded transaction within the meaning of s14-215 of Schedule 1 to the *TA Act*; and
 - 31.1.2 a *clearance certificate* in respect of every vendor is not attached to this contract.
- 31.2 If the vendor serves any *clearance certificate* or *variation*, the purchaser does not have to complete earlier than 5 *business days* after that *service* and clause 21.3 does not apply to this provision.
- 31.3 The purchaser must at least 2 *business days* before the date for completion, serve evidence of submission of a purchaser payment notification to the Australian Taxation Office by the purchaser or, if a direction under either clause 4.8 or clause 30.4 has been given, by the transferee named in the transfer the subject of that direction.
- 31.4 The vendor cannot refuse to complete if the purchaser complies with clause 31.3 and, as applicable, clauses 4.10 or 30.13.
- 31.5 If the vendor serves in respect of every vendor either a *clearance certificate* or a *variation* to 0.00 percent, clauses 31.3 and 31.4 do not apply.

32 Residential off the plan contract

- 32.1 This clause applies if this contract is an off the plan contract within the meaning of Division 10 of Part 4 of the Conveyancing Act 1919 (the Division).
- 32.2 No provision of this contract has the effect of excluding, modifying or restricting the operation of the Division.
- 32.3 If the purchaser makes a claim for compensation under the terms prescribed by sections 4 to 6 of Schedule 3 to the Conveyancing (Sale of Land) Regulation 2022 –
- 32.3.1 the purchaser cannot make a claim under this contract about the same subject matter, including a claim under clauses 6 or 7; and
- 32.3.2 the claim for compensation is not a claim under this contract.

6 BULWER RD MOSS VALE NSW 2577

Special Conditions – 6 Bulwer Road, Moss Vale

Special Conditions

1 Definitions & Interpretation

1.1 Interpretation

In the event of any inconsistency between the terms of these Special Conditions and the Printed Clauses these Special Conditions will apply to the extent of any inconsistency, including with respect to any defined terms.

1.2 Amendments to Printed Clauses

The Printed Clauses are amended as follows:

- (1) Printed Clause 4.3 is amended by deleting the words “using the nominated ELN, unless the parties otherwise agree” with the words “using Property Exchange Australia Limited (PEXA) as the nominated ELN.”
- (2) Printed Clause 7.1.1 is amended by deleting “5%” and replacing with “1%”.
- (3) In Printed Condition 7.1.3 replace the words “14 days” with the words “7 days”.
- (4) Printed Clause 8.1.1 is amended by deleting the words “on reasonable grounds”.
- (5) Printed Clause 8.1.2 is amended by deleting the words “and those grounds”.
- (6) Printed Clauses 10.1.8 and 10.1.9 is amended by replacing the word “substance” with the word “existence”.
- (7) Printed Clause 20.6.8 is deleted.

1.3 Definitions

The following definitions apply to terms used in these Special Conditions:

Applications	means, collectively the Facilitating Application and Development Application.
Assign	as the context requires refers to any assignment, sale, transfer, disposition, novation, declaration of trust over or other disposition of a legal and/or beneficial interest.
	Assignment and Assigning have corresponding meanings.
Authority	means (as appropriate) any: (1) federal, state or local government; or (2) department of any federal, state or local government; or (3) any court or administrative tribunal; or (4) statutory corporation or regulatory body.
Claim	means:

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- (1) against any person any allegation, action, demand, cause of action, suit, proceeding, judgment, debt, damage, loss, cost, expense or liability howsoever arising and whether present or future, fixed or unascertained, actual or contingent whether at law, in equity, under statute or otherwise; or
- (2) a party doing any of the following in relation to this Contract or any matter arising from it:
 - (a) seeking to rescind this Contract;
 - (b) seeking to delay Completion; or
 - (c) taking, making or raising any objection or requisition or claim for loss, damage or compensation or other relief.

Completion means completion of this Contract.

Completion Date means the date specified in Special Condition 2.

Confidential Information means:

- (1) this Contract;
- (2) **financial information:** information regarding costs, profits, markets, sales and other financial information;
- (3) **business information:** information regarding business relationships and strategies, development plans, marketing, product concepts, trade secrets and other business information the business of the disclosing party and the disclosing party's clients or third party suppliers;
- (4) **personal information:** any personal information relating to the officers (as defined in s9 of the *Corporations Act 2001* (Cth)), partners, employees, agents, contractors or clients of the disclosing party;
- (5) **information obtained through performance:** all information which becomes known to a party as a consequence of it performing the obligations under this document including (without limitation) all records, documents, accounts, plans, specifications, price lists, customer lists, correspondence, photos and papers of every description relating to the disclosing party;
- (6) **technical information:** information regarding designs, development processes and tools, hardware specifications, know-how, production, research, software specifications, data bases and software developed or used by a party whether as owner or under licence from any person and other technical information; and
- (7) **disclosed information:** any other information disclosed by a disclosing party that:

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(d) is identified as being confidential; or

(e) would be apparent to a reasonable person that such information was disclosed in confidence by the disclosing party.

Contract means this Contract.

Deposit means the deposit payable under this Contract as set out in the Particulars.

Deposit Holder means the Vendor's Solicitor as set out in the Particulars.

Development Application means an application to the relevant Authority for the development and subdivision of the Property and the Retained Lot as industrial lots.

Development Approval means the development consent granted by the relevant Authority with respect to the Development Application.

Draft Plan means the draft plan of facilitating subdivision to create the Property and the Retained Lot, a copy of which is attached to this Contract as **Annexure 1**.

Encumbrance means an interest or power:

- (1) reserved in or over an interest in any asset; or
- (2) created or otherwise arising in or over any interest in any asset under any mortgage, charge (whether fixed or floating), pledge, lien, hypothecation, title retention, conditional sale agreement, hire or hire purchase agreement, option, restriction as to transfer, use or possession, easement, subordination to any right of any other person and any other encumbrance or security interest, trust or bill of sale; or
- (3) by way of security for the payment of a debt or other monetary obligation or the performance of any obligation.

Encumber means to grant an Encumbrance.

Facilitating Application means an application to the relevant Authority to subdivide the Land to create the Property and the Retained Lot (as separate lots) generally in accordance with the Draft Plan.

Facilitating Approval means the development consent granted by the relevant Authority with respect to the Facilitating Application.

Finance means any finance for the development of the Land by the Purchaser obtained pursuant to Special Condition 10.

Finance Documents means any and all loan or associate documents required by the financier of the Purchaser in respect of the Finance, including but not limited to the Mortgage.

Land means the land to be subdivided to create the Property as a separate lot, being 6 Bulwer Road, Moss Vale (Lot 4 in Deposited Plan 746930).

Mortgage means the first registered real property mortgage registered over the Land to secure the Finance.

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Particulars	means the particulars set out on page 1 of this Contract.
Plan	means the Draft Plan registered with the Land Registry Services pursuant to which the Property is created.
Printed Clauses	means the standard printed clauses adopted by the Law Society of New South Wales and the Real Estate Institute of New South Wales (from time to time) and that form part of this Contract.
Property	means the land and improvements (if any) subject to this Contract.
Purchase Price	means the purchase price for the Property set out in the particulars.
Purchaser	means the Purchaser under this Contract as set out in the particulars.
Retained Lot	means the super lot to be retained by the Vendor after Completion, estimated at 4,915.00 square metres, and marked Lot 1 on the Draft Plan.
Site Works Certificate	means a site works certificate issued by the relevant Authority to the Purchaser in respect of the development of the Land.
Special Conditions	means these special conditions.
Sunset Date	means ten (10) months from submission of the Development Application.
Vendor	means the Vendor under this Contract as set out in the particulars.

2 Deposit

2.1 Instalments of Deposit

- (1) The parties acknowledge and agree that the Deposit will be paid as follows:
 - (a) \$1.00 on the date of this Contract (receipt of which is acknowledged); and
 - (b) the balance of the Deposit within seven (7) days of the Vendor notifying the Purchaser that the Vendor is in a position to discharge the existing mortgage on the title of the Land and any other Encumbrances (including but not limited to registered mortgage AI781666).
- (2) The Vendor must do all things necessary to discharge the existing mortgage on the title of the Land and any other Encumbrances (including but not limited to registered mortgage AI781666) as soon as possible after the date of this Contract.
- (3) In the event that the Vendor is not in a position to discharge the existing mortgage on the title of the Land and any other Encumbrances (including but not limited to registered mortgage AI781666) within twenty eight (28) days from the date of this Contract, the Purchaser may rescind this Contract by notice in writing to the Vendor.

2.2 Release

Subject to Special Condition 2.3, the Purchaser agrees to release the Deposit (or so much of the Deposit as is paid from time to time) to the Vendor.

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2.3 Application

- (1) The Vendor acknowledges that the release of the Deposit in accordance with Special Condition 2.2, must be for the sole purpose of applying those funds to the discharge of the existing mortgage on the title of the Land and any other Encumbrances (including but not limited to registered mortgage A1781666).
- (2) Any part of the Deposit not released to discharge the existing mortgage shall remain released to and shall be retained by the Vendor.

3 Completion Date

3.1 Completion Date

Subject to Special Condition 3.2, the Completion Date will be the later of:

- (1) twenty one (21) days from the date the Purchaser or the Purchaser's solicitor notifies the Vendor or the Vendor's solicitor that the Draft Plan has been registered in accordance with Special Condition 4.1(1); and
- (2) the earlier of:
 - (a) eight (8) weeks from the date the Purchaser obtains the Development Approval on terms satisfactory to the Purchaser (acting reasonably); and
 - (b) seven (7) days from the date that the Purchaser obtains the Site Works Certificate in respect of the Property.

3.2 Substitute Completion Date

In the event that Special Condition 4.7(1) applies, the Completion Date will be forty two (42) days from the date that the Vendor serves notice on the Purchaser pursuant to Special Condition 4.7(1).

4 Conditions Precedent

4.1 Conditional Contract

Subject to Special Condition 4.7, Completion of this Contract is subject to and conditional upon:

- (1) the registration of the Draft Plan by the NSW Land Registry Services by the Sunset Date (or as extended pursuant to Special Condition 4.5); and
- (2) the Purchaser obtaining the Development Approval by the Sunset Date (or as extended pursuant to Special Condition 4.5).

4.2 Acknowledgement

For clarity, the Vendor acknowledges that, subject to Special Condition 4.7(1), Completion of this Contract is conditional upon the Development Approval as distinct from the Facilitating Approval which will relate only to the registration of the Draft Plan to create the Property and the Retained Lot.

4.3 Obligations of the Purchaser

- (1) The Purchaser must at its own cost and expense, use its best endeavours to:
 - (a) submit the Facilitating Application as soon as reasonably practicable after the date of

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this Contract;

- (b) submit the Development Application within four (4) months of the date of this Contract;
 - (c) obtain the Facilitating Approval as soon as possible after the submission of the Facilitating Application;
 - (d) arrange for the registration of the Draft Plan by the Sunset Date; and
 - (e) obtain the Development Approval by the Sunset Date.
- (2) The Purchaser will promptly notify the Vendor in writing:
- (a) once the Facilitating Approval has been obtained;
 - (b) of the registration of the Draft Plan; and
 - (c) once the Development Approval has been obtained.
- (3) The Purchaser agrees to meet with representatives of the Vendor on a monthly basis, and must report to the Vendor on a monthly basis, in relation to the progress of the Facilitating Application and registration of the Draft Plan and the Development Application.

4.4 Obligations of the Vendor

The Vendor must do all things necessary to assist in the registration of the Draft Plan (including but not limited to signing any and all documents as required).

4.5 Extension of Sunset Date

The Purchaser may, by notice in writing to the Vendor, extend the Sunset Date on more than one (1) occasion if any matter or circumstance beyond the Purchaser's reasonable control causes a delay in registering the Draft Plan or obtaining the Development Approval, including but not limited to:

- (1) the requirements of any Authority;
- (2) delays in an Authority's assessment timeframe;
- (3) delay in obtaining the Vendor's approval or feedback;
- (4) neighbour disputes; or
- (5) inclement weather, war, riot, natural disaster, pandemic, labour dispute or law taking affect after the date of this Contract,

provided that the Sunset Date may not be extended beyond the date which is thirty six (36) calendar months from the date of this Contract (**End Date**). If the Purchaser seeks to extend the Sunset Date beyond the End Date, the Sunset Date will be the End Date for the purposes of clause 4.7 of this Contract.

4.6 Variations to Retained Lot

- (1) The parties acknowledge that for the purposes of this Special Condition 4.6 that "a minor variation" is a change which does not substantially and detrimentally affect the Retained Lot and which does not reduce the area of the Retained Lot by more than one per cent (1%) of the agreed area of 4,915 square metres.
- (2) No Claim may to be made by the Purchaser in respect of any minor variations or discrepancies

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in the position of the Retained Lot.

- (3) If the area of the Retained Lot following registration of the Draft Plan is more than 101% or less than 99% of the agreed area of 4,915 square metres, the parties agree that an adjustment to the Purchase Price will be made at the rate of \$350.00 per square metre (exclusive of GST) to reflect the changed area.

4.7 Failure to obtain the Development Approval or register the Draft Plan

- (1) If the Development Approval is not obtained by the Sunset Date (or as extended pursuant to Special Condition 4.5) or the Draft Plan is not registered by the Sunset Date (or as extended pursuant to Special Condition 4.5), then the Vendor may, by notice in writing to the Purchaser, compel the Purchaser to purchase the entirety of the Land, and on service of that written notice on the Purchaser, the Contract is thereby varied such that:
 - (a) the Purchase Price is varied to \$8,000,000.00;
 - (b) the Deposit remains as \$400,000.00;
 - (c) the Property the subject of this Contract is varied to be the Land; and
 - (d) Completion of this Contract will take place forty two (42) days from the date of the notice by the Vendor to the Purchaser and in that regard Completion is no longer subject to the registration of the Draft Plan and/or the Approvals.
- (2) The parties agree to do all things necessary to give effect to the above, including but not limited to the rescission of this Contract and simultaneously exchanging a new Contract in respect of the Land on the above terms if required and necessary for the completion of the sale of the Land to the Purchaser.

5 Adjustments

5.1 Adjustment of Outgoings

If there is any error in the adjustment of outgoings required to be made on Completion then:

- (1) either party may, within thirty (30) business days of Completion, serve on the other party a notice setting out the correct calculation of the adjustment and the amount required to rectify the error; and
- (2) the other party must pay any amount required to be paid to rectify the error within thirty (30) business days of being requested to do so by the other party.

5.2 Purchaser responsible for Outgoings

Notwithstanding any other provisions to the contrary in this Contract:

- (1) subject to paragraph (2), the Purchaser will, within seven (7) days of a written request from the Vendor, pay all outgoings including but not limited to Council rates, water rates and land tax for the Property during the period up to Completion, as calculated by the Vendor on a pro rata basis;
- (2) the parties acknowledge and agree that the Purchaser will only be responsible for land tax in respect of the Property on and from 1 January 2024;
- (3) if the Purchaser buys the whole of the Land pursuant to Special Condition 4.7, an adjustment of outgoings for the Land from the date of the Contract (with the exception of land tax which will be calculated from 1 January 2024) and taking into account the amounts paid by the Purchaser will

Special Conditions – 6 Bulwer Road, Moss Vale

be done on Completion; and

- (4) subject to paragraph (3), and provided the Purchaser has complied with this Special Condition, there will be no adjustment for Council rates, water rates or land tax on Completion.

6 Interest and Notice to Complete

6.1 Interest

In the event that the Purchaser does not complete the Contract on the Completion Date, it is an essential term of this Contract that the Purchaser must pay to the Vendor interest calculated at the rate of eight per cent (8%) per annum in addition to the Purchase Price:

- (1) on the unpaid balance of the Purchase Price from the date which is the later of the Completion Date and the date on which the Vendor is ready willing and able to complete this Contract; and
- (2) calculated daily and compounded monthly.

6.2 Exception

The Purchaser is not required to pay interest under Special Condition 6.1 for the period after the Completion Date that the Purchaser is ready, willing and able to Complete but the Vendor is not.

6.3 Notice to Complete

If Completion does not take place by the Completion Date then:

- (1) the Vendor or Purchaser may, upon expiration of the time for completion, issue a notice to complete making the time for completion, in accordance with such notice, of the essence of this Contract; and
- (2) a period of fourteen (14) days following the date of service upon the Vendor, Purchaser or its solicitors (as applicable) of any such notice to complete is to be deemed to be a reasonable time for completion pursuant to that notice.

7 Agent

7.1 Warranty

The Purchaser warrants that it was not introduced to the Vendor or to the Property by any agent or employee of an agent other than the agent, if any, set out in the particulars.

7.2 Indemnity

- (1) If:
 - (a) the warranty set out in Special Condition 7.1 is breached; and
 - (b) as a result of that breach the Vendor is liable for the payment of any agent's commission arising from this Contract other than to the agent set out in the particulars, then

the Purchaser indemnifies the Vendor in respect of the payment of any such commission and also for the payment of any costs or expenses involved in the defending of any claim for such commission.

- (2) If the Purchaser must pay the Vendor any amount under Special Condition 7.2(1) then the

Special Conditions – 6 Bulwer Road, Moss Vale

amount paid will be deemed to be in addition to the Purchase Price.

8 No Representations

8.1 General

Subject to the provisions of Section 52A of the *Conveyancing Act 1919* (NSW) the Purchaser acknowledges that:

- (1) it has not entered into this Contract as a result of any representation, whether oral or in writing, by the Vendor or anyone on his behalf, other than as is set forth in this Contract; and
- (2) it has made all such enquires and investigations as he deems appropriate prior to entering into this Contract and is satisfied with the results of those enquiries.

8.2 Specific

The Purchaser further acknowledges that the Vendor, nor any person on its behalf has made any representation, promise or warranty as to:

- (1) any past or future income derived from the Property; or
- (2) the suitability of the Property for any particular purpose.

9 Encumbrances

The parties acknowledge and agree that the Vendor must not act contrary to the Purchaser's rights and interests under this Contract, including, except as expressly permitted under this Contract or with the prior written agreement of the Purchaser:

- (1) ensuring that the Land is free of Encumbrances as at the date of this Contract;
- (2) not Assigning, leasing or otherwise dealing with the Land or any part of it;
- (3) not creating an Encumbrance over the Land or this Contract;
- (4) not Assigning or otherwise dealing with the Vendor's rights in this Contract; nor
- (5) allowing any Encumbrance over the Vendor's rights in this Contract, to arise or be varied.

10 Project Funding

10.1 Finance

- (1) The Purchaser will procure the provision of finance from a lender in an amount sufficient to allow the Purchaser to successfully conduct and complete the development of the Land (including in respect of the civil works and built form construction works).
- (2) The Finance must be for an amount and terms which are:
 - (a) reasonably able to be met by the Purchaser (as borrower); and
 - (b) obtained on commercial terms competitive with the prevailing interests rates, fees, charges and other terms applicable to finance obtained for the purpose of land development including capitalised interest.

Special Conditions – 6 Bulwer Road, Moss Vale

10.2 Securing the Finance

- (1) The parties acknowledge and agree that:
 - (a) the Finance is to be secured on the title to the Land;
 - (b) the Purchaser will be the borrower; and
 - (c) the Vendor will provide the Land as security and a guarantee limited in recourse to the value of the Land only.
- (2) In consideration of the parties entering into this Contract, the Vendor agrees to grant the relevant lender a first registered Mortgage over the Land on or before the date of this Contract.

10.3 Formation of Finance Documents

- (1) Formation of this Contract is subject to and conditional upon the parties entering into the Finance Documents.
- (2) The Vendor will do all such acts and things as are necessary to assist the lender in perfecting the lender's rights under the Finance Documents and Mortgage, including but not limited to consenting to the registration of the Mortgage simultaneously with discharge of the registered mortgage A1781666).
- (3) The Purchaser will pay all costs, charges and fees incurred by the relevant lender in registering the Mortgage with any Authority.
- (4) The parties must do all such acts and things to comply with the terms of the Finance Documents.

10.4 Completion

The parties acknowledge and agree that:

- (1) on Completion and notwithstanding any other term to the contrary, the Vendor has no obligation to discharge the Mortgage as a prerequisite of settlement;
- (2) where applicable, the Finance Documents (including the Mortgage) will be Assigned to the Purchaser;
- (3) the Purchaser will do all things necessary to discharge and release the Vendor's obligations under the Finance Documents and Mortgage and Completion will be subject to the Vendor being granted a full release from those obligations by the Lender and (unless the Purchaser is purchasing the whole of the Land under Special Condition 4.7), the removal of the Mortgage from the Retained Lot;
- (4) the Vendor will have no further liabilities under the Finance Documents and the Mortgage; and
- (5) the Purchaser agrees to indemnify the Vendor with respect to any liabilities under the Finance Documents and the Mortgage both before and after Completion.

11 Caveat

- (1) The Vendor charges its right, title and interest in the Land in favour of the Purchaser as security for the Vendor's obligations under this Contract and acknowledges and agrees that the Purchaser is entitled to lodge a caveat against the Land on and from the date of this Contract.

Special Conditions – 6 Bulwer Road, Moss Vale

- (2) The Vendor must not:
 - (a) object to the registration of any caveat lodged by the Purchaser as contemplated by this Special Condition; and
 - (b) take any action to have any such caveat lodged by the Purchaser removed from the title to the Land or any subsequent lot unless the interest has come to an end.
- (3) Unless the Purchaser is purchasing the whole of the Land under Special Condition 4.7, the Purchaser must remove any such caveat from the Retained Lot on Completion.

12 Disclosure and Purchaser claims

12.1 Entire Agreement

This Contract contains the entire agreement between the parties in relation to the Property, notwithstanding:

- (1) any negotiations or discussions held between the parties, their representatives or agents; and
- (2) the terms of any sales brochures or other documents issued prior to the execution of this Contract.

12.2 No warranty as to documents

- (1) The Vendor does not warrant the accuracy or completeness of the matters set out in the documents attached to this Contract or referred to in these Special Conditions.
- (2) The Purchaser cannot make any Claim because of any:
 - (a) matter disclosed or described in this Contract; or
 - (b) document attached to this Contract is incomplete or inaccurate.

12.3 Enquiries and investigations

The Purchaser acknowledges that they have made all such enquiries and investigations as they deem appropriate prior to entering into this Contract and is satisfied with the results of those enquiries.

13 Services

13.1 Purchaser acquires subject to services

The Vendor is not entitled to make any Claim by reason of:

- (1) any easements for inter-allotment drainage, easements to drain water, easements for services, easements for access, use, maintenance and construction of pipelines not disclosed in this Contract provided that any or all such easements are located as near as possible to the boundaries of the Retained Lot, and when practicable parallel to the nearest boundary of the Retained Lot; and
- (2) any additional easements or restrictions required by any Authority.

13.2 Limitations on Claims

The Vendor may not make any Claim with respect of the Retained Lot not having the benefit of any

Special Conditions – 6 Bulwer Road, Moss Vale

Service as at Completion.

14 Claim for compensation

Any claim for compensation whether under Printed Clause 7 or otherwise is to be deemed to be a requisition for the purposes of Printed Clause 1.

15 Notices

15.1 Period of Notice

The parties acknowledge that a period of fourteen (14) days is a sufficient period for any notice issued under or pursuant to the provisions of this Contract.

15.2 Method of Service

In addition to the provisions of Printed Clause 20, service of any document under or relating to this Contract may be effected on a party or that party's solicitor:

- (1) if addressed to that party or to that party's solicitor at the respective addresses set out in the Particulars and posted by ordinary pre-paid post in which case service will be deemed to have been effected on the second business day following the date of posting; and
- (2) if sent by email to the email address of that party and/or that party's solicitor set out in the Particulars.

15.3 Time for Service by email

Any notice served by email in accordance with Special Condition (2) in the absence of proof to the contrary, will be deemed to have been received by the party to whom it was sent on the date of the email being sent provided that:

- (1) the sender does not receive a delivery failure message from the sender's internet service provider within a period of twenty-four (24) hours of the email being sent; and
- (2) if the time of sending is later than 5.00pm in the place to which the email is sent, it will be deemed to have been received at the commencement of business on the next business day in that place.

16 Non-Merger

Any term of this Contract which may operate after Completion does not merge on Completion.

17 Rescission of Contract

If a party is entitled to rescind this Contract the provisions of Printed Clause 19 apply to that rescission.

18 Access and Consent

18.1 Access to the Property

- (1) From the date of this Contract, the Purchaser (as well as the Purchaser's employees, agents and subcontractors) may access the Land for the purpose of performing surveys or making engineering, drainage or other investigations with respect to the Land as well as other activities that the Purchaser deems necessary or desirable for any purpose associated with the subdivision and development of the Land including civil and construction works.

Special Conditions – 6 Bulwer Road, Moss Vale

- (2) The Purchaser must:
 - (a) provide reasonable notice to the Vendor prior to accessing the Land; and
 - (b) must ensure that its employees, agents, contractors and invitees comply with all directions of the Vendor (including its employees and agents) in respect of their access to the Land.
- (3) The Purchaser is liable for, and indemnifies the Vendor in respect of any property damage or personal injury to any persons that is caused as a result of the Purchaser (including its employees, agents, contractors and invitees) accessing the Land.
- (4) The Purchaser releases the Vendor against all Claims in respect of the Purchaser being granted access to the Land.
- (5) The Purchaser must take out and maintain all necessary insurances (including but not limited to public liability insurance of at least \$20,000,000.00) in relation to the Purchaser being granted access to the Land. All insurance policies required to be effected by the Purchaser under this Special Condition must note the interest of the Vendor as owner of the Land.
- (6) The Purchaser acknowledges the contents of the Works Deed and Licence between the Vendor and the adjoining owners Konui Pty Ltd and Linda Bordignon (**Road Deed**) for the construction and dedication of a public road benefitting the Land. The Purchaser will comply with the Road Deed and the Vendor will provide such assistance as may be reasonably required of it to enable compliance with the Road Deed.

18.2 Owner's Consent

- (1) The Vendor (as landowner) consents to the Purchaser lodging any applications with any Authority prior to Completion which are required for the registration of the Draft Plan and/or the development of the Land and/or the Property by the Purchaser after Completion.
- (2) The Vendor:
 - (a) on the date of this Contract, will provide, a signed authority to the Purchaser in the form attached as **Annexure 2** to this Contract;
 - (b) will sign all other authorities and consents that are necessary to assist the Purchaser in pursuing any application for an Approval;
 - (c) will not object to any such application for an Approval made by the Purchaser.
- (3) In respect to any applications for Approvals, if the Purchaser wishes to appeal to the Land and Environment Court of New South Wales or such other Court of competent jurisdiction in respect of:
 - (a) any refusal of consent; or
 - (b) the granting of consent on terms or conditions not satisfactory to the Purchaser,
 then the Vendor must provide its consent to such appeal.
- (4) Nothing contained in this Contract or in any application made pursuant to this Special Condition is to be deemed to authorise the Purchaser to make or give any commitment or undertaking which imposes any obligation on the Vendor.
- (5) Without the prior written consent of the Purchaser, the Vendor must not make any approach to

Special Conditions – 6 Bulwer Road, Moss Vale

or liaise (including any form of communication) with any Authority in relation to the development of the Land, or any matters relating to the Land.

19 Ownership of Approvals, Plans and Documents

It is agreed that all consents, approvals, Applications, reports, plans and documentation relating to the development of the Land and the Property are owned by the Vendor until Completion at which time they will be assigned to the Purchaser and the Vendor must do all things necessary to assign all consents, approvals, Applications, reports, plans and documentation to the Purchaser.

20 Marketing and Signage

- (1) The Vendor acknowledges and agrees that the Purchaser may after the date of this Contract:
 - (a) conduct selling activities on the Land;
 - (b) place and maintain in and about the Land signage including without limitation, directional signs and signs in connection with selling leasing activities; and
 - (c) place and maintain in and about the Property marketing and sales facilities and equipment.
- (2) In exercising its rights under this Special Condition, the Purchaser must cause as little interference as is possible to the Vendor or the Vendor's tenants or occupiers (as the case may be) enjoyment of the Land.

21 Exclusive of Goods and Services Tax

21.1 Definitions

Any term used in this Special Condition 21 that is defined in the *A New Tax System (Goods and Services Tax) Act 1999* (Cth) (**GST Act**) is to have the same meaning as set out in that Act.

21.2 Amounts calculated without reference to GST

Amounts payable under or in connection with this Contract have been calculated without regard to GST.

21.3 GST

Subject to the Vendor providing the Purchaser with a valid tax invoice, if any supply the Vendor makes under this Contract is subject to GST, the Purchaser must pay to the Vendor, in addition to the Purchase Price and any other money payable by the Purchaser to the Vendor under this Contract, an amount equal to the GST payable by the Vendor on that supply.

22 Confidentiality

22.1 Non-disclosure

- (1) A party must not disclose Confidential Information disclosed to it by the other party except:
 - (a) with the prior written consent of the disclosing party; or
 - (b) in accordance with the terms of this Contract.
- (2) A party may not unreasonably withhold its consent to disclosure in accordance with paragraph

Special Conditions – 6 Bulwer Road, Moss Vale

(1) where:

- (a) the requested disclosure is made for the purpose of facilitating the proper performance of a party's obligations under this document; and
- (b) the disclosure is to be made to persons who:
 - (i) reasonably require the disclosure of the information; and
 - (ii) are subject to a duty of confidentiality on the same or similar terms to that contained in this Special Condition 22.

22.2 Use of Confidentiality Information

A party may use, copy, reproduce or otherwise deal with the Confidential Information disclosed to it only:

- (1) in accordance with the terms of this document;
- (2) in the case of the Purchaser, to the extent necessary to undertake the development of the Land; and
- (3) in a manner that is related to the proper and lawful conduct and performance of its obligations under this document.

22.3 Exceptions to non-disclosure

A party may disclose Confidential Information that has been disclosed to it:

- (1) where such disclosure is made to those of its employees, advisers, related bodies corporate and shareholders who:
 - (a) have a need to know (and only to the extent each has a need to know); and
 - (b) are aware and agree that the information that is to be disclosed must be kept confidential; or
- (2) in the case of the Purchaser, for the purposes of public display and information in relation to the development of the Land by it; or
- (3) which, at the time of disclosure, is within the public domain or after disclosure comes into the public domain other than by a breach or breaches by any party (whether the party to this deed or a third party) of any obligation owed to the other party; or
- (4) where:
 - (a) required by law or any order of any court, tribunal, authority, regulatory body or the rules of any securities exchange (whether in Australia or elsewhere) to be disclosed; and
 - (b) the party ensures that information is disclosed only to the extent reasonably and lawfully required.

22.4 Duration of confidentiality obligations

Unless otherwise agreed by the parties in writing the obligation of confidentiality set out in this document operates indefinitely and does not terminate on the expiry or earlier termination of this Contract.

Special Conditions – 6 Bulwer Road, Moss Vale

23 Bankruptcy & Incapacity

The parties acknowledge and agree that if:

- (1) the Vendor suffers a bankruptcy or insolvency event of any kind; or
- (2) any director or shareholder of the Vendor dies, becomes mentally ill or incapable of managing its own affairs,

then the Vendor (or their estate, administrators, trustees or assigns) cannot rescind or terminate this Contract.

24 Counterparts and Electronic Signature

24.1 Vendor Disclosure

This Contract may be executed:

- (1) in a number of counterparts and all the counterparts together make one instrument; and/or
- (2) electronically by both parties using Docusign or by exchanging electronic copies of original signatures on this Contract.

24.2 Validity of Contract

- (1) This Contract may be validly created and exchanged by counterparts with each party's signature (electronic or otherwise) sent electronically to each other party by email or facsimile.
- (2) The parties acknowledge that the electronic version of this Contract signed by both parties will be the true and original version for the purposes of this transaction and that no other version will be provided unless otherwise agreed between the parties in writing.
- (3) The parties agree to be bound by the electronic version of this Contract which has been signed and exchanged in accordance with this Special Condition and the Purchaser may not make a Claim because of anything contained in this Special Condition .

24.3 Compliance with Electronic Transactions Act 2000 (NSW)

The parties agree that they will be bound by, have complied with and will comply with the *Electronic Transactions Act 2000* (NSW) and any terms and conditions of Docusign, in relation to the execution of this Contract.

Special Conditions – 6 Bulwer Road, Moss Vale

Annexure 1 – Draft Plan



DRAFT FACILITATING
SUBDIVISION PLAN
"DRAFT PLAN"

REMAINING PARCELS
WILL BE LOT 2
TO BE PURCHASED
BY CARTHA NO 5 PL

LAND OWNER TO
RETAIN THIS LOT
THIS WILL BE
LOT 1

MISS VINE
8 THU 31/8/23

Special Conditions – 6 Bulwer Road, Moss Vale

Annexure 2 – Authority

Special Conditions – 6 Bulwer Road, Moss Vale

AUTHORITY

TO: (All relevant statutory authorities)

Re: **6 Bulwer Road, Moss Vale (Lot 47 in Deposited Plan 746930)**

We, Moss Vale Industrial Properties Pty Limited being the registered proprietor of the property described above authorise Captcha No 5 Pty Limited and its authorised nominee(s) or agent(s):

- (1) to make any inquiries regarding the Property of any nature; and
- (2) to deal with any statutory or governmental officers in relation to the Property; and
- (3) to make any applications in respect of the Property – including applications for rezoning or consent to development of the Property (as defined in the *Environmental Planning and Assessment Act 1979* (NSW)) or the issue of certificates pursuant to Part 4A of that Act or the issue of a construction certificate; and
- (4) to make any other request of any nature in respect of the Property as is deemed reasonable by Captcha No 5 Pty Limited at its absolute discretion.

Dated:

Executed by Moss Vale Industrial Properties Pty Limited in accordance with s 127 of the *Corporations Act 2001* (Cth):

Director/Secretary (Signature)

Director (Signature)

Name of Director/Secretary (Print Name)

Name of Director (Print Name)

Special Conditions – 6 Bulwer Road, Moss Vale

Prescribed Documents



LAND
REGISTRY
SERVICES

Title Search



NEW SOUTH WALES LAND REGISTRY SERVICES - TITLE SEARCH

FOLIO: 4/746930

SEARCH DATE	TIME	EDITION NO	DATE
22/8/2023	3:11 PM	10	8/9/2018

LAND

LOT 4 IN DEPOSITED PLAN 746930
AT MOSS VALE
LOCAL GOVERNMENT AREA WINGECARRIBEE
PARISH OF BONG BONG COUNTY OF CAMDEN
TITLE DIAGRAM DP746930

FIRST SCHEDULE

MOSS VALE INDUSTRIAL PROPERTIES PTY LTD (T AI633840)

SECOND SCHEDULE (7 NOTIFICATIONS)

- 1 RESERVATIONS AND CONDITIONS IN THE CROWN GRANT(S)
- 2 EASEMENT(S) AFFECTING THE PART(S) SHOWN SO BURDENED IN THE TITLE
DIAGRAM CREATED BY:
Q147076 FOR PIPELINE 24.385 WIDE
0335764 EASEMENT CREATED BY Q147076 VESTED IN THE
COMMONWEALTH OF AUSTRALIA AND EAST-AUSTRALIAN
PIPELINE LIMITED
- 3 X329748 COVENANT
- 4 DP1169697 RIGHT OF ACCESS 20 METRE(S) WIDE AND VARIABLE
APPURTENANT TO THE LAND ABOVE DESCRIBED
- 5 DP1169697 EASEMENT FOR SERVICES 20 METRE(S) WIDE AND VARIABLE
APPURTENANT TO THE LAND ABOVE DESCRIBED
- 6 DP1169697 EASEMENT FOR DRAINAGE OF WATER 3 METRE(S) WIDE
AFFECTING THE PART(S) SHOWN SO BURDENED IN DP1169697
- 7 AI781666 MORTGAGE TO WESTPAC BANKING CORPORATION

NOTATIONS

UNREGISTERED DEALINGS: NIL

*** END OF SEARCH ***

446426

PRINTED ON 22/8/2023

8/ [Stamp]

NEW SOUTH WALES

REAL PROPERTY ACT, 1900

Q-147076 P- - 24.00

THE COMMONWEALTH OF AUSTRALIA LANDS ACQUISITION ACT, 1955-1973

THE PIPELINE AUTHORITY ACT 1973

NOTICE OF ACQUISITION OF EASEMENT

I, FREDERICK MICHAEL MAXWELL, the person holding or performing the duties of the office of the Principal Legal Officer, Property and Agreements (1) Section, Deputy Crown Solicitor's office, New South Wales HEREBY CERTIFY that the Gazette Notifications hereunto annexed are true copies of Gazette Notifications contained in the Australian Government Gazettes Nos. 17A of 21 February 1974, 18A of 26 February 1974, 56A of 9 July 1974, 73A of 5 September 1974, 79D of 27 September 1974, and G7 of 18 February 1975, set out in the First Schedule hereto declaring that an easement has been acquired by compulsory process in favour of THE PIPELINE AUTHORITY for the construction maintenance and operation of pipelines or parts thereof together with the rights set out in the Second Schedules thereto over the land set out in the Second Schedule hereto (as delineated in Deposited Plan 499002) AND I HEREBY REQUEST THE REGISTRAR GENERAL to make all recordings in the Register necessary to give effect to the acquisition so far as it relates to the land described in the Second Schedule hereto AND I HEREBY FURTHER CERTIFY that this instrument is correct for the purposes of the Real Property Act, 1900.

DATED this *Twenty second* day of *March* One thousand nine hundred and seventy seven.

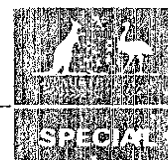
SIGNED for and on behalf of THE COMMONWEALTH OF AUSTRALIA by a person holding or performing the duties of the office of Principal Legal Officer, Property and Agreements (1) Section, Deputy Crown Solicitor's Office, New South Wales

[Signature]
.....
an Officer of the Attorney-General's Department.

Australian Government Gazette

Published by the Australian Government Publishing Service

No. 17 A Canberra, Thursday, 21 February 1974



AUSTRALIA

Lands Acquisition Act 1955-1973

NOTICE OF THE ACQUISITION OF LAND

1. In this notification 'Authority', 'petroleum', and 'pipeline' have respectively the same meaning as those expressions have in the *Pipeline Authority Act 1973*.

2. I hereby notify that His Excellency the Governor-General of Australia, acting with the advice of the Executive Council, has pursuant to the provisions of the *Pipeline Authority Act 1973* (hereinafter called 'the Act') and the *Lands Acquisition Act 1955-1973*, authorised the acquisition by compulsory process of an easement in favour of the Authority over the land described in Schedule 1 at all times and from time to time to construct, maintain and operate pipelines or parts thereof under the Act together with the rights set out in Schedule 2 in, under, on, across, over and through the said land for the purposes of the construction, maintenance and operation of any such pipeline or part thereof and for any purpose incidental to any of those purposes.

11362/74—Price 5c (plus postage)

3. I hereby declare that the said easement is acquired for the following public purpose approved by the Governor-General namely: For the purposes of the Authority under the Act, such purposes being the construction, maintenance and operation of pipelines or parts thereof under and in accordance with the Act.

SCHEDULE 1

Firstly: All that piece of land 24.385 metres wide lying to the northeast and adjacent to the lines designated hereunder situate near Gilgunnia and Barnato in the Shire of Cobar and being part of Western Division Road No. 115 part of Travelling Stock and Camping Reserve 7208 from Sale and 721 from Lease notified in the New South Wales State Government Gazette dated 15 September 1988 part of Portions WL1849 WL3311 WL3513 WL3635 WL3634 and WL4541 County of Blaxland part of Portion WL4226 and parts of Portion WL1199 part of Western Division Road No. 43 part of Portions WL1198 and WL1200 County of Mouramba part of Portions WL4605 WL3735 WL3737 (State Forest No. 930 proclaimed 28 December 1951) and WL3730 part of Travelling Stock Reserve 21587 notified in the New South Wales State Government Gazette dated 13 October 1894 part of Main Road No. 416 from Ivanhoe to Cobar part of Portion WL860 part of Kaleno LA167 now WL1223 and part of Portions WL853 and WL849 County of Booroondarra part of Portions WL848 and WL844 and part of Western Division Road No. 117 County of Rankin and part of Portion 3 of the Parish of Bulla Bulla County of Rankin State of New South Wales; commencing at a point on the northwestern boundary of Portion 3 of the Parish of Gooan County of Blaxland State of New South Wales bearing 221 degrees 43 minutes 50 seconds 118.54 metres from its northern corner such point also bearing 56 degrees 23 minutes 10 seconds 438.44 metres from the intersection of a western boundary of Portion WL4105 with a northwestern boundary of Portion WL1849 and bounded thence on the southwest by a line bearing 307 degrees 57 minutes 9016.6 metres such boundary intersecting the southern boundary of Portion WL3314 at a point

This and the succeeding 32 pages comprise the First Schedule referred to in the annexed Notice of Acquisition of Easement by the Commonwealth of Australia DATED the *twentieth* day of *March* One thousand nine hundred and seventy-six seven

- J. D. Howard*

Australian Government Gazette, No. 17 A, 21 February 1974

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|--|---|
| (f) to construct, build and place any plant, machinery, equipment and goods; | cleanse, maintain and change the size of any pipeline or part thereof; |
| (g) to take sand, clay, stone, earth, gravel, timber, wood and other materials and things; | (o) to remove any pipeline or part thereof; |
| (h) to make cuttings and excavations; | (p) to have the right of support of any pipeline or part thereof; |
| (i) to deposit sand, clay, stone, earth, gravel, timber, wood and other materials and things; | (q) to convey through any such pipeline petroleum belonging to the Authority or to other persons; |
| (j) to erect workshops, sheds and other buildings; | (r) to do all things necessary or convenient to be done in connection with or incidental to the exercise of the aforesaid rights. |
| (k) to make roads; | |
| (l) to manufacture and work materials of any kind; | |
| (m) to demolish, destroy and remove any plant, machinery, equipment, goods, workshop, shed, building and road; | Dated this twentieth day of February 1974. |
| (n) to inspect, patrol (including aerial patrol), alter, renew, reconstruct, replace, repair, | F. M. DALY
Minister of State for Services and Property
(Ex. Min. No. 26) |

Alfred

bearing northerly 1300.2 metres from its south-eastern corner thence by a line bearing 127 degrees 18 minutes 20 seconds 2149 metres such boundary intersecting a northern boundary and an eastern boundary of IL 55 at points bearing respectively westerly 1453.9 metres and southerly 1104.6 metres from the northernmost northeastern corner of IL 55 thence by lines bearing successively 120 degrees 20 minutes 50 seconds 1435.4 metres 123 degrees 33 minutes 1921.6 metres and 128 degrees 19 minutes 50 seconds 2253.4 metres the last-mentioned boundary intersecting the boundary between the Counties of Poole and Tongowoko at a point bearing northerly 179.32 metres from the easternmost northeastern corner of IL 55 County of Poole thence by lines bearing successively 124 degrees 19 minutes 45 seconds 1904.1 metres 127 degrees 28 minutes 40 seconds 1796.1 metres 127 degrees 27 minutes 35 seconds 2632.4 metres 127 degrees 26 minutes 15 seconds 2696.7 metres and 127 degrees 25 minutes 15 seconds 2393.8 metres the lastmentioned boundary intersecting a northern boundary of Portion WL1989 County of Tongowoko at a point bearing westerly 2018.3 metres from the northernmost northeastern corner of Portion WL1989 thence by lines bearing 127 degrees 24 minutes 20 seconds 3263.6 metres 127 degrees 23 minutes 35 seconds 366.5 metres and 125 degrees 52 minutes 50 seconds 1154.4 metres the lastmentioned boundary terminating at a point on a western boundary of Portion WL1990 at a point bearing northerly 217.44 metres from the northeastern corner of Portion WL1840 thence by lines bearing successively 125 degrees 53 minutes 10733.9 metres and 125 degrees 49 minutes 20 seconds 684.3 metres the lastmentioned boundary intersecting an eastern side of a road 60.35 metres wide at a point bearing northerly 536 metres from the intersection of the aforesaid eastern side of that road with the southern boundary of Travelling Stock and Camping Reserve 10702 from Sale and 10704 from Lease notified in the New South Wales State Government Gazette dated 8 February 1890 thence by lines bearing successively 131 degrees 2 minutes 40 seconds 3115.8 metres and 131 degrees 2 minutes 1634.7 metres to a point bearing southerly 15255 metres from the southernmost southwestern corner of Portion WL1093 County of Tongowoko thence by a line bearing 129 degrees 49 minutes 35 seconds 4373.6 metres such boundary intersecting an eastern boundary of Portion WL1990 at a point bearing southerly 2833.5 metres from the southwestern corner of Portion WL239 County of Tongowoko thence by lines bearing successively 129 degrees 48 minutes 35 seconds 2263 metres 129 degrees 47 minutes 30 seconds 4250.5 metres 129 degrees 46 minutes 30 seconds 2927.9 metres 125 degrees 24 minutes 30 seconds 2720 metres 125 degrees 24 minutes 20 seconds 2113.9 metres and 136 degrees 48 minutes 20 seconds 7346.6 metres the lastmentioned boundary intersecting the eastern boundary of Portion WL4627 County of Yantara at a point bearing northerly 7953 metres from the northwestern corner of Portion WL3563 County of Yantara thence by lines bearing successively 136 degrees 46 minutes 50 seconds 1525.4 metres 136 degrees 45 minutes 40 seconds 5149.7 metres 136 degrees 44 minutes 35 seconds 1729 metres 136 degrees 44 minutes 45 seconds 2375.26 metres and 136 degrees 44 minutes 15 seconds 5585.30 metres the lastmentioned boundary intersecting the northern and eastern boundaries of Portion WL3563 at points bearing respectively westerly 565.3 metres and

southerly 600.4 metres from the northwestern corner of Portion WL1087 thence by lines bearing successively 136 degrees 43 minutes 5087.42 metres 136 degrees 42 minutes 20 seconds 3040.2 metres 136 degrees 41 minutes 40 seconds 8011.0 metres and 136 degrees 40 minutes 1333.2 metres the last-mentioned boundary intersecting the northern boundary of Portion WL1088 at a point bearing westerly 13828.5 metres from the north-eastern corner of the aforesaid Portion WL1088 thence by lines bearing successively 136 degrees 40 minutes 40 seconds 2627.5 metres 136 degrees 40 minutes 10 seconds 4539.13 metres and 132 degrees 9 minutes 4830.1 metres to a point on a northern boundary of Portion WL3542 County of Yantara bearing westerly 4684.5 metres from the southwestern corner of Portion WL3569 thence by lines bearing successively 132 degrees 7 minutes 55 seconds 8133.2 metres 132 degrees 6 minutes 3576 metres and 132 degrees 7 minutes 4443.1 metres to a point on a northern boundary of Portion WL3543 bearing easterly 4413.6 metres from the northernmost north-western corner of Portion WL3543 thence by lines bearing successively 132 degrees 7 minutes 20 seconds 4189.5 metres 130 degrees 42 minutes 45 seconds 3252.7 metres and 130 degrees 40 minutes 25 seconds 7359.22 metres to a point on the western boundary of Portion WL3546 bearing northerly 230.05 metres from the southwestern corner of Portion WL3546 thence by a line bearing 130 degrees 38 minutes 45 seconds 2348.95 metres such boundary intersecting the northern boundary of Portion WL1064 at a point bearing easterly 267.31 metres from the south-western corner of Portion WL3546 aforesaid thence by lines bearing successively 132 degrees 34 minutes 50 seconds 7356 metres 132 degrees 33 minutes 10 seconds 8774.7 metres and 141 degrees 1 minute 5 seconds 1802.5 metres to a point on a northern boundary of Portion WL3545 County of Yantara bearing westerly 1320.3 metres from the northernmost northeastern corner of Portion WL3545 aforesaid thence by a line bearing 141 degrees 0 minutes 45 seconds 10212.1 metres such boundary intersecting the southwestern and the southern boundaries of Portion WL3556 County of Fitzgerald and bearing respectively northwesterly 1727.7 metres easterly 814.9 metres from the southernmost southwestern corner of Portion WL3556 aforesaid thence by lines bearing successively 135 degrees 0 minutes 25 seconds 7194.6 metres 134 degrees 59 minutes 55 seconds 1741.83 metres and 134 degrees 59 minutes 30 seconds 3760.3 metres the lastmentioned boundary intersecting a southern boundary of Portion WL3545 at a point bearing westerly 39.36 metres from the southernmost southwestern corner of Portion WL3670 thence by a line bearing 132 degrees 57 minutes 30 seconds 4388.53 metres such boundary intersecting a southern boundary of Portion WL556 at a point bearing westerly 2840 metres from the easternmost southeastern corner of the aforesaid Portion WL556 thence by a line bearing 132 degrees 56 minutes 30 seconds 3495.67 metres such boundary intersecting an eastern boundary of Portion WL559 at a point bearing southerly 2015.6 metres from the aforesaid corner of Portion WL556 thence by a line bearing 124 degrees 56 minutes 5 seconds 5492 metres such boundary intersecting the eastern boundary of Portion WL557 at a point bearing northerly 9.1 metres from the southeastern corner of Portion WL557 thence by lines bearing successively 124 degrees 54 minutes 40 seconds 1600.06 metres 131 degrees 45 minutes 45 seconds 3482.57 metres 133 degrees 17 minutes 55 seconds 5618.42 metres and 133 degrees 16 minutes 45



John Howard

John C. Howard

its northern corner such point also bearing 56 degrees 23 minutes 10 seconds 438.44 metres from the intersection of a western boundary of Portion WL4105 with a northwestern boundary of Portion WL1849 and bounded thence on the southwest by lines bearing successively 127 degrees 57 minutes 40 seconds 5580.2 metres thence by a line bearing 127 degrees 57 minutes 20 seconds 1148.2 metres to a point bearing 108 degrees 1 minute 40 seconds 1498.1 metres from the northeastern corner of Portion WL1851 thence by lines bearing successively 127 degrees 57 minutes 20 seconds 886.6 metres and 125 degrees 9 minutes 57.82.3 metres to a point on the southern boundary of Portion WL894 bearing 277 degrees 46 minutes 20 seconds 1731.8 metres from its southeastern corner thence by lines successively bearing 125 degrees 7 minutes 10 seconds 1947.1 metres and 125 degrees 6 minutes 30 seconds 2343.6 metres the lastmentioned boundary intersecting an eastern boundary of Portion WL895 at a point bearing southerly 901.2 metres from the aforesaid southeastern corner of Portion WL894 thence by lines bearing 130 degrees 50 minutes 50 seconds 30.32 metres 136 degrees 36 minutes 689.1 metres 136 degrees 14 minutes 45 seconds 5960 metres 136 degrees 12 minutes 40 seconds 3571.9 metres and 131 degrees 20 minutes 35 seconds 2932.4 metres the lastmentioned line intersecting a southern boundary of Portion WL610 bearing westerly 5946.6 metres from its southeastern corner thence by lines bearing successively 131 degrees 20 minutes 4268.6 metres 130 degrees 31 minutes 40 seconds 3728 metres the lastmentioned boundary intersecting a western boundary of Portion WL1346 at a point bearing southerly 3895.3 metres from the southeastern corner of Portion WL610 thence by a line bearing 130 degrees 30 minutes 20 seconds 5206.4 metres such boundary intersecting a northern boundary of Portion WL1347 at a point bearing westerly 3098.3 metres from the southeastern corner of Portion WL1346 thence by a line bearing 135 degrees 22 minutes 40 seconds 3282.5 metres such boundary intersecting a western boundary of Portion WL896 at a point bearing northerly 610.2 metres from the westernmost southwestern corner of Portion WL896 and also intersecting a northern boundary of Portion WL1347 at a point bearing westerly 3104.6 metres from the easternmost northeastern corner of Portion WL1347 aforesaid thence by lines bearing successively 127 degrees 41 minutes 40 seconds 3534.1 metres and 129 degrees 41 minutes 10 seconds 1991.5 metres the lastmentioned boundary intersecting an eastern boundary of Portion WL1347 at a point bearing southerly 1784.9 metres from the easternmost northeastern corner of the aforesaid Portion WL1347 thence by lines bearing successively 129 degrees 40 minutes 40 seconds 827.22 metres and 130 degrees 50 minutes 30 seconds 541.42 metres to a point on an eastern boundary of Portion WL896 bearing northerly 1788.9 metres from its southeastern corner thence by a line bearing 130 degrees 50 minutes 30 seconds

4806.5 metres to a point on a western boundary of Portion WL3647 County of Blaxland bearing southerly 833.7 metres from its northernmost northwestern corner all bearings being referred to the true meridian.

SCHEDULE 2

The full and free right for the Authority by itself, its servants and agents and any person authorised by it at all times and from time to time:

- (a) to enter, go, return, pass, repass and remain with or without tools, implements, machinery, animals and vehicles;
- (b) to clear and remove any obstruction, timber, trees, undergrowths, crops and fences;
- (c) to dig, break up and restore the surface;
- (d) to make surveys, take levels, sink bores, dig pits and examine the soil;
- (e) to lay down pipes together with any associated equipment and structures;
- (f) to construct, build and place any plant, machinery, equipment and goods;
- (g) to take sand, clay, stone, earth, gravel, timber, wood and other materials and things;
- (h) to make cuttings and excavations;
- (i) to deposit sand, clay, stone, earth, gravel, timber, wood and other materials and things;
- (j) to erect workshops, sheds and other buildings;
- (k) to make roads;
- (l) to manufacture and work materials of any kind;
- (m) to demolish, destroy and remove any plant, machinery, equipment, goods, workshop, shed, building and road;
- (n) to inspect, patrol (including aerial patrol), alter, renew, reconstruct, replace, repair, cleanse, maintain and change the size of any pipeline or part thereof;
- (o) to remove any pipeline or part thereof;
- (p) to have the right of support of any pipeline or part thereof;
- (q) to convey through any such pipeline petroleum belonging to the Authority or to other persons;
- (r) to do all things necessary or convenient to be done in connection with or incidental to the exercise of the aforesaid rights.

Dated this 26th day of February 1974.

F. M. DALY
Minister of State for
Services and Property.

(Ex. Min. No. 29)

Australian Government Gazette

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No. 56 A

Canberra, Tuesday, 9 July 1974

SPECIAL

SCHEDULE 1

Firstly: All that piece of land 24,385 metres wide bounded generally on the southwest by the lines designated hereunder situate between the vicinity of Mlewong and the vicinity of Boorowa in the Shires of Cobar Lachlan Bland Weddin Burrangong and Boorowa and being part of Portions WL3647 and WL3648 part of Trigonometrical Reserve 41132 notified in the New South Wales State Government Gazette dated 12 December 1906 part of Travelling Stock Reserve 15 notified in the New South Wales State Government Gazette dated 30 October 1874 part of Western District Road No. 83 part of Portions WL3123 WL3124 and WL4366 parts of WLL85 part of the Railway from Roto to Condobolin part of Portions 81 39 41 40 43 32 116 6 7 and 96 of the Parish of Gungah part of Roads 30.175 metres wide part of Roads 60.35 metres wide part of Travelling Stock Reserve 1839 notified in the New South Wales State Government Gazette dated 1 December 1879 and part of Reserve 39463 from Sale notified in the aforesaid Gazette dated 15 July 1905 County of Blaxland in the Western Division part of the bed of the Lachlan River Counties of Blaxland and Dowling part of Closed Road part of Public Road part of Travelling Stock Reserve 66082 notified in the New South Wales State Government Gazette dated 26 June 1936 and part of Travelling Stock and Camping Reserve 71373 notified in the New South Wales State Government Gazette dated 1 December 1944 and part of Portions 44 5 26 25 remainder 38 42 and 40 of the Parish of Whyaddra County of Dowling part of Reserved Roads part of Portions 30 and 28 and parts of Portion 35 of the Parish of Wardry part of Reserved Road part of Road part of Public Road parts of Portion 4 and part of Portion 3 of the Parish of Brotherney County of Dowling part of Public Roads part of Portions 9 7 8 6 2 4 and 3 of the Parish of Wardry County of Gipps part of Portions 34 and 36 of the Parish of Wallaroi part of Public Roads part of Roads and part of Portions 15 24 19 23 6 and 25 and parts of Portion 5 of the Parish of Milba part of Road part of Public Road and part of Portions 4 24 and 2 of the Parish of Merrihooka part of Closed Road part of Public Road and part of Portions 50 12 35 36 and 7 of the Parish of Cookaburragong part of Reserved Roads part of Portions 5 and 23 and parts of Portions 6 and 22 of the Parish of Cerrah part of Road part of Public Roads part of Travelling Stock Reserve 31874 notified in the New South Wales State Government Gazette dated 15 December 1900 part of the bed of Euglo Creek part of Portions 31 44 33 38 18 9 8 and 27 and parts of Portion 10 of the Parish of Euglo South part of Roads part of Public Roads part of Travelling Stock Reserve 58556 notified in the New South Wales State Government Gazette dated 29 January 1926 part of Portions 7 26 14 37 38 20 22 19 and 24 and parts of Portion 16 of the Parish of Livingstone part of Public Roads parts of Lot 1 of Deposited Plan 204493 and part of Portions 20 51 22 44 45 and 33 of the Parish of Wamboyne part of Roads part of Public Roads part of the Railway Line from Burcher to Wyalong part of

AUSTRALIA

Lands Acquisition Act 1955-1973

NOTICE OF THE ACQUISITION OF LAND

1. In this notification 'Authority', 'petroleum', and 'pipeline' have respectively the same meaning as those expressions have in the Pipeline Authority Act 1973.
2. I hereby notify that His Excellency the Governor-General of Australia, acting with the advice of the Executive Council, has pursuant to the provisions of the Pipeline Authority Act 1973 (hereinafter called 'the Act') and the Lands Acquisition Act 1955-1973, authorised the acquisition by compulsory process of an easement in favour of the Authority over the land described in Schedule 1 at all times and from time to time to construct, maintain and operate pipelines or parts thereof under the Act together with the rights set out in Schedule 2 in, under, on, across, over and through the said land for the purposes of the construction, maintenance and operation of any such pipeline or part thereof and for any purpose incidental to any of these purposes.
3. I hereby declare that the said easement is acquired for the following public purpose approved by the Governor-General namely: For the purposes of the Authority under the Act, such purposes being the construction, maintenance and operation of pipelines or parts thereof under and in accordance with the Act.

15091/74--PRICE 10c (plus postage)

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2. Lands Aquisition Act 1955-1973

Australian Government Gazette
No. 36 A, 9 July 1974

Travelling Stock Reserve 56898 notified in the New South Wales State Government Gazette dated 14 March 1924 part of Portions 60 59 46 23 25 and 19 and parts of Portion 26 of the Parish of Corringale part of the lastmentioned Travelling Stock Reserve 56898 part of the bed of Sandy Creek part of Roads part of Public Road and part of Portions 65 66 28 31 32 33 36 and 21 of the Parish of Cowal County of Gipps part of Roads part of Public Road part of Travelling Stock Reserve 70847 notified in the New South Wales State Government Gazette dated 12 March 1943 part of the beds of Barmedman Creek and Yeo Yeo Creek part of Portions 55 54 53 43 44 40 39 75 85 7 and 76 and parts of Portions 16 and 95 of the Parish of Bimbella County of Bland part of Roads part of Camping Reserve 17637 notified in the New South Wales State Government Gazette dated 29 April 1893 part of the bed of Lignum Creek and part of Portions 78 69 70 49 50 29 59 57 22 56 40 58 52 33 67 and 42 of the Parish of Berrigan part of Public Roads part of Closed Road part of Travelling Stock Reserve 1334 notified in the New South Wales State Government Gazette dated 22 March 1878 part of Portions 30 48 and 50 and parts of Portions 16 and 60 of the Parish of Mininjary part of Roads part of Public Road part of Closed Road part of Lots 4 and 8 of Deposited Plan 18075 part of the land comprised in Filed Plan 370272 and part of Portions 76 51 and 70 of the Parish of Caragabal part of Road part of Public Road part of the Railway Line from Forbes to Stock-inbinal and part of Portions 50 46 48 and 49 of the Parish of Barbingal part of Reserved Road part of Public Roads and part of Portions 108 73 and 115 and parts of Portion 116 of the Parish of Berendebha part of Roads part of Public Roads part of Travelling Stock Reserve 66374 notified in the New South Wales State Government Gazette dated 30 October 1935 part of Lots 1 2 and 3 of Deposited Plan 511770 and part of Portions 89 83 91 100 37 78 101 and 74 of the Parish of Euroka part of Road part of Closed Road part of Public Roads part of Travelling Stock Reserve 18389 notified in the New South Wales State Government Gazette dated 12 August 1893 and Travelling Stock Reserve 60885 notified in the Gazette aforesaid dated 18 January 1929 part of the bed of Burrangong Creek and part of Portion 76 57 24 22 23 83 45 and 71 and parts of Portion 58 of the Parish of Bimbi part of Roads part of Closed Roads part of Portions 69 51 54 37 36 38 39 42 45 46 47 78 and 56 and parts of Portion 20 of the Parish of Bribaree County of Bland part of Roads part of Closed Road part of Public Road and part of Portions 133 136 135 45 50 49 51 52 100 110 and 108 of the Parish of Kikiamah County of Montegale part of Road part of Closed Road part of Public Roads part of Travelling Stock Reserve 55472 notified in the New South Wales State Government Gazette dated 2 June 1922 and part of Portions 30 140 95 96 42 42 41 43 92 and 94 of the Parish of Burrumunda part of Road part of the bed of Cudgell Creek part of Lots 1 and 2 of Deposited Plan 557275 and part of Portions 18 146 and 145 of the Parish of Thuddungara part of Roads part of Closed Roads part of Public Road part of severed land notified in the New South Wales State Government Gazette dated 15 December 1944 and part of Camping and Quarry Reserve 1122 notified in the New South Wales State Government Gazette dated 22 December 1876 part of the bed of Burrangong Creek part of Lots A B and H of Deposited Plan 20185 part of the land comprised in Filed Plan 358656 and part of Portions 262 275 274 333 279 281 300 151 152 299 153 13 12 and 46 and parts of Portion 74 of the Parish of Burrangong part of Roads part of

Reserved Roads part of Closed Road part of Public Roads part of the Railway Line from Harden to Koorawatha part of Lot 1 of Deposited Plan 217848 and part of Portions 6 113 19 28 66 9 200 117 194 202 193 192 151 255 and 305 and parts of Portions 118 48 and 311 of the Parish of Woodong part of Roads part of Public Roads part of the bed of Wambanumba Creek and part of Portions 149 114 128 146 167 70 87 72 23 21 186 89 74 90 92 93 39 37 36 35 40 41 and 42 and parts of Portion 127 of the Parish of Dananbilla part of Roads and part of Portions 77 78 80 82 and 87 of the Parish of Murringo part of Roads part of Public Roads part of the beds of Back Creek and Murringo Creek part of Lots 4 1 and 5 of Deposited Plan 225862 and part of Portions 94 70 133 89 10 11 12 17 13 14 15 16 and 195 and parts of Portion 160 of the Parish of Willawong part of Roads part of Reserved Road part of Public Road part of the beds of Fishers Branch Creek and Yellow Waterhole Creek part of the land comprised in Filed Plan 938486 part of Lots 206 207 206 196 197 and 198 of Deposited Plan 2493 and part of Portions 444 383 382 114 143 282 105 106 97 89 90 88 and 87 and parts of Portion 283 of the Parish of Geggullahog County of Montegale part of Lots 170 169 and 168 of Deposited Plan 2493 Parish of Goomamma County of Harden part of Roads part of Reserved Road part of Public Roads part of Railway Reserve part of the Railway Line from Galong to Boorowa part of the bed of the Boorowa River part of the beds of Ryans Creek and Harrys Creek part of Lots 7 and 8 of Deposited Plan 236227 part of Lots 59 60 84 83 82 96 159 158 157 147 143 149 150 140 141 and 142 of Deposited Plan 2493 and part of Portions 39 85 164 163 162 166 167 104 103 148 185 12 and 146 and parts of Portion 197 of the Parish of Boorowa County of King and part of Public Road and parts of Portion 210 of the Parish of Olney County of King State of New South Wales; commencing on a southwestern boundary of the easement acquired by notification in the Australian Government Gazette No. 18 A dated 26 February 1974 and thence therein described at a point bearing 310 degrees 48 minutes 50 seconds 16 metres from its easternmost extremity and bounded thence on the southwest by lines bearing successively 130 degrees 48 minutes 50 seconds 2186.5 metres 131 degrees 9 minutes 50 seconds 2721.6 metres the lastmentioned boundary intersecting an eastern boundary of Portion WL3647 at a point bearing northerly 1159.5 metres from the northernmost corner of Portion WL3649 thence by a line bearing 129 degrees 22 minutes 50 seconds 8059.04 metres such boundary intersecting a southeastern boundary of Portion WL3648 at a point bearing northeasterly 1742.11 metres from its southernmost corner and a southeastern boundary of Portion WL3123 at a point bearing northeasterly 5286.57 metres from the northwestern corner of Public Watering Place 1004 thence by a line bearing 129 degrees 19 minutes 50 seconds 6137.1 metres such boundary intersecting an eastern boundary of Portion WL3124 at a point bearing northerly 557.7 metres from the northernmost corner of Portion WL3125 thence by lines bearing 129 degrees 18 minutes 20 seconds 3373.8 metres and 130 degrees 47 minutes 55 seconds 3589.2 metres the lastmentioned boundary intersecting a northwestern boundary of Portion 81 of the Parish of Guagong at a point bearing southwesterly 168.47 metres from its northernmost corner thence by a line bearing 130 degrees 47 minutes 1747.9 metres such boundary intersecting the northeastern boundary of that portion at a point bearing southeasterly 338.54 metres from the northernmost corner of Portion 81 aforesaid and the southeastern boundary of Portion 39

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at a point bearing southwesterly 203.5 metres from its easternmost corner thence by a line bearing 129 degrees 13 minutes 55 seconds 1975.8 metres such boundary intersecting the northeastern boundary of Portion 41 at a point bearing southeasterly 398.78 metres from its northernmost corner and the northwestern boundary of Portion 43 at a point bearing southwesterly 165.06 metres from its northernmost corner thence by a line bearing 131 degrees 37 minutes 40 seconds 994.27 metres such boundary intersecting the southwestern boundary of Portion 32 at a point bearing southeasterly 328.28 metres from its westernmost corner thence by lines bearing successively 139 degrees 49 minutes 20 seconds 22.7 metres 153 degrees 59 minutes 40 seconds 22.7 metres 162 degrees 11 minutes 20 seconds 456.3 metres and 135 degrees 16 minutes 45 seconds 4626.81 metres the lastmentioned boundary intersecting the southeastern boundary of Portion 7 of the Parish of Guagong at a point bearing southwesterly 305 metres from its easternmost corner thence by a line bearing 129 degrees 16 minutes 40 seconds 1697.19 metres such boundary intersecting a western boundary of Portion 5 of the Parish of Whyaddra County of Dowling at a point bearing easterly 296.4 metres from its westernmost corner thence by a line bearing 134 degrees 17 minutes 20 seconds 2010.75 metres such boundary intersecting the western boundary of Travelling Stock and Camping Reserve 71373 at a point bearing southerly 427.4 metres from its northwestern corner thence by a line bearing 126 degrees 35 minutes 25 seconds 4560.31 metres such boundary intersecting a southeastern boundary of Portion 38 of the Parish of Whyaddra at a point bearing southwesterly 26.03 metres from its southeastern corner and the northern boundary of Portion 35 of the Parish of Wardry at a point bearing easterly 471.07 metres from its northwestern corner thence by lines bearing successively 126 degrees 34 minutes 756.5 metres 135 degrees 10 seconds 30.15 metres 143 degrees 26 minutes 30 seconds 6892.43 metres the lastmentioned boundary intersecting the easternmost northern boundary of Portion 4 of the Parish of Brotherton County of Dowling at a point bearing easterly 66.4 metres from the western extremity of that Portion boundary thence by lines bearing 146 degrees 48 minutes 50 seconds 996.96 metres and 141 degrees 4 minutes 1488.3 metres the lastmentioned boundary intersecting an eastern boundary of Portion 4 aforesaid at a point bearing southerly 67.31 metres from the intersection of the said eastern boundary of Portion 4 with a southwestern side of a reserved road thence by a line bearing 138 degrees 25 minutes 10 seconds 4066.5 metres such boundary intersecting the eastern boundary of Portion 3 of the Parish of Brotherton County of Dowling at a point bearing southerly 673.5 metres from its northeastern corner and terminating on an eastern boundary of Portion 9 of the Parish of Wardry County of Gipps at a point bearing northerly 69.3 metres from its southeastern corner thence by lines bearing 138 degrees 24 minutes 20 seconds 940.9 metres and 137 degrees 41 minutes 20 seconds 5351.66 metres the lastmentioned boundary intersecting an eastern boundary of Portion 6 at a point bearing northerly 941.3 metres from its southeastern corner the southernmost southern boundary of Portion 2 at a point bearing westerly 676.3 metres from its southernmost southeastern corner the western boundary of Portion 3 at a point bearing southerly 425 metres from its northwestern corner and terminating on the eastern boundary of Portion 3 of the Parish of Wardry at a point bearing northerly 117.07 metres from its southeastern corner thence by a line bearing 131 degrees 39 minutes 20 seconds 2441.9 metres such boundary intersecting the south-

eastern boundary of Portion 34 of the Parish of Wallaroi at a point bearing northeasterly 651.4 metres from its most southern corner thence by a line bearing 137 degrees 28 minutes 25 seconds 2776.4 metres such boundary intersecting the southern boundary of Portion 36 at a point bearing easterly 1037.5 metres from its southwestern corner thence by a line bearing 137 degrees 27 minutes 30 seconds 2353.59 metres such boundary intersecting the southern boundary of Portion 24 of the Parish of Milbee at a point bearing westerly 641.2 metres from its southeastern corner thence by a line bearing 134 degrees 15 minutes 50 seconds 2700.4 metres such boundary intersecting the southern boundary of Portion 19 at a point bearing westerly 844.1 metres from its southeastern corner northern and eastern boundaries of Portion 23 at points bearing westerly 802.9 metres and southerly 584 metres respectively from its northeastern corner and the western boundary of Portion 5 at a point bearing southerly 482.6 metres from its northwestern corner thence by a line bearing 139 degrees 23 minutes 2075.32 metres such boundary intersecting the southern boundary of the aforesaid Portion 5 at a point bearing westerly 206 metres from its southeastern corner and terminating on the eastern boundary of Portion 4 of the Parish of Merribooka at a point bearing southerly 181.9 metres from its northeastern corner thence by a line bearing 139 degrees 22 minutes 77.29 metres such boundary intersecting the western and southern boundaries of Portion 25 of the Parish of Milbee at points bearing northerly 389 metres and easterly 442.2 metres respectively from its southwestern corner the eastern boundary of Portion 24 of the Parish of Merribooka at a point bearing southerly 1425.7 metres from its northeastern corner the southeastern boundary of Portion 2 at a point bearing northeasterly 324 metres from its southeastern corner the northwestern boundary of Portion 50 of the Parish of Cookaburragong at a point bearing northeasterly 278.7 metres from its southwestern corner and the southern boundary of Portion 12 at a point bearing easterly 243 metres from its southwestern corner thence by a line bearing 130 degrees 52 minutes 35 seconds 1182.98 metres such boundary intersecting the eastern boundary of Portion 35 at a point bearing northerly 60.8 metres from its southeastern corner thence by a line bearing 139 degrees 26 minutes 50 seconds 2050.9 metres such boundary intersecting an eastern boundary of Portion 36 at a point bearing northerly 88.43 metres from its southeastern corner the western boundary of Portion 7 at a point bearing northerly 54 metres from the intersection of the said western boundary of Portion 7 with the easterly prolongation of the southern boundary of Portion 36 the southern boundary of the aforesaid Portion 7 at a point bearing easterly 1086.9 metres from its southwestern corner and terminating on the northern boundary of Portion 5 of the Parish of Currah at a point bearing easterly 1121.3 metres from its northwestern corner thence by lines bearing successively 139 degrees 26 minutes 20 seconds 166.46 metres 98 degrees 12 minutes 12.81 metres 98 degrees 38 minutes 10 seconds 400.01 metres 115 degrees 57 minutes 30 seconds 36.485 metres and 135 degrees 47 minutes 20 seconds 4337.1 metres the lastmentioned boundary intersecting a western boundary of Portion 22 at a point bearing northerly 954 metres from its westernmost southwestern corner thence by lines bearing 138 degrees 22 minutes 55 seconds 1777.2 metres and 135 degrees 18 minutes 50 seconds 3669.34 metres the lastmentioned boundary intersecting the eastern boundary of Portion 23 at a point bearing southerly 629.6 metres from its easternmost northeastern corner the southeastern boundary of Portion 31 of the Parish of Eaglo South at a point bearing southwesterly

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1690.2 metres from its easternmost southeastern corner and the northwestern boundary of Portion 44 at a point bearing southwesterly 742.9 metres from its northern corner thence by a line bearing 138 degrees 2 minutes 20 seconds 6549.7 metres such boundary intersecting a southern boundary of Portion 33 at a point bearing westerly 283.8 metres from its southeastern corner the northern and eastern boundaries of Portion 38 at points bearing westerly 248 metres and southerly 209 metres respectively from its northeastern corner and terminating on the easternmost eastern boundary of Portion 7 of the Parish of Livingstone at a point bearing northerly 507.8 metres from its southeastern corner thence by a line bearing 138 degrees 40 minutes 791.7 metres such boundary terminating on the southern boundary of Portion 14 at a point bearing easterly 558.5 metres from its westernmost southwestern corner thence by a line bearing 138 degrees 39 minutes 50 seconds 3458.81 metres such boundary intersecting the northern and eastern boundaries of Portion 37 at points bearing westerly 140.6 metres and southerly 120.6 metres respectively from its northeastern corner the western boundary of Portion 38 at a point bearing southerly 146.56 metres from its northwestern corner the northern and eastern boundaries of Portion 20 at points bearing westerly 468.9 metres and southerly 402.2 metres respectively from its northeastern corner thence by a line bearing 134 degrees 15 minutes 10 seconds 2669.35 metres such boundary intersecting the western boundary of Portion 22 at a point bearing southerly 280.5 metres from the southwestern corner of Portion 41 and the southern boundary of Portion 22 at a point bearing westerly 1424.2 metres from its southeastern corner thence by a line bearing 132 degrees 11 minutes 50 seconds 7280.5 metres such boundary intersecting northern and eastern boundaries of Portion 19 of the Parish of Livingstone at points bearing westerly 461.1 metres and southerly 313.4 metres respectively from its northernmost northeastern corner the western boundary of Lot 1 of Deposited Plan 204493 Parish of Wamboynce at a point bearing northerly 228.51 metres from the northwestern corner of Portion 36 of the Parish of Wamboynce the western boundary of Portion 20 at a point bearing southerly 459.7 metres from the westernmost northwestern corner of that portion thence by a line bearing 141 degrees 18 minutes 40 seconds 4816.8 metres such boundary intersecting the western and southern boundaries of Portion 51 at points bearing northerly 130.6 metres and easterly 138.3 metres respectively from its southernmost southwestern corner the northern boundary of Portion 22 at a point bearing easterly 78.3 metres from the northeastern corner of Public Watering Place 654 the western and southern boundaries of Portion 44 at points bearing northerly 127.5 metres and easterly 135 metres respectively from its southwestern corner and terminating on the easternmost eastern boundary of Portion 33 at a point bearing southerly 1058.9 metres from the southeastern corner of Portion 10 of the Parish of Wamboynce thence by a line bearing 141 degrees 17 minutes 20 seconds 3385.9 metres such boundary intersecting western and southern boundaries of Portion 60 of the Parish of Corringe at points bearing northerly 316.3 metres and easterly 334.5 metres respectively from its southwestern corner the southern boundary of Portion 59 at a point bearing westerly 326.5 metres from its southernmost southeastern corner and the northern boundary of Portion 46 at a point bearing westerly 244.9 metres from its northeastern corner thence by a line bearing 139 degrees 55 minutes 3501 metres such boundary intersecting a northern boundary of Portion 25 at a point bearing

easterly 180.8 metres from its northwestern corner and an eastern boundary of Portion 25 at a point bearing southerly 1094.5 metres from its northeastern corner thence by lines bearing successively 119 degrees 6 minutes 5 seconds 31.135 metres 98 degrees 18 minutes 15 seconds 156.44 metres 106 degrees 53 minutes 15 seconds 22.6 metres 121 degrees 18 minutes 15 seconds 22.6 metres and 129 degrees 53 minutes 5 seconds 3826.9 metres the lastmentioned boundary intersecting the southern boundary of Portion 19 at a point bearing westerly 315.3 metres from its southeastern corner and the southern boundary of Portion 66 of the Parish of Cowal at a point bearing easterly 393.1 metres from its southwestern corner thence by a line bearing 128 degrees 6 minutes 30 seconds 3829.3 metres such boundary intersecting an eastern boundary of Portion 31 at a point bearing southerly 755.4 metres from its northeastern corner and western and southern boundaries of Portion 33 at points bearing northerly 331 metres and easterly 575.9 metres respectively from its southwestern corner thence by a line bearing 126 degrees 21 minutes 40 seconds 1313.6 metres such boundary intersecting the eastern boundary of Portion 36 at a point bearing southerly 428 metres from its easternmost northeastern corner and a western boundary of Portion 21 at a point bearing southerly 474.37 metres from its westernmost northwestern corner thence by a line bearing 126 degrees 21 minutes 20 seconds 2489.2 metres such boundary intersecting the southeastern boundary of Portion 21 of the Parish of Cowal County of Gipps at a point bearing southwesterly 834.5 metres from its southeastern corner and the northwestern boundary of Portion 55 of the Parish of Bimbella County of Bland at a point bearing northeasterly 136.1 metres from its southwestern corner thence by a line bearing 127 degrees 43 minutes 2668 metres such boundary intersecting the southern boundary of Portion 54 of the Parish of Bimbella County of Bland at a point bearing westerly 185.8 metres from its southeastern corner the northern and eastern boundaries of Portion 53 at points bearing westerly 131.8 metres and southerly 73.7 metres respectively from the northeastern corner of the aforesaid Portion 53 the western and southern boundaries of Portion 43 at points bearing northerly 272.7 metres and easterly 487.7 metres respectively from the southwestern corner of the aforesaid Portion 43 thence by a line bearing 125 degrees 8 minutes 20 seconds 3173 metres such boundary intersecting the western boundary of Portion 75 at a point bearing southerly 72 metres from the northwestern corner of the aforesaid Portion 75 the northern boundary of Portion 16 at a point bearing easterly 960.7 metres from the northwestern corner of the said Portion 16 and a northwestern boundary of Portion 7 at a point bearing northeasterly 1098.1 metres from the southwestern corner of the aforesaid Portion 7 thence by a line bearing 125 degrees 7 minutes 40 seconds 2189.6 metres such boundary intersecting the northeastern boundary of Portion 7 at a point bearing northwesterly 230.3 metres from the northwestern corner of Portion 94 the southwestern and southern boundaries of Portion 85 at points bearing respectively northwesterly 231.3 metres and easterly 318.2 metres from the southwestern corner of the aforesaid Portion 85 a southern boundary of Portion 95 at a point bearing easterly 402.9 metres from the northwestern corner of Portion 94 thence by a line bearing 123 degrees 21 minutes 15 seconds 3614.85 metres such boundary intersecting an eastern boundary of Portion 78 of the Parish of Berrigan at a point bearing northerly 327.5 metres from the southeastern corner of the aforesaid Portion 78 the southwestern boundary of Portion 69 at a point bearing successively

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southerly 1056.2 metres and southeasterly 54.5 metres from the northwestern corner of the aforesaid Portion 69 and the southeastern boundary of the aforesaid Portion 69 at a point bearing northeasterly 54.5 metres from the southernmost corner of the aforesaid Portion 69 thence by a line bearing 125 degrees 59 minutes 30 seconds 2883.2 metres such boundary intersecting the northwestern boundary of Portion 40 at a point bearing northeasterly 30.745 metres from the westernmost corner of the aforesaid Portion 40 thence by a line bearing 125 degrees 39 minutes 30 seconds 7791.1 metres such boundary intersecting the southeastern boundary of Portion 67 at a point bearing southwesterly 553.5 metres from the easternmost corner of the aforesaid Portion thence by a line bearing 127 degrees 14 minutes 2911.2 metres such boundary intersecting the southern boundary of Portion 48 of the Parish of Mininijary at a point bearing easterly 36.5 metres from the southwestern corner of the aforesaid Portion 48 the southern boundary of Portion 60 at a point bearing westerly 515.5 metres from the northeastern corner of Portion 50 the western boundary of Lot 4 of Deposited Plan 18075 Parish of Caragabal at a point bearing northerly 787.3 metres from the northwestern corner of Portion 75 Parish of Caragabal and the southern boundary of the aforesaid Lot 4 of Deposited Plan 18075 at a point bearing westerly 1096 metres from the southeastern corner of the aforesaid Lot 4 thence by a line bearing 126 degrees 3 minutes 3073.5 metres such boundary intersecting the northern boundary of Portion 76 at a point bearing easterly 102.7 metres from the northwestern corner of the aforesaid Portion 76 the eastern boundary of the aforesaid Portion 76 at a point bearing southerly 566.6 metres from the southeastern corner of Lot 4 of Deposited Plan 18075 and the western boundary of Lot 8 of Deposited Plan 18075 at a point bearing southerly 145.9 metres from the northwestern corner of the aforesaid Lot 8 thence by lines bearing successively 128 degrees 33 minutes 55 seconds 1466.8 metres and 128 degrees 33 minutes 20 seconds 2288.7 metres the lastmentioned boundary intersecting a northwestern boundary of Portion 70 at a point bearing successively southwesterly 126.15 metres and southwesterly 273 metres from the southernmost southeastern corner of Filed Plan 370272 the eastern boundary of the aforesaid Portion 70 at a point bearing southerly 146.3 metres from the intersection of the eastern boundary of the aforesaid Portion 70 and a southwestern side of the Railway Line from Forbes to Stockinbingal and a western boundary of Portion 50 of the Parish of Barbingal at a point bearing southerly 128.6 metres from the northernmost corner of the aforesaid Portion 50 thence by lines bearing successively 104 degrees 49 minutes 30.92 metres 81 degrees 5 minutes 20 seconds 51.07 metres and 94 degrees 16 minutes 40 seconds 27.575 metres the lastmentioned boundary intersecting the southwestern boundary of Portion 46 at a point bearing northwesterly 88.7 metres from the southernmost southwestern corner of the aforesaid Portion 46 thence by lines bearing successively 115 degrees 56 minutes 40 seconds 27.575 metres and 129 degrees 8 minutes 4842.88 metres the lastmentioned boundary intersecting the southern boundary of the aforesaid Portion 46 at a point bearing easterly 104.6 metres from the southernmost southwestern corner of the aforesaid Portion 46 and the northern and eastern boundaries of Portion 49 at points bearing respectively westerly 246 metres and southerly 144.5 metres from the northeastern corner of the aforesaid Portion 49 thence by a line bearing 124 degrees 20 minutes 40 seconds 3569.2 metres such boundary intersecting the eastern boundary of Portion 115 Parish of Berendebba at a point bearing

southerly 835.4 metres from the northeastern corner of the aforesaid Portion 115 and the western and southern boundaries of Portion 89 of the Parish of Euroka at points bearing northerly 478 metres and easterly 1008.8 metres respectively from the southwestern corner of the aforesaid Portion 89 thence by a line bearing 128 degrees 42 minutes 40 seconds 3142.46 metres such boundary intersecting the eastern boundary of Portion 83 at a point bearing northerly 273.2 metres from the northeastern corner of Portion 84 and the eastern boundary of Portion 91 at a point bearing northerly 666.5 metres from the southeastern corner of the aforesaid Portion 91 thence by a line bearing 125 degrees 55 minutes 50 seconds 3077.8 metres such boundary intersecting the northern boundary of Portion 78 at a point bearing westerly 82.2 metres from the southeastern corner of Portion 37 thence by a line bearing 125 degrees 5 minutes 40 seconds 3689.75 metres such boundary intersecting the southern boundary of Lot 1 of Deposited Plan 511770 at a point bearing easterly 84.6 metres from the southwestern corner of the aforesaid Lot 1 the northern boundary of Lot 3 of Deposited Plan 511770 at a point bearing easterly 18.2 metres from the northwestern corner of the aforesaid Lot 3 a western boundary of Portion 101 at a point bearing southerly 38.5 metres from the northwestern corner of the aforesaid Portion 101 the western boundary of Portion 74 at a point bearing southerly 84.8 metres from the northern corner of the aforesaid Portion 74 and the eastern boundary of the aforesaid Portion 74 at a point bearing northerly 55.6 metres from its southeastern corner thence by a line bearing 117 degrees 39 minutes 10 seconds 2668.98 metres such boundary intersecting the western boundary of Portion 76 of the Parish of Simbi at a point bearing southerly 25.4 metres from its northwestern corner an eastern boundary of the aforesaid Portion 76 at a point bearing southerly 33.8 metres from the northwestern corner of Portion 57 the eastern boundary of Portion 57 at a point bearing southerly 279.7 metres from its northeastern corner an eastern side of a road passing through Portion 58 at a point bearing northerly 219 metres from the northwestern corner of Portion 59 and a western boundary of Portion 24 at a point bearing northerly 113 metres from the northeastern corner of Portion 59 the eastern boundary of Portion 24 at a point bearing southerly 507.5 metres from its northeastern corner and the western boundary of Portion 22 at a point bearing southerly 770.2 metres from its northwestern corner thence by lines bearing successively 118 degrees 47 minutes 10 seconds 1095.9 metres and 118 degrees 46 minutes 40 seconds 806.8 metres the lastmentioned boundary intersecting the northwestern boundary of Reserve 60884 for Public Recreation notified in the New South Wales State Government Gazettes dated 18 January 1929 and 27 October 1972 at a point bearing northeasterly 85.5 metres from the western corner of the aforesaid Reserve and the northeastern boundary of the aforesaid Reserve at a point bearing northwesterly 86.1 metres from its eastern corner thence by a line bearing 128 degrees 16 minutes 5 seconds 22.4 metres such boundary intersecting a southeastern boundary of Portion 83 at a point bearing southwesterly 368.4 metres and again southwesterly 43.06 metres from the easternmost southeastern corner of the aforesaid Portion 83 thence by lines bearing successively 143 degrees 52 minutes 35 seconds 22.4 metres and 153 degrees 22 minutes 15 seconds 157.8 metres the lastmentioned boundary intersecting a northwestern and an eastern boundary of Portion 45 bearing southwesterly 5.29 metres and southerly 8.54 metres respectively from its northernmost corner thence by lines bearing successively 135 degrees 39

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minutes 40 seconds 24.24 metres and 117 degrees 57 minutes 24.24 metres the lastmentioned boundary intersecting the easternmost eastern boundary of Portion 20 of the Parish of Brimbace at a point bearing southerly 937.52 metres from its easternmost northeastern corner the western boundary of Portion 51 at a point bearing southerly 973.23 metres from its northwestern corner the southern boundary of Portion 51 at a point bearing easterly 186.1 metres from its southwestern corner and the eastern boundary of Portion 54 at a point bearing southerly 196 metres from its northeastern corner thence by a line bearing 120 degrees 15 minutes 1699 metres such boundary intersecting the southern boundary of Portion 37 at a point bearing westerly 244.65 metres from its southeastern corner the westernmost western boundary of Portion 38 at a point bearing northerly 289.8 metres from its westernmost southwestern corner and the northern boundary of Portion 39 at a point bearing westerly 133.56 metres from its northeastern corner thence by a line bearing 118 degrees 13 minutes 45 seconds 2831.6 metres such boundary intersecting the eastern boundary of Portion 42 at a point bearing southerly 416.8 metres from its northeastern corner and the western boundary of Portion 45 at a point bearing northerly 327.9 metres from its southwestern corner the southern boundary of Portion 46 at a point bearing easterly 940.4 metres from the southwestern corner of Portion 45 and the northern boundary of Portion 47 at a point bearing westerly 155.04 metres from its northeastern corner the western boundary of Portion 78 at a point bearing southerly 54.1 metres from its northwestern corner and the eastern boundary of Portion 78 at a point bearing southerly 173.2 metres from its northeastern corner thence by lines bearing successively 120 degrees 32 minutes 55 seconds 849 metres and 120 degrees 32 minutes 40 seconds 1069.8 metres the lastmentioned boundary commencing at a point on the southern boundary of the land comprised in Filed Plan 375376 at a point bearing westerly 298.53 metres from the southeastern corner of that aforesaid land and intersecting the northeastern boundary of Portion 56 at a point bearing southeasterly 136.1 metres from the southeastern corner of the land comprised in Filed Plan 375376 and the southwestern boundary of Portion 133 of the Parish of Kikiamah County of Montegale at a point bearing northwesterly 336.4 metres from its southwestern corner thence by a line bearing 118 degrees 27 minutes 20 seconds 2609.1 metres such boundary intersecting the southern boundary of Portion 133 at a point bearing westerly 660 metres from its southeastern corner the northern and eastern boundaries of Portion 136 at points bearing respectively westerly 576.1 metres and southerly 207.1 metres from its northeastern corner and the western boundary of Portion 135 at a point bearing southerly 474.9 metres from its northwestern corner an eastern boundary of Portion 135 at a point bearing northerly 406.4 metres from that corner of Portion 135 opposite the southwestern corner of Portion 45 and the western boundary of Portion 45 at a point bearing northerly 365.4 metres from its southwestern corner thence by a line bearing 125 degrees 50 minutes 25 seconds 4558.8 metres such boundary intersecting the southern boundary of Portion 45 at a point bearing westerly 157.4 metres from its southeastern corner the northern and eastern boundaries of Portion 50 at points bearing westerly 516.4 metres and southerly 265 metres respectively from its northeastern corner and a western boundary of Portion 49 at a point bearing southerly 210.7 metres from its westernmost northwestern corner the northern and eastern boundaries of Portion 51 at points bearing westerly 565.8 metres and southerly 290.6 metres respectively from its

northeastern corner the eastern boundary of Portion 52 at a point bearing northerly 164 metres from its southeastern corner a western boundary of Portion 100 at a point bearing northerly 148.6 metres from its northernmost southwestern corner thence by a line bearing 126 degrees 15 minutes 4142.1 metres such boundary intersecting the eastern boundary of Portion 100 at a point bearing northerly 240 metres from its southeastern corner the eastern boundary of Portion 110 at a point bearing northerly 339.5 metres from its southeastern corner and a western boundary of Portion 108 at a point bearing northerly 323.9 metres from its northernmost southwestern corner and thence by a line bearing 123 degrees 2 minutes 10 seconds 7896.6 metres such boundary intersecting the southernmost southern boundary of Portion 108 at a point bearing westerly 14.3 metres from its southeastern corner the western boundary of Portion 30 of the Parish of Burramunda at a point bearing southerly 139.2 metres from its northwestern corner the western boundary and the southernmost southern boundary of Portion 140 at points bearing respectively northerly 56.65 metres and easterly 126.8 metres from its southwestern corner the northern boundary of Portion 95 at a point bearing easterly 194.9 metres from its northwestern corner the eastern boundary of Portion 95 at a point bearing northerly 1067.5 metres from its southeastern corner the western boundary of Portion 96 at a point bearing northerly 1057.1 metres from its southwestern corner the eastern boundary of Portion 96 at a point bearing northerly 942.8 metres from its southeastern corner the western boundary of Portion 44 at a point bearing northerly 932.6 metres from its southwestern corner the eastern boundary of Portion 44 at a point bearing northerly 896.6 metres from its southeastern corner the eastern boundary of Portion 42 at a point bearing northerly 453.7 metres from its southeastern corner the eastern boundary of Portion 41 at a point bearing northerly 224.4 metres from its southeastern corner the eastern boundary of Portion 43 at a point bearing northerly 123.1 metres from its southeastern corner the eastern boundary of Portion 92 at a point bearing northerly 33 metres from its southeastern corner the western and southern boundaries of Portion 94 at points bearing northerly 22.2 metres and easterly 41.4 metres respectively from its southwestern corner an eastern boundary of Portion 146 Parish of Thuddugara at a point bearing southerly 271.3 metres from its northeastern corner and the western boundary of Portion 145 at a point bearing northerly 336.3 metres from its southwestern corner thence by a line bearing 123 degrees 44 minutes 30 seconds 3673.7 metres such boundary intersecting the southern boundary of Portion 145 at a point bearing easterly 744.9 metres from its southwestern corner and the northern boundary of Portion 274 of the Parish of Burramunda at a point bearing westerly 220.6 metres from its northeastern corner thence by a line bearing 123 degrees 43 minutes 20 seconds 2070.2 metres such boundary intersecting the eastern boundary of Portion 274 at a point bearing southerly 101.1 metres from its northeastern corner the western and southern boundaries of Portion 279 Remainder at points bearing northerly 119 metres and easterly 300.3 metres respectively from its southwestern corner and a western boundary of Portion 300 at a point bearing northerly 274.4 metres from its southwestern corner thence by a line bearing 133 degrees 27 minutes 25 seconds 3032.1 metres such boundary intersecting the southern boundary of Portion 300 at a point bearing easterly 514 metres from its southwestern corner the southern boundary of Portion 152 at a point bearing westerly 176.6 metres from its southeastern corner northern and eastern boundaries of Portion 299 at points

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Leaving westerly 132.4 metres and southerly 90.4 metres respectively from its easternmost northeastern corner the southern boundary of Portion 13 at a point bearing easterly 411.8 metres from the intersection of an eastern side of a Public Road being Main Road No. 239 with a southern boundary of Portion 13 the easternmost eastern boundary of Portion 12 at a point bearing northerly 24.46 metres from its easternmost southeastern corner the northernmost western boundary of Lot A of Deposited Plan 20185 at a point bearing southerly 313.4 metres from its northernmost northwestern corner thence by a line bearing 112 degrees 48 minutes 35 seconds 2772.6 metres such boundary intersecting the southernmost eastern boundary of Lot A of Deposited Plan 20185 at a point bearing successively southerly 60.935 metres southwesterly 9.055 metres and southerly 107.3 metres from its easternmost northeastern corner thence by lines bearing successively 119 degrees 5 minutes 50 seconds 30.295 metres and 125 degrees 24 minutes 1930.75 metres the lastmentioned boundary intersecting the easternmost eastern boundary of Lot B of Deposited Plan 20185 at a point bearing southerly 78.29 metres from the southernmost southeastern corner of Lot B of Deposited Plan 20185 the southern boundary of Portion 46 at a point bearing westerly 41.37 metres from the southwestern corner of the land comprised in Filed Plan 353656 and the northern boundary of Portion 74 at a point bearing easterly 286.35 metres from its northwestern corner thence by a line bearing 99 degrees 25 minutes 20 seconds 491.31 metres such boundary intersecting the western boundary of Portion 6 of the Parish of Woodonga at a point bearing southerly 109.73 metres from its northwestern corner thence by lines bearing successively 111 degrees 18 minutes 55 seconds 29.82 metres and 123 degrees 12 minutes 45 seconds 3453.2 metres the lastmentioned boundary intersecting the western boundary of Portion 113 at a point bearing southerly 277.7 metres from the northwestern corner of the aforesaid Portion 113 the western boundary of Portion 19 at a point bearing southerly 660.1 metres from its northwestern corner western and southern boundaries of Portion 200 at points bearing northerly 7.86 metres and easterly 17.6 metres respectively from its southernmost southwestern corner the northern boundary and an eastern boundary of Portion 117 at points bearing westerly 66.5 metres and southerly 29.7 metres respectively from its northeastern corner and the western boundary of Portion 194 at a point bearing southerly 179.5 metres from its northwestern corner thence by a line bearing 126 degrees 12 minutes 30 seconds 1921.6 metres such boundary intersecting a western boundary of Portion 202 at a point bearing southerly 62.9 metres from its northernmost northwestern corner the western boundary of a Reserved Road 20.115 metres wide passing through Portion 202 at a point bearing southerly 162 metres from the northernmost northern boundary of that portion the eastern boundary of Portion 202 at a point bearing southerly 172.2 metres from its northeastern corner the western boundary of Portion 192 at a point bearing southerly 9.47 metres from its northwestern corner and the western and southern boundaries of Portion 151 at points bearing northerly 128.2 metres and easterly 250.2 metres respectively from its southwestern corner thence by a line bearing 135 degrees 28 minutes 10 seconds 1009.6 metres such boundary intersecting the southern boundary of Lot 1 of Deposited Plan 217848 at a point bearing westerly 104.7 metres from its southeastern corner and a southeastern boundary of Portion 48 at a point bearing southwesterly 62.9 metres from the southeastern corner of Lot 1 aforesaid thence by a line bearing 129 degrees 31 minutes 35 seconds 4808.7

metres such boundary intersecting the eastern boundary of Portion 255 at a point bearing northerly 39.1 metres from its southeastern corner the western and the southern boundaries of Portion 305 at points bearing northerly 4.56 metres and easterly 7.79 metres respectively from its southwestern corner northern and eastern boundaries of Portion 149 of the Parish of Dananbilla at points bearing respectively westerly 49.9 metres and southerly 29.3 metres from its northeastern corner the western boundary of Portion 114 at a point bearing southerly 286.2 metres from its northwestern corner the eastern boundary of Portion 128 at a point bearing southerly 309.2 metres from its northeastern corner the western boundary of Portion 146 at a point bearing northerly 328.1 metres from its southwestern corner the western and a southern boundary of Portion 107 at points bearing northerly 43.4 metres and easterly 72.1 metres respectively from its southwestern corner and the eastern boundary of Portion 70 at a point bearing northerly 397.1 metres from its southeastern corner thence by a line bearing 123 degrees 14 minutes 40 seconds 667 metres such boundary intersecting the eastern boundary of the land comprised in Filed Plan 383732 at a point bearing northerly 277 metres from its southeastern corner thence by a line bearing 116 degrees 33 minutes 30 seconds 1044.4 metres such boundary intersecting a southern boundary of Portion 72 at a point bearing westerly 91.7 metres from its corner of Portion 72 opposite the northeastern corner of Portion 23 the northern and eastern boundaries of Portion 23 at points bearing westerly 4.52 metres and southerly 2.1 metres respectively from its northeastern corner a western and a southern boundary of Portion 72 at points bearing northerly 17.78 metres and easterly 33.92 metres respectively from its southernmost southwestern corner the northern boundary of Portion 21 at a point bearing easterly 121.64 metres from its northwestern corner and the eastern boundary of Portion 21 at a point bearing northerly 366.5 metres from the northern boundary of Portion 19 thence by a line bearing 119 degrees 41 minutes 50 seconds 1597.6 metres such boundary intersecting the eastern boundary of Portion 186 at a point bearing northerly 196.3 metres from its southeastern corner the western boundary of Portion 89 at a point bearing northerly 208.8 metres from the northeastern corner of Portion 19 the eastern boundary of Portion 93 at a point bearing southerly 312.4 metres from its northeastern corner and the western boundary of Portion 39 at a point bearing southerly 319.9 metres from its northwestern corner thence by a line bearing 123 degrees 54 minutes 30 seconds 1375.5 metres such boundary intersecting the eastern boundary of Portion 39 at a point bearing southerly 376.4 metres from its northeastern corner the western boundary of Portion 35 at a point bearing southerly 536.9 metres from its northwestern corner and the southern boundary of Portion 40 at points bearing northerly 16.17 metres and easterly 34.79 metres respectively from its southwestern corner and the eastern boundary of Portion 41 at a point bearing northerly 191.8 metres from its southeastern corner thence by lines bearing successively 132 degrees 29 minutes 25 seconds 22.58 metres 147 degrees 6 minutes 5 seconds 22.58 metres and 155 degrees 41 minutes 25 seconds 275.2 metres the last mentioned boundary intersecting the southeastern boundary of Portion 42 at a point bearing northerly 187.7 metres from its southwestern corner and the northwestern boundary of Portion 94 of the Parish of Willawong at a point bearing northerly 35.9 metres from its northwestern corner thence by a line bearing 126 degrees 45 minutes 20 seconds 1113 metres such boundary intersecting the eastern boundary of Portion 94 at a point bearing southerly

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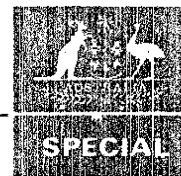
225.2 metres from its northeastern corner the western boundary of Portion 77 of the Parish of Murringo at a point bearing southerly 241.4 metres from its northwestern corner and the eastern boundary of Portion 78 at a point bearing northerly 569.2 metres from the southeastern corner of Portion 79 thence by a line bearing 124 degrees 39 minutes 50 seconds 5149.1 metres such boundary intersecting the western boundary of Portion 80 at a point bearing northerly 558.9 metres from the southwestern corner of Portion 82 the eastern boundary of Portion 82 at a point bearing northerly 130.8 metres from its southeastern corner western and southern boundaries of Portion 87 at points bearing respectively northerly 121.1 metres and easterly 249.2 metres from its southwestern corner the northern boundary of Portion 70 of the Parish of Willawong at a point bearing easterly 250.5 metres from its northwestern corner the northeastern boundary of Portion 70 at a point bearing southeasterly 403.8 metres from its northeastern corner a southwestern boundary of Portion 133 at a point bearing northerly 192.4 metres from its westernmost southwestern corner a southeastern boundary of Portion 89 at a point bearing northeasterly 46.55 metres from the corner opposite the northwestern corner of Portion 10 the northwestern boundary of Portion 10 at a point bearing northeasterly 46.4 metres from the northwestern corner of Portion 10 the southeastern boundary of Portion 10 at a point bearing northeasterly 364.7 metres from its southernmost corner the northwestern boundary of Portion 12 at a point bearing southwesterly 123.74 metres from its northernmost corner the southeastern boundary of Portion 12 at a point bearing southwesterly 187.7 metres from its easternmost corner the northwestern boundary of Portion 17 at a point bearing southwesterly 167.8 metres from its northernmost corner a northeastern boundary of Portion 17 at a point bearing northwesterly 127.4 metres from its easternmost corner and a southwestern boundary of Portion 13 at a point bearing northwesterly 91.4 metres from its southernmost corner thence by a line bearing 124 degrees 38 minutes 10 seconds 1850.8 metres such boundary intersecting the southeastern boundary of Portion 13 at a point bearing northeasterly 77.36 metres from its southernmost corner the southeastern boundary of Portion 14 at a point bearing northeasterly 405 metres from the westernmost corner of Portion 15 the southeastern boundary of Portion 15 at a point bearing southwesterly 496.6 metres from its easternmost corner the southeastern boundary of Portion 16 at a point bearing southwesterly 138.5 metres from its easternmost corner thence by a line bearing 106 degrees 31 minutes 35 seconds 1562.3 metres such boundary intersecting a southeastern boundary of Portion 160 at a point bearing southwesterly 282.8 metres from the northernmost northeastern corner of Portion 195 and the westernmost western boundary of Lot 4 of Deposited Plan 225862 at a point bearing southerly 84.7 metres from its westernmost northwestern corner thence by a line bearing 115 degrees 14 minutes 15 seconds 24.405 metres such boundary intersecting the northernmost eastern boundary of Lot 4 of Deposited Plan 225862 at a point bearing northerly 0.165 metres from the southern extremity of the aforesaid northernmost eastern boundary of Lot 4 thence by lines bearing successively 123 degrees 53 minutes 25 seconds 1235.1 metres and 126 degrees 21 minutes 5 seconds 2271.7 metres the lastmentioned boundary intersecting the western and southern boundaries of Portion 383 of the Parish of Gungahlin at points bearing northerly 159.1 metres and easterly 304.5 metres from its southwestern corner respectively the northern boundary of Portion 382 at a point bearing easterly 31.1

metres from its northwestern corner an eastern boundary of Portion 382 at a point bearing southerly 52.4 metres from its corner opposite the northwestern corner of Portion 314 and the western boundary of Portion 314 at a point bearing southerly 42.8 metres from its northwestern corner thence by a line bearing 126 degrees 20 minutes 20 seconds 2287.6 metres such boundary intersecting a western side of a Reserved Road within Portion 283 at a point bearing northerly 13 metres from the northeastern corner of Portion 247 thence by a line bearing 125 degrees 13 minutes 20 seconds 1887.1 metres such boundary intersecting the eastern boundary of Portion 282 at a point bearing southerly 468.4 metres from its northeastern corner and an eastern boundary of the land comprised in Filed Plan 938486 at a point bearing successively northerly 307.2 metres and northerly 69.6 metres from the southeastern corner of the land comprised in the aforesaid Filed Plan 938486 thence by a line bearing 127 degrees 58 minutes 35 seconds 3080.6 metres such boundary intersecting the southern boundary of Portion 105 at a point bearing westerly 494.1 metres from its southeastern corner the northern and eastern boundaries of Portion 106 at points bearing westerly 438.3 metres and southerly 237 metres respectively from its northeastern corner the western boundary of Portion 97 at a point bearing northerly 304.6 metres from its southwestern corner the northern and eastern boundaries of Portion 90 at points bearing westerly 216.3 metres and southerly 117.5 metres respectively from its northeastern corner and the western boundary of Portion 88 at a point bearing southerly 128.4 metres from its northwestern corner thence by a line bearing 123 degrees 55 minutes 1574.1 metres such boundary intersecting the eastern boundary of Portion 84 at a point bearing southerly 197.3 metres from its northeastern corner the western boundary of Portion 85 at a point bearing southerly 206.6 metres from its northwestern corner the southern boundary of Lot 197 of Deposited Plan 2493 at a point bearing westerly 274.5 metres from its southeastern corner and the northern boundary of Lot 198 of Deposited Plan 2493 at a point bearing westerly 230.8 metres from its northeastern corner thence by a line bearing 126 degrees 28 minutes 40 seconds 5927.8 metres such boundary intersecting the eastern boundary of Lot 198 of Deposited Plan 2493 at a point bearing southerly 117.4 metres from its northeastern corner the western boundary of Lot 170 at a point bearing southerly 127.8 metres from its northwestern corner the lastmentioned Lot being situate in the Parish of Goomanna County of Harden the southeastern boundary of Lot 60 at a point bearing southwesterly 271.1 metres from the eastern corner of Lot 59 the northeastern boundary of Lot 84 at a point bearing southeasterly 289.2 metres from its northern corner the northwestern boundary of Lot 96 at a point bearing northeasterly 310 metres from its western corner the southern boundary of Lot 96 at a point bearing westerly 150.1 metres from its southeastern corner the northern boundary of Lot 159 at a point bearing westerly 382.2 metres from the intersection of a southern side of Hawdon Road with a northwestern boundary of the Railway from Gelong to Boorowa the southeastern boundary of that Railway at a point bearing southwesterly 210.7 metres from its intersection with Hawdon Road the eastern boundary of Lot 157 at a point bearing southerly 322.8 metres from its northeastern corner a southern boundary of Lot 141 at a point bearing easterly 306.6 metres from its southwestern corner northern and eastern boundaries of Lot 142 of Deposited Plan 2493 at points bearing westerly 346.9 metres and southerly 175 metres respectively from its northeastern corner thence

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No. 73 A Canberra, Thursday, 5 September 1974

AUSTRALIA

Lands Acquisition Act 1955-1973

NOTICE OF THE ACQUISITION OF LAND

1. In this notification 'Authority', 'petroleum', and 'pipeline' have respectively the same meaning as those expressions have in the *Pipeline Authority Act 1973*.
 2. I hereby notify that His Excellency the Governor-General of Australia, acting with the advice of the Executive Council, has pursuant to the provisions of the *Pipeline Authority Act 1973* (hereinafter called 'the Act') and the *Lands Acquisition Act 1955-1973*, authorised the acquisition by compulsory process of an easement in favour of the Authority over the land described in Schedule 1 and in Schedule 2 at all times and from time to time to construct, maintain and operate pipelines or parts thereof under the Act together with the rights set out in Schedule 3 in, under, on, across, over and through the said land for the purposes of the construction, maintenance and operation of any such pipeline or part thereof and for any purpose incidental to any of those purposes.
 3. I hereby declare that the said easement is acquired for the following public purpose approved by the Governor-General namely: For the purposes of the Authority under the Act, such purposes being the construction, maintenance and operation of pipelines or parts thereof under and in accordance with the Act.

SCHEDULE 1

All that piece of land 25385 metres wide bounded generally on the southwest generally on the south and generally on the southeast by the line designated hereunder situate between the vicinity of Boorowa and the vicinity of Bowral in the Shires of Boorowa Gunning Mulwarre Wingecarribee and Mittagong and the City of Goulburn being part of Roads part of Closed Roads part of Public Roads and part of Reserved Roads part of the beds of Dirt Hole Creek Grogans Creek and Pudman Creek and part of Portions 210 50 302 96 97 279 126 216 148 298 151 284 153 295 296 53 71 and 285 and part of Portions 99 95 188 and 51 of the Parish of Gage County of King part of Road parts of Reserved Road part of Public Road part of Portions 10 98 122 and 97 and parts of Portions 9 11 and 12 of the Parish of Option part of Roads part of Closed Roads part of Reserved Roads part of Public Roads part of the beds of Flakeney Creek Langs Creek and Blakney Creek part of Portions 130 19 103 42 44 58 41 171 185 157 156 70 35 119 203 145 143 118 127 141 152 198 153 and 37 part of Lot 1 and parts of Lot 2 of Deposited Plan 560252 and parts of Portions 48 and 146 of the Parish of Blakney part of Roads part of Public Roads part of Reserved Road part of the beds of Little Plains Creek Savages Creek and Handys Creek part of Portions 124 245 218 219 215 7 91 238 246 221 71 237 and 257 and parts of Portions 4 198 and 6 of the Parish of Kildare part of Roads part of Public Road part of Reserved Roads part of the beds of Felled Timber Creek and Jerrawa Creek part of Portions 249 290 289 255 92 146 148 224 97 35 39 100 69 and 42 and parts of Portions 34 and 43 of the

Parish of Bunton County of King part of Roads part of Public Roads and part of Portions 52 53 54 56 55 164 112 188 29 31 33 147 38 40 39 274 239 280 258 259 308 291 and part of the bed of Oolong Creek part of Lots 1 and 2 of Deposited Plan 506211 and parts of Portions 149 and 30 of the Parish of Dalton part of the bed of the Lachlan River part of Reserved Road and part of the land comprised in Filed Plan 361534 part of Lots 2 and 3 of Filed Plan 361533 and part of Portions 4 and 64 of the Parish of Garway part of Public Roads part of Closed Road part of the beds of the Lachlan River Dicksons Creek and Diamond Creek part of Portions 51 13 14 and 15 and parts of Portion 1 Remainder of the Parish of Merrill part of Reserved Road part of Roads part of Closed Road parts of Lot A of Filed Plan 408354 part of Portions 162 168 29 172 171 150 51 52 and 167 and part of Portions 194 and 195 of the Parish of Cullarin County of King part of Roads part of Public Roads part of the bed of Murbilly Creek part of Travelling Stock and Camping Reserve 74648 notified in the New South Wales State Government Gazette dated 14 December 1951 part of Portions 91 22 16 15 14 13 and 104 part of Lot 1 of Deposited Plan 208463 and parts of Portions 23 and 98 of the Parish of Murrumbilly County of Argyle part of Reserved Road part of Roads part of Public Roads part of Lots 1 and 2 of Deposited Plan 563964 parts of the land comprised in Filed Plan 940856 part of Portions 124 113 62 107 122 123 and 152 and parts of Portion 134 of the Parish of Bredaibane part of Road part of Public Road part of the bed of the Wollondilly River part of Lots 23 and 24 of Filed Plan 978813 part of Portion 6 and parts of Portion 7 of the Parish of Mummel part of Closed Roads part of Road part of Public Roads part of Lot C of Filed Plan 151574 part of Portions 210 77 76 75 78 73 72 79 43 3B 216 1A 132 215 and 59 of the Parish of Baw Baw part of Public Roads part of the Railway from Goulburn to Crookwell part of Lots 4 2 and 1 of Deposited Plan 29252 part of Lot 3 of Deposited Plan 223213 part of Lots 20 21 and 22 of Deposited Plan 562173 part of Lots 29 1 32 and 33 of Deposited Plan 479 parts of Lot 34 of Deposited Plan 479 and part of Lots A and B of Filed Plan 357487 Parish of Narrangarril part of Roads part of Public Roads part of the Main Southern Railway parts of the bed of the Wollondilly River and part of Portions 223 57 59 37 and 121 and parts of Portions 228 225 and 122 of the Parish of Towrang part of Public Road part of Closed Road part of Portions 21 165 17 and 18 of the Parish of Norrong part of Roads part of Closed Road part of the bed of the Wollondilly River part of the bed of Osborns Creek part of Lots 2 and 3 of Deposited Plan 245851 and part of Portions 48 98 78 66 and 5 of the Parish of Nattery part of the Main Southern Railway part of Portion 6 and parts of Portion 7 of the Parish of Billyrambija part of Roads part of Reserved Road and parts of Portion 230 of the Parish of Marulan part of Roads part of Public Roads part of the beds of Joaramin Creek and Uringalia Creek part of Lot 2 of Deposited Plan 553787 and part of Portions 214 215 174 246 117 255 211 12 182 184 243 40 122 169 204 261

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209 185 51 50 and 1 and parts of Portion 113 of the Parish of Uringalla County of Argyle part of Road part of Reserved Road part of the bed of Paddys River part of Trigonometrical Reserve 17120 notified in the New South Wales State Government Gazette dated 21 January 1893 part of Lots 2 and 3 of Deposited Plan 551824 part of Portions 156 173 137 and 186 and parts of Portions 15 and 157 of the Parish of Wingello County of Camden part of Roads part of Public Roads part of Closed Road part of Lot 1 and parts of Lot 2 of Deposited Plan 506714 part of Lot 8 of Deposited Plan 411735 part of Lots 1 to 9 inclusive of Deposited Plan 240164 part of Lots 11 and 12 of Deposited Plan 556965 part of Lots 2 3 and 4 of Deposited Plan 239391 part of Lots 5 to 11 inclusive of Deposited Plan 241054 part of Lot 2 of Deposited Plan 219595 parts of Portion 137 and part of Portions 13 1 and 36 of the Parish of Murrumbidgee part of Road part of Public Roads part of the bed of Black Bobs Creek parts of Lot 1 of Deposited Plan 219841 part of Lots 1 to 5 inclusive of Deposited Plan 239258 part of the land comprised in Filed Plan 63772 part of Lots 2 to 5 inclusive and parts of Lot 6 of Deposited Plan 243463 parts of Lot 2 of Deposited Plan 18079 and part of Portions 126 130 129 and 143 of the Parish of Sutton Forest part of Lots 4 and 5 of Deposited Plan 11147 Parish of Belanglo part of Roads part of Public Roads part of the bed of Medway Rivulet parts of the bed of Whites Creek part of the Main Southern Railway part of Lot 1 of Deposited Plan 549837 part of Lots 6 7 and 8 of Deposited Plan 2715 part of Lots 5 and 10 of Deposited Plan 19658 part of Lot 6 of Section 1 and part of Lots 1 to 4 inclusive of Section 2 of Deposited Plan 33517 part of Lot 2 of Deposited Plan 510645 part of Lot 3 of Deposited Plan 4441 part of Lots 7 8 and 11 to 13 inclusive of Section C and part of Lots 11 and 18 of Section D of Deposited Plan 2810 part of Lot 22 of Deposited Plan 5284 part of Portions 86 and 87 and parts of Portions 37 33 32 and 14 Remainder of the Parish of Bong Bong part of the bed of Kellys Creek and part of the bed of the Wingecarribee River part of Lots 12 and 13 of Deposited Plan 553406 part of Lot 11 of Deposited Plan 551149 part of Lots 27 and 28 of Deposited Plan 3147 and part of Portion 188 Remainder of the Parish of Yarrunga part of Road part of Lots 4A and 5A of Deposited Plan 3147 and part of Lot 16 of Section A of Deposited Plan 1416 Parish of Mittagong County of Camden State of New South Wales; commencing at the easternmost southern corner of the easement acquired by notification in the Australian Government Gazette No. 56A dated 9 July 1974 and firstly therein described and bounded thence generally on the southwest by lines bearing 118 degrees 6 minutes 35 seconds 1126.8 metres and 115 degrees 52 minutes 10 seconds 3271.6 metres successively the lastmentioned boundary intersecting an eastern boundary of Portion 210 of the Parish of Olney County of King at a point bearing northerly 71.22 metres from its corner opposite the southwestern corner of Portion 50 the western and southern boundaries of Portion 50 at points bearing northerly 41.34 metres and easterly 140.59 metres respectively from its southwestern corner the northernmost northern boundary of Portion 302 at a point bearing easterly 188.87 metres from its northernmost northwestern corner the western boundary of Portion 99 at a point bearing southerly 87.1 metres from the northeastern corner of Portion 302 an eastern and a southern boundary of Portion 99 at points bearing northerly 40.93 metres and easterly 143.77 metres respectively from its corner opposite the southwestern corner of Portion 96 the western and the southern

boundaries of Portion 96 at points bearing northerly 15.1 metres and easterly 53 metres respectively from its southwestern corner a further eastern boundary of Portion 99 at a point bearing southerly 77.34 metres from its easternmost northeastern corner the western boundary of Portion 95 at a point bearing southerly 103.21 metres from its northwestern corner and the eastern boundary of Portion 97 at a point bearing northerly 216.14 metres from its southeastern corner thence by a line bearing 123 degrees 49 minutes 50 seconds 2558.09 metres such boundary intersecting the western and the southern boundaries of Portion 126 at points bearing northerly 4 metres and easterly 8.8 metres respectively from its southwestern corner the northern boundary of Portion 216 at a point bearing easterly 52.495 metres from its northwestern corner the eastern boundary of Portion 216 at a point bearing southerly 183.5 metres from its northeastern corner of the western boundary of Portion 148 at a point bearing southerly 167.2 metres from its northwestern corner and the easternmost eastern boundary of Portion 148 at a point bearing northerly 221.8 metres from its southeastern corner thence by a line bearing 122 degrees 4 minutes 15 seconds 930 metres such boundary intersecting an eastern boundary of Portion 298 at a point bearing northerly 129.1 metres from the intersection of the aforesaid eastern boundary with the northern boundary of Portion 204 the western and southern boundaries of Portion 151 at points bearing northerly 100.5 metres and easterly 237 metres respectively from its southwestern corner and the northern boundary of Portion 204 at a point bearing easterly 484.8 metres from its northwestern corner thence by a line bearing 125 degrees 2 minutes 55 seconds 1337.6 metres such boundary intersecting the eastern boundary of Portion 153 at a point bearing northerly 8.8 metres from its southeastern corner an eastern side of a Reserved Road within Portion 295 at a point bearing southerly 0.77 metres from the intersection of the aforesaid eastern side of the Reserved Road with the prolongation eastwards of the Southern boundary of Portion 153 and the eastern boundary of Portion 295 at a point bearing southerly 335.3 metres from its northeastern corner thence by a line bearing 123 degrees 49 minutes 45 seconds 1274.63 metres such boundary intersecting the southern boundary of Portion 296 at a point bearing westerly 724.5 metres from its easternmost corner and the northern boundary of Portion 53 at a point bearing westerly 685.2 metres from its northernmost northeastern corner thence by a line bearing 130 degrees 29 minutes 50 seconds 2174.8 metres such boundary intersecting a northeastern boundary of Portion 188 at a point bearing southeasterly 70 metres from the intersection of a southwestern side of a road 20.115 metres wide with a northern boundary of Portion 188 a southwestern boundary of Portion 188 at a point bearing southeasterly 83.4 metres from the intersection of a northeastern side of a road 20.115 metres wide with a northern boundary of Portion 188 the southwestern and the northeastern sides of a Reserved Road within Portion 51 at points bearing northwesterly 139.7 metres and northwesterly 126.3 metres respectively from their respective intersections with the southern boundary of Portion 51 the western and southern boundaries of Portion 71 at points bearing northerly 116.3 metres and easterly 191.3 metres respectively from its southwestern corner a northern boundary of Portion 285 at a point bearing easterly 224.4 metres from its corner opposite the southwestern corner of Portion 71 of the Parish of Olney thence by lines bearing 137 degrees 15 minutes 20 seconds 30.27 metres and 144 degrees 45 seconds 4491.25 metres successively the lastmentioned boundary

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intersecting the northern and eastern boundaries of Portion 16 of the Parish of Opton at points bearing westerly 222.3 metres and southerly 222.2 metres respectively from its northeastern corner a southwestern boundary of Portion 165 at a point bearing southeasterly 3.2 metres from its westernmost corner the southern boundary of Portion 165 at a point bearing easterly 178.8 metres from its southwestern corner a southeastern boundary of Portion 164 at a point bearing northeasterly 293.6 metres from its southernmost corner the western boundary of Portion 98 at a point bearing southerly 98.9 metres from its northwestern corner the southern boundary of Portion 98 at a point bearing easterly 125.3 metres from its southwestern corner the southern boundary of Portion 122 at a point bearing easterly 282 metres from its southwestern corner the southern boundary of Portion 97 of the Parish of Opton at a point bearing easterly 678.8 metres from its southwestern corner the northern boundary of Portion 44 of the Parish of Blakney at a point bearing westerly 10.4 metres from its northeastern corner and the western boundary of Portion 19 at a point bearing southerly 10.1 metres from its northwestern corner thence by lines bearing 126 degrees 26 minutes 55 seconds 24.46 metres and 108 degrees 53 minutes 1673 metres successively the lastmentioned boundary intersecting the eastern boundary of Portion 103 at a point bearing northerly 177.6 metres from its southeastern corner the western and a southern boundary of Portion 58 at points bearing northerly 18.4 metres and easterly 191.3 metres respectively from its southwestern corner and the eastern boundary of Portion 41 at a point bearing southerly 50.8 metres from its northeastern corner thence by a line bearing 98 degrees 23 minutes 20 seconds 2026.77 metres such boundary intersecting an eastern boundary of Portion 48 at a point bearing southerly 1.54 metres from the intersection of the aforesaid eastern boundary with a southeastern side of a Public Road within Portion 48 the eastern boundary of Portion 185 at a point bearing northerly 13.71 metres from its southeastern corner and an eastern boundary of Portion 157 at a point bearing northerly 17.71 metres from its southernmost southeastern corner thence by lines bearing 107 degrees 19 minutes 50 seconds 22.47 metres 122 degrees 50 minutes 30 seconds 22.47 metres and 131 degrees 47 minutes 1967.22 metres successively the lastmentioned boundary intersecting the southern boundary of Portion 156 at a point bearing westerly 144.3 metres from its southeastern corner the western and the southern boundaries of Portion 35 at points bearing northerly 54.9 metres and easterly 84.3 metres respectively from its southwestern corner an eastern boundary of Portion 119 at a point bearing northerly 122.3 metres from its corner opposite the southwestern corner of Portion 203 the western and southern boundaries of Portion 203 at points bearing northerly 89.2 metres and easterly 137.7 metres respectively from its southwestern corner the northern boundary of Portion 145 at a point bearing easterly 55.2 metres from its northwestern corner a northern and an eastern boundary of Portion 146 at points bearing westerly 9.15 metres and southerly 5.92 metres respectively from its northernmost northeastern corner and another northern and another eastern boundary of Portion 146 at points bearing westerly 10.93 metres and southerly 7.08 metres from its easternmost northeastern corner thence by a line bearing 140 degrees 46 minutes 25 seconds 1031.1 metres such boundary intersecting a western boundary of Portion 127 at a point bearing southerly 73.65 metres from its northernmost northwestern corner an eastern boundary of Portion 127 at a point bearing southerly 204.4 metres from its north-

eastern corner the southern boundary of Portion 141 at a point bearing easterly 242.5 metres from its southwestern corner the southern side of a Reserved Road within Portion 152 at a point bearing easterly 265.1 metres from the easternmost southeastern corner of Portion 127 and the western boundary of Portion 108 at a point bearing southerly 84.6 metres from its northwestern corner thence by lines bearing 127 degrees 30 minutes 25 seconds 18.36 metres and 114 degrees 14 minutes 20 seconds 1442.2 metres successively the lastmentioned boundary intersecting a northwestern side of the Reserved Road within Lot 2 of Deposited Plan 560252 at a point bearing southwesterly 95.8 metres from the intersection of the aforesaid northwestern side with a northeastern boundary of the aforesaid Lot 2 and a northeastern boundary of Lot 2 of Deposited Plan 560252 at a point bearing southeasterly 96 metres from the intersection of a southeastern side of a Reserved Road with the aforesaid northeastern boundary of Lot 2 thence by a line bearing 116 degrees 32 minutes 20 seconds 2466.58 metres such boundary intersecting the northern and eastern boundaries of Portion 153 of the Parish of Blakney at points bearing westerly 46.2 metres and southerly 14.3 metres respectively from its northeastern corner the eastern boundary of Portion 4 of the Parish of Kildare at a point bearing northerly 103.8 metres from the northeastern corner of Portion 130 a western and a southern boundary of Portion 245 at points bearing northerly 107.8 metres and easterly 344.8 metres respectively from its southernmost southwestern corner and the northern boundary of Portion 218 at a point bearing easterly 389 metres from its northwestern corner thence by a line bearing 116 degrees 30 minutes 40 seconds 1840.82 metres such boundary intersecting the southern boundary of Portion 218 at a point bearing easterly 830.9 metres from its southwestern corner and the northern boundary of Portion 215 at a point bearing easterly 95.7 metres from the intersection of the aforesaid northern boundary with a southwestern boundary of a Reserved Road within Portion 215 thence by a line bearing 123 degrees 1 minute 30 seconds 1030.7 metres such boundary intersecting the northern and eastern boundaries of Portion 91 at points bearing westerly 51.2 metres and southerly 22.6 metres respectively from its northeastern corner thence by a line bearing 117 degrees 45 minutes 30 seconds 1292.13 metres such boundary intersecting the easternmost eastern boundary of Portion 238 at a point bearing northerly 73.33 metres from its easternmost southeastern corner and a western and the southern boundary of Portion 246 at points bearing northerly 86.74 metres and easterly 260.3 metres respectively from its southernmost southwestern corner thence by lines bearing 122 degrees 52 minutes 55 seconds 30.36 metres and 128 degrees 15 seconds 5415.97 metres the lastmentioned boundary intersecting the eastern boundary of Portion 71 at a point bearing northerly 27.34 metres from its southeastern corner a western and a southern boundary of Portion 237 of the Parish of Kildare at points bearing northerly 16.31 metres and easterly 29.77 metres respectively from its southernmost southwestern corner the eastern boundary of Portion 249 of the Parish of Bunton at a point bearing northerly 30 metres from its southeastern corner the southern boundary of Portion 257 of the Parish of Kildare at a point bearing westerly 49.74 metres from its southeastern corner the northern and an eastern boundary of Portion 289 of the Parish of Bunton at points bearing westerly 380.2 metres and southerly 193.1 metres respectively from its northeastern corner the easternmost eastern boundary of Portion 255 at a point bearing northerly 153.7

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metres from its southeastern corner the eastern boundary of Portion 146 at a point bearing northerly 189.7 metres from its southeastern corner a southern boundary of Portion 148 at a point bearing easterly 58.5 metres from its corner opposite the northwestern corner of Portion 224 the northern boundary of Portion 224 at a point bearing easterly 75.28 metres from its northwestern corner the western and southern boundaries of Portion 35 at points bearing northerly 27.07 metres and easterly 49.87 metres respectively from its southwestern corner the western and southern boundaries of Portion 39 at points bearing northerly 48.4 metres and easterly 94.8 metres respectively from its southwestern corner the southern side of a Reserved Road within Portion 100 and the eastern boundary of Portion 100 at points bearing westerly 129.6 metres and southerly 66.7 metres respectively from the intersection of the aforesaid southern side of a Reserved Road with the eastern boundary of Portion 100 thence by lines bearing successively 120 degrees 19 minutes 45 seconds 1681.5 metres such boundary intersecting the northern and eastern boundaries of Portion 42 of the Parish of Bunton at points bearing westerly 150.3 metres and southerly 38.5 metres respectively from its northeastern corner the western boundary of Portion 53 of the Parish of Dalton at a point bearing northerly 213.8 metres from its southwestern corner the eastern boundary of that Portion at a point bearing northerly 16.34 metres from the northwestern corner of Portion 56 and the northern boundary of the aforesaid Portion 56 at a point bearing easterly 42 metres from its northwestern corner thence by a line bearing 147 degrees 1 minute 20 seconds 1246.4 metres such boundary intersecting the eastern boundary of Portion 56 at a point bearing northerly 15.6 metres from its southeastern corner the western boundary of Portion 55 at a point bearing northerly 250.3 metres from its southwestern corner the western boundary and a southern boundary of Portion 164 at points bearing northerly 26.4 metres and easterly 80.9 metres respectively from its westernmost southwestern corner the eastern boundary of Portion 112 at a point bearing northerly 103 metres from the northernmost northwestern corner of Portion 114 and the western boundary of Portion 188 at a point bearing northerly 76.3 metres from its southwestern corner thence by a line bearing 114 degrees 8 minutes 55 seconds 1113.1 metres such boundary intersecting the southern boundary of Portion 188 at a point bearing westerly 65.8 metres from its southeastern corner the northern boundary of Portion 149 at a point bearing westerly 287.4 metres from its intersection with a southwestern side of a Public Road and an eastern boundary of Portion 149 at a point bearing southerly 125.9 metres from its northeastern corner thence by a line bearing 117 degrees 16 minutes 50 seconds 1927.51 metres such boundary intersecting the eastern boundary of Portion 30 at a point bearing northerly 64.1 metres from its southeastern corner the western and southern boundaries of Portion 31 at points bearing northerly 58.7 metres and easterly 173.8 metres respectively from its southwestern corner the eastern boundary of Portion 33 at a point bearing northerly 218.4 metres from its southeastern corner the western and southern boundaries of Portion 147 at points bearing northerly 71.1 metres and easterly 219.1 metres from its southwestern corner the eastern boundary of Portion 38 at a point bearing southerly 26.8 metres from its northeastern corner the eastern boundary of Portion 39 at a point bearing northerly 277 metres from its southeastern corner and the easternmost eastern boundary of Portion 274 at a point bearing northerly 141.9 metres from its northernmost southeastern

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corner thence by a line bearing 124 dec. sec. 20 seconds 672.7 metres such boundary intersecting the southernmost southern boundary of Portion 239 at a point bearing westerly 5.66 metres from its southernmost southeastern corner the western boundary of Portion 280 at a point bearing northerly 8.18 metres from the northeastern corner of Portion 41 and the eastern boundary of Portion 280 at a point bearing northerly 125.03 metres from its southeastern corner thence by a line bearing 107 degrees 48 minutes 20 seconds 640.7 metres such boundary intersecting the easternmost eastern boundary of Portion 258 at a point bearing southerly 176 metres from its intersection with a southwestern side of a Reserved Road and the western boundary of Portion 259 at a point bearing southerly 203.6 metres from its northwestern corner thence by lines bearing successively 115 degrees 22 minutes 30.215 metres 122 degrees 55 minutes 50 seconds 193.99 metres 107 degrees 43 minutes 45 seconds 25.12 metres and 92 degrees 31 minutes 25 seconds 457.2 metres the lastmentioned boundary intersecting the western boundary of Portion 308 at a point bearing southerly 330 metres from its northwestern corner thence by a line bearing 90 degrees 5 minutes 15 seconds 1244.2 metres such boundary intersecting the eastern boundary of Portion 308 at a point bearing southerly 262.6 metres from its northeastern corner and an eastern boundary of Portion 291 at a point bearing southerly 220.1 metres from its northernmost northeastern corner thence by a line bearing 94 degrees 14 minutes 30 seconds 1839.94 metres such boundary intersecting the southernmost southwestern boundary of Lot 2 of Deposited Plan 506211 Parish of Dalton at a point bearing northwesterly 291.79 metres from its southernmost corner thence by lines bearing successively 93 degrees 32 minutes 15 seconds 1105.4 metres and 90 degrees 9 minutes 40 seconds 944.7 metres the lastmentioned boundary intersecting a southeastern boundary of the land comprised in Filed Plan 361534 Parish of Garway at a point bearing southwesterly 2.91 metres from its easternmost northeastern corner thence by lines bearing successively 93 degrees 46 minutes 50 seconds 511.45 metres 97 degrees 32 minutes 20 seconds 758.45 metres and 105 degrees 24 minutes 55 seconds 30.19 metres the lastmentioned boundary intersecting the western boundary of a Public Road delineated on plan catalogued in the New South Wales Department of Lands R23917 1603 at a point bearing southerly 61.935 metres from its northernmost corner thence by lines bearing successively 113 degrees 17 minutes 45 seconds 1219.1 metres and 106 degrees 5 minutes 20 seconds 1426.53 metres the lastmentioned boundary intersecting the eastern boundary of Portion 1 Remainder of the Parish of Narrill at a point bearing northerly 187.9 metres from the northwestern corner of Portion 12 thence by lines bearing successively 107 degrees 37 minutes 5 seconds 824.24 metres 107 degrees 34 minutes 15 seconds 1048.89 metres 116 degrees 21 minutes 45 seconds 529.23 metres 111 degrees 36 minutes 15 seconds 972.5 metres 118 degrees 13 minutes 15 seconds 615.56 metres 110 degrees 50 minutes 15 seconds 437 metres 120 degrees 36 minutes 50 seconds 243.94 metres 100 degrees 6 minutes 50 seconds 544.72 metres 105 degrees 37 minutes 55 seconds 30.34 metres and 111 degrees 9 minutes 10 seconds 772.36 metres the lastmentioned boundary intersecting the western boundary of Portion 162 of the Parish of Cullarin at a point bearing northerly 143.9 metres from its southwestern corner thence by a line bearing 119 degrees 48 minutes 20 seconds 30.13 metres such boundary intersecting the western boundary of Portion 29 at a point bearing northerly 483.9 metres from its southwestern corner thence by a line bearing 128

degrees 27 minutes 40 seconds 1099.04 metres such boundary intersecting the eastern boundary of Portion 29 at a point bearing northerly 322.1 metres from its southeastern corner the western and southern boundaries of Portion 172 at points bearing northerly 71 metres and easterly 126.2 metres respectively from its southwestern corner the easternmost eastern boundary of Portion 195 at a point bearing northerly 239.1 metres from its southeastern corner thence by a line bearing 118 degrees 34 minutes 15 seconds 541.96 metres such boundary intersecting the western boundary of Portion 150 at a point bearing southerly 268.8 metres from its northwestern corner thence by a line bearing 90 degrees 4 minutes 15 seconds 241.17 metres such boundary intersecting the western boundary of Portion 51 at a point bearing southerly 395.9 metres from its northwestern corner thence by lines bearing successively 104 degrees 49 minutes 20 seconds 29.54 metres and 118 degrees 34 minutes 30 seconds 826.63 metres the lastmentioned boundary intersecting the eastern boundary of Portion 51 at a point bearing southerly 488.84 metres from its northeastern corner and the eastern boundary of Portion 52 at a point bearing southerly 264.3 metres from its easternmost northeastern corner thence generally on the south by lines bearing successively 88 degrees 42 minutes 15 seconds 155.97 metres 94 degrees 46 minutes 50 seconds 30.31 metres and 100 degrees 51 minutes 30 seconds 621.87 metres the lastmentioned boundary intersecting the easternmost eastern boundary of Portion 194 of the Parish of Cullarin County of King at a point bearing southerly 12 metres from its northeastern corner thence by a line bearing 90 degrees 39 minutes 10 seconds 1898.04 metres such boundary intersecting the northern boundary of Portion 91 of the Parish of Mutmutbilly County of Argyle at a point bearing easterly 494.6 metres from its northwestern corner thence by a line bearing 85 degrees 20 minutes 50 seconds 407.76 metres and thence generally on the southeast by a line bearing 60 degrees 43 minutes 10 seconds 969.38 metres such boundary intersecting the eastern boundary of Portion 98 at a point bearing southerly 105 metres from its easternmost northeastern corner and the western boundary of Portion 16 at a point bearing northerly 194.6 metres from its southwestern corner thence by a line bearing 55 degrees 42 minutes 35 seconds 2100.67 metres such boundary intersecting the western and eastern boundaries of Portion 15 at points bearing northerly 296 metres from its southwestern corner and northerly 664.1 metres from its southeastern corner respectively thence by lines bearing successively 64 degrees 54 minutes 15 seconds 30.09 metres and 74 degrees 6 minutes 50 seconds 880.21 metres the lastmentioned boundary intersecting the northernmost eastern boundary of Portion 13 of the Parish of Mutmutbilly at a point bearing northerly 463.2 metres from its northernmost southeastern corner and a western boundary of Lot 1 of Deposited Plan 208463 at a point bearing northerly 119.6 metres from its westernmost southwestern corner thence by lines bearing successively 74 degrees 7 minutes 25 seconds 1892.01 metres and 55 degrees 6 minutes 30 seconds 1114.08 metres the lastmentioned boundary terminating on a western boundary of Portion 124 of the Parish of Bredalbane at a point bearing northerly 197.2 metres from the northwestern corner of Portion 162 thence by a line bearing 55 degrees 6 minutes 30.9 metres such boundary intersecting the southern and eastern boundaries of Portion 113 at points bearing westerly 94.7 metres and northerly 93 metres from its southeastern corner thence by a line bearing 56 degrees 36 minutes 25 seconds 1041.11 metres such boundary intersecting the southern and eastern boundaries of Portion 107 at points bearing westerly 308.3 metres and northerly 288.7 metres

respectively from its southeastern corner the eastern side of a Reserved Road contiguous with the western boundary of Portion 122 at a point bearing southerly 80.4 metres from the intersection of the aforesaid eastern side of that Road with a northern boundary of Portion 122 the northern boundary of the aforesaid Portion 122 at a point bearing easterly 86.8 metres from the aforesaid intersection of the eastern side of the Reserved Road with the northern boundary of Portion 102 and the southern boundary of Portion 123 at a point bearing easterly 468.7 metres from its southwestern corner thence by lines bearing successively 68 degrees 59 minutes 55 seconds 29.77 metres and 81 degrees 23 minutes 55 seconds 3385.58 metres the lastmentioned boundary intersecting the eastern boundary of Portion 123 at a point bearing northerly 396.4 metres from its southeastern corner the western boundary of the land comprised in Filed Plan 940856 at a point bearing northerly 605.6 metres from its southwestern corner the eastern boundary of that land comprised in Filed Plan 940856 at a point bearing southerly 796.4 metres from the intersection of the aforesaid eastern boundary with a southwestern side of a Public Road the western boundary of Portion 152 at a point bearing southerly 525.7 metres from the intersection of the said western boundary with a southwestern side of the aforesaid Public Road and the southwestern boundary of Lot 1 of Deposited Plan 563946 at a point bearing successively northwesterly 351.84 metres northwesterly 131.9 metres and northwesterly 56.1 metres from its southern corner thence by a line bearing 86 degrees 44 minutes 25 seconds 3357.7 metres such boundary intersecting the northwestern boundary of Lot 2 of Deposited Plan 563946 Parish of Bredalbane at a point bearing northerly 396 metres from its westernmost corner and the western boundary of Lot 23 of Filed Plan 978813 Parish of Mummel at a point bearing southerly 72.7 metres from its northwestern corner thence by a line bearing 77 degrees 34 minutes 5 seconds 695.24 metres such boundary intersecting the western side of a Road at a point bearing northerly 104.6 metres from the northeastern corner of Lot 27 of the aforesaid Filed Plan thence by lines bearing successively 84 degrees 3 minutes 5 seconds 30.285 metres and 90 degrees 32 minutes 20 seconds 1455.08 metres the lastmentioned boundary intersecting the western and northern boundaries of Portion 210 Parish of Baw Baw at points bearing southerly 4.785 metres and easterly 34.45 metres respectively from its northwestern corner the southern and eastern boundaries of Portion 77 at points bearing westerly 142.65 metres and northerly 19.8 metres respectively from its southeastern corner the western boundary of Portion 75 at a point bearing northerly 75 metres from its southwestern corner the eastern boundary of Portion 75 at a point bearing northerly 130.7 metres from its southeastern corner and the western boundary of Portion 78 at a point bearing northerly 134.1 metres from its southwestern corner thence by a line bearing 87 degrees 15 minutes 30 seconds 1537.41 metres such boundary intersecting the western boundary of Portion 73 at a point bearing southerly 257.77 metres from its northwestern corner the western boundary of Portion 72 at a point bearing southerly 179.7 metres from its northwestern corner the eastern boundary of Portion 72 at a point bearing southerly 100.12 metres from its northeastern corner a northern boundary of Portion 43 at a point bearing westerly 399.8 metres from its northernmost northeastern corner and an eastern boundary of Portion 3B at a point bearing northerly 60.52 metres from its southernmost southeastern corner thence by a line bearing 90 degrees 58 minutes 5 seconds 2442.95 metres such boundary intersecting an eastern

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boundary of Portion 216 at a point bearing southerly 94.2 metres from its northernmost northeastern corner a western boundary of Portion 1A at a point bearing southerly 91.1 metres from its northernmost northwestern corner a northern boundary of Portion 1A at a point bearing easterly 596.3 metres from its northernmost northwestern corner a western boundary of Portion 215 at a point bearing southerly 124.6 metres from its northwestern corner and the eastern boundary of Portion 215 at a point bearing southerly 78.6 metres from its northeastern corner thence by lines bearing successively 74 degrees 19 minutes 50 seconds 476.07 metres 74 degrees 19 minutes 40 seconds 555.145 metres 69 degrees 52 minutes 25 seconds 517.53 metres and 79 degrees 28 minutes 30 seconds 2730.55 metres the lastmentioned boundary intersecting the eastern boundary of Lot 1 of Deposited Plan 29252 Parish of Narrangarril at a point bearing southerly 93.34 metres from its northeastern corner a western boundary of Lot 20 of Deposited Plan 562173 at a point bearing northerly 63.46 metres from its southwestern corner thence by a line bearing 77 degrees 37 minutes 567.2 metres such boundary intersecting the northwestern boundary of Lot 29 of Deposited Plan 479 at a point bearing northeasterly 4.85 metres from its western corner thence by lines bearing successively 80 degrees 59 minutes 30 seconds 1622.12 metres and 65 degrees 37 minutes 45 seconds 1174.75 metres the lastmentioned boundary intersecting the western boundary of Lot B of Filed Plan 357487 at a point bearing northerly 123.24 metres from its southwestern corner and the eastern boundary of Lot A of the aforesaid Filed Plan at a point bearing northerly 22.615 metres from its southeastern corner thence by lines bearing successively 76 degrees 35 minutes 20 seconds 28.035 metres 95 degrees 26 minutes 40 seconds 28.035 metres 106 degrees 24 minutes 50 seconds 1200.76 metres 117 degrees 25 minutes 15 seconds 29.92 metres and 128 degrees 26 minutes 5 seconds 1145 metres the lastmentioned boundary intersecting the northernmost southeastern boundary of Lot 31 of Deposited Plan 479 Parish of Narrangarril at a point bearing southwesterly 65.48 metres from its northeastern corner thence by lines bearing successively 119 degrees 29 minutes 35 seconds 856.08 metres and 93 degrees 3 minutes 30 seconds 1612.4 metres the lastmentioned boundary intersecting the western boundary of Portion 57 of the Parish of Towrang at a point bearing northerly 47.5 metres from its intersection with a northern boundary of the Main Southern Railway the western boundary of Portion 59 at a point bearing northerly 35.7 metres from its intersection with the aforesaid northern boundary of the said Railway and the eastern boundary of Portion 37 at a point bearing northerly 36.5 metres from its intersection with the aforesaid northern boundary of the said Railway thence by lines bearing successively 142 degrees 16 minutes 40 seconds 38 metres 143 degrees 6 minutes 38 metres 162 degrees 19 minutes 40 seconds 97.63 metres 125 degrees 48 minutes 45 seconds 50.47 metres and 89 degrees 17 minutes 55 seconds 4116.95 metres the lastmentioned boundary intersecting the western boundary of Portion 122 Parish of Towrang at a point bearing northerly 6.1 metres from its southwestern corner the eastern boundary of Portion 165 of the Parish of Norrong at a point bearing northerly 54.94 metres from its southeastern corner thence by lines bearing successively 80 degrees 30 minutes 20 seconds 1387.92 metres and 82 degrees 42 minutes 35 seconds 1684.2 metres the lastmentioned boundary intersecting the southern boundary of Portion 98 of the Parish of Natterly at a point bearing easterly 839.9 metres from its

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southwestern corner the northwestern boundary of Lot 2 of Deposited Plan 245851 at a point bearing northeasterly 42.15 metres from its southwestern corner and the northern boundary of the said Lot 2 at a point bearing westerly 119.74 metres from its northeastern corner thence by lines bearing successively 65 degrees 26 minutes 25 seconds 1189.36 metres and 74 degrees 52 minutes 5 seconds 1484.39 metres the lastmentioned boundary intersecting the westernmost northern boundary of Portion 78 at a point bearing westerly 390.76 metres from its northernmost northeastern corner the southern and eastern boundaries of Portion 66 at points bearing westerly 346.68 metres and northerly 150.9 metres respectively from its southeastern corner and the western boundary of Portion 5 at a point bearing southerly 392.3 metres from its intersection with the easterly prolongation of the southern boundary of Portion 21 thence by lines bearing successively 74 degrees 51 minutes 35 seconds 1995.9 metres 74 degrees 56 minutes 5 seconds 3107.2 metres 49 degrees 29 minutes 37.475 metres 24 degrees 3 minutes 335.38 metres 33 degrees 52 minutes 22.305 metres 50 degrees 16 minutes 50 seconds 22.305 metres and 60 degrees 6 minutes 18.74 metres the lastmentioned boundary intersecting the eastern boundary of Portion 6 of the Parish of Bilyrambija at a point bearing southerly 202.13 metres from that boundary's intersection with the westerly prolongation of the southern boundary of Portion 214 of the Parish of Uringalla the western and northern boundaries of Portion 230 of the Parish of Marulan at points bearing southerly 165.48 metres and easterly 201.24 metres from its northwestern corner the southern boundary of Portion 214 of the Parish of Uringalla at a point bearing easterly 225.7 metres from its southwestern corner and the eastern boundary of Portion 214 at a point bearing northerly 482.39 metres from its southeastern corner thence by a line bearing 61 degrees 36 minutes 55 seconds 3973.82 metres such boundary intersecting the eastern boundary of Portion 215 at a point bearing northerly 972.3 metres from its southeastern corner the northern boundary of Portion 113 at a point bearing westerly 51.01 metres from its most northeasterly corner and the southern boundary of Lot 2 of Deposited Plan 553787 at a point bearing easterly 764.5 metres from its southernmost southwestern corner thence by lines bearing 68 degrees 4 minutes 40 seconds 518.95 metres and 68 degrees 4 minutes 1898.15 metres the lastmentioned boundary intersecting the northernmost eastern boundary of Portion 255 at a point bearing southerly 87.9 metres from its northeastern corner and the southern and eastern boundaries of Portion 182 at points bearing westerly 254.5 metres and northerly 151.3 metres respectively from its southeastern corner thence by a line bearing 70 degrees 49 minutes 30.15 metres such boundary intersecting the western boundary of Portion 184 at a point bearing southerly 22.6 metres from its northwestern corner thence by a line bearing 73 degrees 34 minutes 35 seconds 922.79 metres such boundary intersecting the northern boundary of Portion 184 at a point bearing easterly 43.6 metres from its northwestern corner the southern and eastern boundaries of Portion 243 at points bearing westerly 118 metres and northerly 57.6 metres respectively from its southernmost southeastern corner the western boundary of Portion 40 at a point bearing northerly 87.6 metres from its westernmost southwestern corner the northernmost eastern boundary of the said Portion 40 at a point bearing southerly 44.7 metres from its northernmost northeastern corner and the western boundary of Portion 122 at a point bearing southerly 55.2 metres from its inter-

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section with the southern boundary of Portion 156 thence by a line bearing 66 degrees 18 minutes 10 seconds 3761.56 metres such boundary intersecting the northern boundary of Portion 261 at a point bearing easterly 611.26 metres from its northwestern corner the southern boundary of Portion 209 at a point bearing easterly 273.9 metres from its southwestern corner the northern boundary of Portion 185 at a point bearing westerly 200 metres from its northeastern corner the southern boundary of Portion 51 at a point bearing westerly 144 metres from its southeastern corner the eastern boundary of Portion 50 at a point bearing southerly 176.6 metres from its northeastern corner and the western boundary of Portion 1 of the Parish of Urungalla County of Argyle at a point bearing southerly 184 metres from its northwestern corner thence by lines bearing successively 76 degrees 53 minutes 45 seconds 29.79 metres 86 degrees 53 minutes 45 seconds 321.87 metres and 68 degrees 39 minutes 30 seconds 998.5 metres the lastmentioned boundary intersecting the westernmost southern boundary of Lot 2 of Deposited Plan 551824 Parish of Wingello County of Camden at a point bearing easterly 180.27 metres from its westernmost southwestern corner the northern boundary of the said Lot 2 at a point bearing westerly 179 metres from the southeastern corner of Portion 156 and the southernmost western boundary of Portion 157 at a point bearing northerly 106 metres from its southernmost southwestern corner the western and northern boundaries of Trigonometrical Reserve 17126 notified in the New South Wales State Government Gazette dated 21 January 1893 at points bearing southerly 75.1 metres and easterly 126.7 metres respectively from its northwestern corner and a southeastern boundary of Portion 157 at a point bearing northeasterly 39.3 metres from the northeastern corner of the aforesaid Trigonometrical Reserve thence by a line bearing 66 degrees 18 minutes 50 seconds 1768.56 metres such boundary intersecting a northwestern boundary of Lot 3 of Deposited Plan 551824 at a point bearing successively southerly 59.94 metres and southwesterly 68.8 metres from its westernmost northwestern corner the southern boundary of Portion 173 at a point bearing westerly 263 metres from its southeastern corner the western boundary of Portion 137 at a point bearing northerly 2 metres from its southwestern corner the eastern boundary of Portion 137 of the Parish of Wingello at a point bearing northerly 161 metres from its southeastern corner and the western boundary of Portion 13 of the Parish of Murrumbidgee at a point bearing southerly 840 metres from its northwestern corner thence by lines bearing successively 48 degrees 2 minutes 40 seconds 287.32 metres 57 degrees 13 minutes 25 seconds 30.09 metres 66 degrees 24 minutes 15 seconds 386.66 metres 76 degrees 9 minutes 25 seconds 30.04 metres 85 degrees 54 minutes 40 seconds 270 metres and 78 degrees 55 minutes 25 seconds 1372.35 metres the lastmentioned boundary intersecting the easternmost northern boundary of Portion 1 at a point bearing westerly 44.7 metres from its easternmost northeastern corner the southern boundary of Lot 1 of Deposited Plan 506714 at a point bearing easterly 12.4 metres from its northernmost western corner and the eastern boundary of the said Lot 1 at a point bearing southerly 132.4 metres from its northern corner thence by a line bearing 79 degrees 12 minutes 35 seconds 393.88 metres such boundary intersecting the eastern boundary of Lot 2 of Deposited Plan 506714 at a point bearing northerly 541 metres from its southeastern corner the eastern boundary of Lot 3 of Deposited Plan 411735 at a point bearing northerly 223 metres from the northwestern corner of Lot 10 of Deposited Plan 240164 and the western

boundary of Lot 9 at a point bearing southerly 182 metres from its northwestern corner thence by a line bearing 74 degrees 50 minutes 40 seconds 1026 metres such boundary intersecting the northeastern boundary of Lot 9 aforesaid at a point bearing southeasterly 311 metres from its northwestern corner the eastern boundary of Lot 8 at a point bearing northerly 69.5 metres from its easternmost southeastern corner and the eastern boundary of Lot 7 at a point bearing northerly 40.07 metres from its easternmost southeastern corner thence by a line bearing 71 degrees 44 minutes 50 seconds 659.33 metres such boundary intersecting the eastern boundary of Lot 6 at a point bearing northerly 51 metres from its southeastern corner the easternmost eastern boundary of Lot 5 at a point bearing northerly 44.57 metres from its intersection with a northwestern boundary of Portion P.M.L. 41 and terminating on the eastern boundary of Lot 4 at a point bearing northerly 72.51 metres from its southernmost southeastern corner thence by a line bearing 71 degrees 51 minutes 20 seconds 1245.4 metres such boundary intersecting the eastern boundary of Lot 3 at a point bearing northerly 254.31 metres from its southeastern corner the eastern boundary of Lot 2 at a point bearing northerly 302.46 metres from its southeastern corner the eastern boundary of Lot 1 of Deposited Plan 240164 at a point bearing northerly 346.13 metres from its southeastern corner and the eastern boundary of Lot 11 of Deposited Plan 556965 at a point bearing northerly 322.38 metres from its southeastern corner thence by a line bearing 79 degrees 37 minutes 987.5 metres such boundary intersecting the eastern boundary of Lot 12 of Deposited Plan 556965 at a point bearing northerly 581.5 metres from its southeastern corner the eastern boundary of Lot 2 of Deposited Plan 239391 at a point bearing northerly 652.1 metres from its easternmost southeastern corner thence by a line bearing 76 degrees 50 minutes 5 seconds 1350.36 metres such boundary intersecting the eastern boundary of Lot 3 at a point bearing northerly 700.6 metres from its southeastern corner the eastern boundary of Lot 4 of Deposited Plan 239391 at a point bearing northerly 700 metres from its southeastern corner the eastern boundary of Lot 5 of Deposited Plan 241054 at a point bearing southerly 519.24 metres from its northeastern corner and the eastern boundary of Lot 6 at a point bearing southerly 436.63 metres from its northeastern corner the eastern boundary of Lot 7 at a point bearing southerly 354.01 metres from its northeastern corner the eastern boundary of Lot 8 at a point bearing southerly 271.39 metres from its northeastern corner and the eastern boundary of Lot 9 at a point bearing southerly 119.76 metres from its southernmost northeastern corner thence by a line bearing 72 degrees 4 minutes 15 seconds 1697.03 metres such boundary intersecting the eastern boundary of Lot 10 at a point bearing southerly 38.11 metres from its easternmost northeastern corner and the northern boundary of Lot 11 of Deposited Plan 241054 at a point bearing easterly 86 metres from its northernmost northwestern corner the easternmost southern boundary of Lot 2 of Deposited Plan 219595 Parish of Murrumbidgee at a point bearing westerly 880.33 metres from its southeastern corner thence by lines bearing successively 81 degrees 51 minutes 45 seconds 22.235 metres 99 degrees 8 minutes 25 seconds 22.235 metres and 108 degrees 56 minutes 25 seconds 314.12 metres the lastmentioned boundary intersecting a northwestern boundary of Portion 126 of the Parish of Sutton Forest at a point bearing northeasterly 3 metres from the northern corner of Portion 2 Remainder of the Parish of Murrumbidgee thence by lines bearing successively 83 degrees 8 minutes 50

seconds 36.86 metres 57 degrees 17 minutes 55 seconds 803.06 metres and 36 degrees 30 minutes 25 seconds 406.04 metres the lastmentioned boundary intersecting the eastern boundary of Portion 129 of the Parish of Sutton Forest at a point bearing southerly 143.37 metres from its northeastern corner and the western and northern boundaries of Portion 113 at points bearing southerly 104.68 metres and easterly 54.42 metres from its northwestern corner thence by lines bearing successively 49 degrees 2 minutes 20 seconds 29.75 metres and 61 degrees 34 minutes 15 seconds 2048.39 metres the lastmentioned boundary intersecting the southwestern side of a Road 10.08 metres wide within Lot 1 of Deposited Plan 219841 at a point bearing northwesterly 543.83 metres from the intersection of the aforesaid southwestern side of a Road with a northern side of Middle Road the northeastern side of the aforesaid Road at a point bearing northwesterly 553.98 metres from the southernmost southwestern corner of Lot 3 of Deposited Plan 239258 a southwestern boundary of Lot 2 at a point bearing northwesterly 244.69 metres from its southernmost corner the northwestern boundary of Lot 3 at a point bearing southwesterly 254.81 metres from its northwestern corner the western and northern boundaries of Lot 4 at points bearing southerly 37.37 metres and easterly 48.7 metres respectively from its northwestern corner the eastern boundary of Lot 1 at a point bearing northerly 116.99 metres from its southeastern corner a northern boundary of Lot 5 of Deposited Plan 239258 at a point bearing easterly 59.12 metres and easterly 109.37 metres successively from its northwestern corner thence by a line bearing 50 degrees 17 minutes 25 seconds 1228.87 metres such boundary intersecting the westernmost western boundary of Lot 6 of Deposited Plan 243463 at a point bearing southerly 291.41 metres from its westernmost northwestern corner thence by a line bearing 59 degrees 33 minutes 35 seconds 1198.19 metres such boundary intersecting the southern and the eastern boundaries of Lot 2 at points bearing westerly 47.09 metres and northerly 31 metres respectively from its southeastern corner an eastern boundary of Lot 3 at a point bearing northerly 89.92 metres and northerly 76.11 metres successively from its southeastern corner the western boundary of Lot 4 at a point bearing northerly 77.32 metres from its southwestern corner the western boundary of Lot 5 of Deposited Plan 243463 at a point bearing northerly 219.95 metres from its southwestern corner and the eastern boundary of the aforesaid Lot 5 at a point bearing southerly 140.04 metres from its northernmost corner thence by lines bearing 32 degrees 11 minutes 10 seconds 37.15 metres 4 degrees 48 minutes 40 seconds 110.22 metres and 18 degrees 21 minutes 33.51 metres successively the lastmentioned boundary intersecting a northwestern boundary of Lot 2 of Deposited Plan 18079 Parish of Sutton Forest at a point bearing northwesterly 17.63 metres from the northernmost corner of Lot 5 of Deposited Plan 243463 and a southwestern boundary of Lot 5 of Deposited Plan 11147 Parish of Belanglo at a point bearing southwesterly 69.42 metres from the corner opposite the northernmost northeastern corner of Lot 2 of Deposited Plan 18079 thence by lines bearing 41 degrees 14 minutes 40 seconds 33.51 metres and 54 degrees 47 minutes 48.24 metres successively the lastmentioned boundary intersecting a northeastern boundary of Lot 5 of Deposited Plan 11147 Parish of Belanglo at a point bearing northwesterly 380.61 metres and northwesterly 0.75 metres successively from its easternmost corner thence by lines bearing 57 degrees 9 minutes 40 seconds 474.68 metres and 53 degrees 11 minutes 10 seconds 719.6 metres successively the lastmentioned boundary intersecting

the western and northern boundaries of Lot 1 of Deposited Plan 549837 Parish of Bong Bong at points bearing southerly 100.59 metres and easterly 98.16 metres respectively from its northwestern corner thence by a line bearing 54 degrees 46 minutes 5625.28 metres such boundary intersecting the southern boundary of Lot 6 of Deposited Plan 2715 at a point bearing westerly 357.36 metres from the southeastern corner of Lot 8 of Deposited Plan 2715 the northern boundary of Lot 8 of Deposited Plan 2715 at a point bearing easterly 3.82 metres from the southernmost corner of the land comprised in Filed Plan 346077 the southeastern boundary of the land comprised in Filed Plan 346077 at a point bearing northeasterly 111.22 metres from its southernmost corner and a northeastern boundary of Portion 33 at a point bearing southeasterly 283.37 metres from the northernmost eastern corner of the land comprised in Filed Plan 346077 thence by a line bearing 49 degrees 29 minutes 50 seconds 1157.69 metres such boundary intersecting the northeastern boundary of Lot 10 of Deposited Plan 10658 at a point bearing southeasterly 743.1 metres from its northernmost corner thence by a line bearing 57 degrees 54 minutes 20 seconds 1071.7 metres such boundary intersecting the northwestern boundary of Lot 3 of Section 2 of Deposited Plan 33517 being part of Portion 20 Remainder of the Parish of Bong Bong County of Camden at a point bearing northeasterly 242.5 metres from the westernmost corner of Lot 5 of Section 2 of the aforesaid Deposited Plan 33517 thence by a line bearing 50 degrees 48 minutes 30 seconds 372.71 metres such boundary passing along the northwestern boundary of the General Cemetery at Moss Vale dedicated 21 August 1897 and terminating at its northern corner thence by lines bearing 70 degrees 10 minutes 20 seconds 18.62 metres 85 degrees 4 minutes 10 seconds 27.65 metres and 97 degrees 57 minutes 40 seconds 670.65 metres successively the lastmentioned boundary intersecting the northwestern boundary of Lot 3 of Deposited Plan 4441 at a point bearing southwesterly 145.4 metres from its northern corner and the western boundary of Lot 13 of Section C of Deposited Plan 2810 at a point bearing southerly 32.6 metres from its northwestern corner thence by lines bearing 103 degrees 43 minutes 40 seconds 30.325 metres and 109 degrees 29 minutes 35 seconds 515.2 metres successively the lastmentioned boundary intersecting the western boundary of Lot 7 of Section C of Deposited Plan 2810 at a point bearing northerly 29.4 metres from its southwestern corner and the eastern boundary of Lot 7 of Section C of Deposited Plan 2810 at a point bearing northerly 9.155 metres from its southeastern corner thence by lines bearing 114 degrees 17 minutes 25 seconds 180.26 metres and 106 degrees 19 minutes 15 seconds 505.4 metres successively the lastmentioned boundary intersecting the eastern boundary of Lot 18 of Section D of Deposited Plan 2810 at a point bearing southerly 73 metres from its northeastern corner and passing along part of the northern boundary of Lot A of Filed Plan 380473 and terminating at a point bearing easterly 219.8 metres from its northwestern corner thence by lines bearing 90 degrees 13 minutes 15 seconds 24.445 metres 74 degrees 7 minutes 15 seconds 872.97 metres 80 degrees 52 minutes 15 seconds 30.27 metres 87 degrees 37 minutes 15 seconds 862.49 metres and 74 degrees 58 minutes 40 seconds 829.2 metres the lastmentioned boundary intersecting a western and a northeastern boundary of Portion 87 of the Parish of Bong Bong at points bearing southerly 8.8 metres and southeasterly 8.4 metres respectively from its northernmost corner thence by lines bearing 51 degrees 41 minutes 20 seconds 523.9 metres 45 degrees 36 minutes 30 seconds 134.2 metres 55 degrees

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7 minutes 15 seconds 30.06 metres and 64 degrees 38 minutes 2036.09 metres the lastmentioned boundary intersecting a northeastern side of a Right of Way within Lancelot Downs Wildlife Refuge No. 174 Proclaimed 15 March 1968 Parishes of Bong Bong and Yarrunga at a point bearing southeasterly 151.1 metres from the northernmost corner of the aforesaid Right of Way the western and a northern boundary of Lot 13 of Deposited Plan 553406 Parish of Yarrunga at points bearing southerly 49.1 metres and easterly 50.7 metres respectively from its north-western corner thence by a line bearing 53 degrees 14 minutes 5 seconds 2132.8 metres such boundary intersecting the northern boundary of Lot 12 of Deposited Plan 553406 Parish of Yarrunga at a point bearing easterly 417.5 metres from its north-western corner thence by a line bearing 59 degrees 33 minutes 40 seconds 649.19 metres such boundary intersecting the western and northern boundaries of Lot 4A of Deposited Plan 3147 Parish of Mittagong at points bearing southerly 97.77 metres and easterly 184.17 metres respectively from its northwestern corner the southern boundary of Lot 16 of Section A of Deposited Plan 1416 at a point bearing easterly 223.97 metres from the northeastern corner of Lot 5A of Deposited Plan 3147 and terminating on the eastern boundary of the aforesaid Lot 16 of Section A of Deposited Plan 1416 Parish of Mittagong County of Camden State of New South Wales at a point bearing northerly 11.3 metres from its south-eastern corner excepting thereout part of Reserve 87854 for Public Recreation notified in the New South Wales State Government Gazette dated 21 August 1970 all bearings being referred to the true meridian.

SCHEDULE 2

All that piece of land 24.385 metres wide lying generally on the northwest and adjacent to the lines designated hereunder situate between the vicinity of Bowral and the vicinity of Wilton in the Shires of Mittagong and Wollondilly and being part of Kangaroo Road part of Horderns Road part of Range Road part of Public Roads part of Roads part of Closed Road part of Portions 32 27 17 36 and 89 and parts of Portion 28 parts of Crown Land of the State of New South Wales part of Lot 17 of Section A of Deposited Plan 1416 part of Lots 2 3 4 5 and 6 of Section B of Deposited Plan 1416 part of Lots 12 13 14 and 15 of Section D of Deposited Plan 1416 part of Lots 6 5 2 and 3 of Section E of Deposited Plan 1416 part of the land comprised in Filed Plans 185030 and 328904 and part of Lots 1 and 2 of Deposited Plan 2586 Parish of Mittagong County of Camden part of portion 130 Crown Land being parts of Water Reserve 50787 notified in the New South Wales State Government Gazette dated 23 June 1915 parts of the Great Southern Railway from Sydney to Goulburn part of the land comprised in Filed Plan 375156 part of the land comprised in Filed Plan 942940 parts of the land comprised in Filed Plan 918419 and part of the bed of Forest Creek Parish of Colo parts of the Hume Highway part of Carlisle Street part of Silica Road part of Arias Road part of Hawthorne Road part of Dwyers Road part of Roads part of Public Road part of Closed Road and part of the bed of Carters Creek parts of the Great Southern Railway aforesaid parts of Crown Land of the State of New South Wales and part of Portions 132 232 147 159 37 192 190 191 54 103 88 84 83 80 79 100 210 158 154 and 152 parts of

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Portions 166 and 105 parts of Lots 29 28 31 to 42 inclusive and Lots 6 5 and 1 of Deposited Plan 12975 part of Lots 43 44 113 and 115 of Deposited Plan 9024 part of Lot 1 of Deposited Plan 583342 part of Lot 1051 of Deposited Plan 547158 part of Lot 4 of Deposited Plan 243562 part of Lots C and B of Filed Plan 384722 part of Lot 2 of Deposited Plan 561804 part of Lot 2 of Deposited Plan 559191 part of Lot A of Filed Plan 392056 part of the land in Deposited Plan 202891 and part of the land comprised in Filed Plans 154042 and 400703 part of Quarry Reserve 22944 notified in the New South Wales State Government Gazette dated 14 September 1895 and part of the bed of the Nepean River Parish of Hargo part of Hornby Street West part of Public Road part of the bed of Moolgun or Allens Creek part of Lot 10 of Deposited Plan 233845 part of Lots 7 6 and 5 of Deposited Plan 201250 part of the land comprised in Filed Plan 62847 part of Lots 1 and 2 of Deposited Plan 218290 part of Portion 1 and part of Lot B of Filed Plan 415392 Parish of Wilton County of Camden State of New South Wales; commencing at the easternmost corner of the land described in Schedule 1 hereof and bounded thence generally on the southeast by a line bearing 59 degrees 34 minutes 10 seconds 931.38 metres such boundary intersecting a northeastern boundary of Lot 17 of Section A of Deposited Plan 1416 at a point bearing northwesterly 190.83 metres from its easternmost corner and a southwestern boundary of Lot 2 of Section B of Deposited Plan 1416 at a point bearing northwesterly 81.54 metres from its southernmost corner thence by a line bearing 40 degrees 55 minutes 35 seconds 909.29 metres such boundary intersecting the northern boundary of Lot 6 of Section B of Deposited Plan 1416 at a point bearing westerly 103.53 metres from its northeastern corner the southern and the eastern boundaries of Lot 12 of Section D of Deposited Plan 1416 at points bearing westerly 81.63 metres and northerly 73.18 metres respectively from its southeastern corner and the eastern boundary of Lot 13 of Section D of Deposited Plan 1416 at a point bearing northerly 253.48 metres from its southeastern corner thence by a line bearing 39 degrees 44 minutes 50 seconds 1089.55 metres such boundary intersecting the northern boundary of Lot 15 of Section D of Deposited Plan 1416 at a point bearing westerly 102.09 metres from its northeastern corner an eastern boundary of the residue of Portion 32 of the Parish of Mittagong at a point bearing northerly 95.42 metres from the northeastern corner of Lot 15 of Section D of Deposited Plan 1416 the western boundary of Lot 6 of Section E of Deposited Plan 1416 at a point bearing northerly 114.225 metres from its southwestern corner of the northern boundary of Lot 5 of Section E of Deposited Plan 1416 at a point bearing easterly 440.79 metres from the north-western corner of Lot 6 of Section E of Deposited Plan 1416 and the southern boundary of Lot 2 of Section E of Deposited Plan 1416 at a point bearing easterly 482.59 metres from the southwestern corner of Lot 1 of Section E of Deposited Plan 1416 thence by a line bearing 38 degrees 22 minutes 25 seconds 996.3 metres such boundary intersecting the eastern boundary of Lot 3 of Section E of Deposited Plan 1416 at a point bearing southerly 8.21 metres from its northeastern corner and a western boundary of the land comprised in Plan A of Filed Plan 185030 at a point bearing northerly 98.85 metres from its southwestern corner thence by a line bearing 47 degrees 12 minutes 10 seconds 1014.38 metres such boundary intersecting a south-western boundary of the land in Filed Plan 328904

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at a point bearing successively southeasterly 49.62 metres and southeasterly 62.05 metres from its westernmost corner a northern boundary of the land in Filed Plan 328904 at a point bearing easterly 138.23 metres from its westernmost corner and the northern boundary of Lot 1 of Deposited Plan 2586 at a point bearing westerly 77.6 metres from its northernmost northeastern corner thence by a line bearing 27 degrees 58 minutes 5 seconds 154.98 metres such boundary intersecting an eastern boundary of Lot 2 of Deposited Plan 2586 at a point bearing successively northerly 39.83 metres and northerly 95.72 metres from its southeastern corner thence by lines bearing successively 33 degrees 34 minutes 35 seconds 30.33 metres and 39 degrees 11 minutes 5 seconds 674.12 metres the last-mentioned boundary intersecting the western and northern boundaries of Portion 17 at points bearing southerly 434.9 metres and easterly 238.53 metres respectively from its northwestern corner and the southern boundary of Portion 36 at a point bearing easterly 244.05 metres from its southwestern corner thence by a line bearing 26 degrees 32 minutes 3086.28 metres such boundary intersecting the eastern boundary of Portion 36 at a point bearing southerly 258.7 metres from the intersection of the eastern boundary of Portion 36 with the westerly prolongation of the southernmost southern boundary of Portion 28 of the southern most southern boundary of Portion 28 at a point bearing easterly 83.62 metres from the lastmentioned intersection southeasterly and north-eastern boundaries of Portion 89 at points bearing southwesterly 6.74 metres and northwesterly 2.82 metres respectively from its easternmost corner and an eastern boundary of Portion 28 at a point bearing southerly 112.81 metres from its northeastern corner thence by a line bearing 22 degrees 20 minutes 45 seconds 3205.23 metres such boundary intersecting the southern boundary of the land comprised in Filed Plan 375156 at a point bearing easterly 31.32 metres from its southernmost southwestern corner a northern boundary of the land comprised in Filed Plan 375156 at a point bearing successively southerly 518.61 metres and westerly 191.36 metres from its northernmost northwestern corner thence by a line bearing 18 degrees 5 minutes 20 seconds 1037.58 metres such boundary intersecting the southern boundary of the land comprised in Filed Plan 942940 at a point bearing westerly 126.2 metres from its southeastern corner and the eastern boundary of the land comprised in Filed Plan 942940 at a point bearing southerly 111.75 metres from its northeastern corner thence by lines bearing successively 357 degrees 38 minutes 20 seconds 1100.56 metres 9 degrees 16 minutes 35 seconds 29.85 metres 20 degrees 55 minutes 5 seconds 421.98 metres 0 degrees 54 minutes 30 seconds 24.61 metres 340 degrees 54 minutes 673.21 metres 349 degrees 41 minutes 30.12 metres 358 degrees 28 minutes 10 seconds 521.65 metres 11 degrees 38 minutes 50 seconds 29.68 metres 24 degrees 40 minutes 40 seconds 191.71 metres 34 degrees 41 minutes 25 seconds 30.02 metres 44 degrees 53 minutes 15 seconds 1344.29 metres 28 degrees 5 minutes 35 seconds 582.04 metres 7 degrees 4 minutes 25 seconds 600.43 metres 18 degrees 44 minutes 25 seconds 29.85 metres 30 degrees 24 minutes 35 seconds 1320.12 metres 0 degrees 2 minutes 25 seconds 41.74 metres 329 degrees 40 minutes 35 seconds 87.7 metres 345 degrees 59 minutes 45 seconds 38.64 metres 14 degrees 9 minutes 55 seconds 38.64 metres 30 degrees 29 minutes 5 seconds 741.08 metres 355 degrees 41 minutes 20 seconds 41.49 metres and 320 degrees 52 minutes 35

seconds 236.07 metres the lastmentioned boundary intersecting an eastern boundary of Portion 132 Parish of Burgo at a point bearing northerly 56.01 metres from its southernmost southeastern corner thence by lines bearing successively 333 degrees 26 minutes 40 seconds 27.65 metres 355 degrees 10 seconds 27.65 metres and 7 degrees 34 minutes 20 seconds 347.9 metres the lastmentioned boundary intersecting the southern boundary of Portion 232 at a point bearing westerly 113.11 metres from its southeastern corner the northern boundary of Portion 232 at a point bearing westerly 154.96 metres from the northwestern corner of Lot 1 of Deposited Plan 241534 and the southern boundary of Portion 147 at a point bearing westerly 155.13 metres from the southwestern corner of Lot 2 of Deposited Plan 241534 thence by a line bearing 11 degrees 57 minutes 15 seconds 152.23 metres such boundary intersecting the northern boundary of Portion 147 at a point bearing westerly 110.68 metres from the northwestern corner of Lot 3 of Deposited Plan 241534 thence by lines bearing successively 354 degrees 12 minutes 25 seconds 24.19 metres 336 degrees 27 minutes 35 seconds 188.06 metres 350 degrees 54 minutes 40 seconds 29.52 metres and 5 degrees 21 minutes 50 seconds 522.47 metres the lastmentioned boundary intersecting the southern boundary of Lot 1 of Deposited Plan 553342 at a point bearing westerly 118.03 metres from its southeastern corner and terminating on the northern boundary of Lot 1 of Deposited Plan 553342 at a point bearing westerly 228.85 metres from its northeastern corner thence by lines bearing successively 5 degrees 21 minutes 40 seconds 894.91 metres 18 degrees 3 minutes 15 seconds 27.68 metres 39 degrees 12 minutes 5 seconds 27.68 metres 51 degrees 54 minutes 5 seconds 194.74 metres 36 degrees 9 minutes 40 seconds 24.55 metres 20 degrees 25 minutes 20 seconds 1331.94 metres 33 degrees 4 minutes 45 seconds 29.74 metres and 45 degrees 44 minutes 45 seconds 1859.04 metres the lastmentioned boundary intersecting the southern boundary of Portion 166 at a point bearing easterly 32.15 metres from its southwestern corner the southeastern and northeastern boundaries of Portion 190 at points bearing southwesterly 75.78 metres and northwesterly 47.195 metres respectively from its easternmost corner thence by lines bearing successively 54 degrees 50 minutes 35 seconds 30.095 metres and 63 degrees 57 minutes 15 seconds 178.74 metres the lastmentioned boundary intersecting an eastern boundary of Portion 191 at a point bearing southerly 38.265 metres from its northernmost corner the western boundary of Lot 29 of Deposited Plan 12975 at a point bearing northerly 22.855 metres from its southwestern corner the southern and eastern boundaries of Lot 28 of Deposited Plan 12975 at points bearing westerly 70.24 metres and northerly 24.83 metres respectively from its southeastern corner thence by a line bearing 73 degrees 55 minutes 30.02 metres such boundary intersecting an eastern boundary of Lot 31 of Deposited Plan 12975 at a point bearing northerly 108.47 metres from its southeastern corner thence by a line bearing 83 degrees 52 minutes 50 seconds 74.08 metres such boundary intersecting the eastern boundary of Lot 32 at a point bearing northerly 110.61 metres from its southeastern corner thence by a line bearing 90 degrees 43 minutes 50 seconds 30.26 metres such boundary intersecting the eastern boundary of Lot 34 at a point bearing northerly 107.72 metres from its southeastern corner thence by a line bearing 97 degrees 34 minutes 50 seconds 307.07 metres such boundary intersecting the western boundary of Lot 40 of Deposited Plan 12975 at a point bearing

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from its southernmost corner thence by a line bearing 46 degrees 31 minutes 40 seconds 441.13 metres such boundary intersecting the southern and eastern boundaries of the land comprised in Filed Plan 400703 at points bearing westerly 53.98 metres and northerly 71.85 metres respectively from its southwestern corner and the western boundary of Lot A of Filed Plan 392056 at a point bearing southerly 162.75 metres from its northwestern corner thence by lines bearing 53 degrees 15 seconds 30.285 metres and 59 degrees 28 minutes 55 seconds 1177.22 metres the lastmentioned boundary intersecting the northern boundary of Lot A of Filed Plan 392056 at a point bearing easterly 129.18 metres from its northwestern corner and an eastern boundary of Lot 2 of Deposited Plan 559191 at a point bearing successively northerly 277.61 metres easterly 32.39 metres and northerly 132.7 metres from the northeastern corner of Lot A of Filed Plan 392056 Parish of Bargo and a western boundary of Lot 7 of Deposited Plan 201250 Parish of Wilton at a point bearing successively southerly 84.13 metres southerly 120.3 metres southerly 75.48 metres southerly 67.63 metres southerly 170.91 metres and southerly 214.80 metres from its northwestern corner thence by a line bearing 54 degrees 17 minutes 35 seconds 1296.24 metres such boundary intersecting the eastern boundary of Lot 7 aforesaid at a point bearing southerly 316.2 metres from the northwestern corner of Lot 6 of Deposited Plan 201250 the western and northern boundary of Lot 5 of Deposited Plan 201250 at points bearing southerly 20.7 metres and easterly 19.8 metres respectively from its northwestern corner and a southern boundary of the land comprised in Filed Plan 62847 at a point bearing westerly 388.1 metres from its southeastern corner thence by lines bearing successively 65 degrees 16 minutes 55 seconds 29.92 metres and 76 degrees 16 minutes 15 seconds 181.67 metres the lastmentioned boundary intersecting an eastern boundary of the land comprised in Filed Plan 62847 at a point bearing successively northerly 92.6 metres northerly 83.8 metres northerly 67.1 metres northerly 157.3 metres and northerly 45.6 metres from its southeastern corner and a western boundary of Lot 1 of Deposited Plan 218290 at a point bearing successively southerly 85.255 metres and southerly 135.7 metres from its northwestern corner thence by a line bearing 48 degrees 29 minutes 55 seconds 194.66 metres such boundary intersecting the western boundary of Lot 2 of Deposited Plan 218290 at a point bearing southerly 75.2 metres from its northwestern corner thence by lines bearing successively 62 degrees 13 minutes 33.455 metres and 85 degrees 25 minutes 40 seconds 33.455 metres the lastmentioned boundary intersecting the northern boundary of Lot 2 of Deposited Plan 218290 at a point bearing westerly 140.4 metres from its northeastern corner thence by lines bearing successively 99 degrees 8 minutes 40 seconds 251.33 metres and 99 degrees 2 minutes 35 seconds 1571.32 metres the lastmentioned boundary intersecting the northerly prolongation of the western boundary of Lot 5 of Deposited Plan 218290 at a point northerly and distant 0.2 metres from its northerly extremity and thence by lines bearing 102 degrees 47 minutes 50 seconds 588.04 metres and 74 degrees 38 minutes 35 seconds 48.03 metres the lastmentioned boundary terminating on the western boundary of Lot 2 of Deposited Plan 570000 Parish of Wilton County of Camden State of New South Wales at a point bearing northerly 73.7 metres from its southwestern corner all bearings being referred to the true meridian.

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SCHEDULE 3

The full and free right for the Authority by itself, its servants and agents and any person authorised by it at all times and from time to time:

- (a) to enter, go, return, pass, repass and remain with or without tools, implements, machinery, animals and vehicles;
- (b) to clear and remove any obstruction, timber, trees, undergrowths, crops and fences;
- (c) to dig, break up and restore the surface;
- (d) to make surveys, take levels, sink bores, dig pits and examine the soil;
- (e) to lay down pipes together with any associated equipment and structures;
- (f) to construct, build and place any plant, machinery, equipment and goods;
- (g) to take sand, clay, stone, earth, gravel, timber, wood and other materials and things;
- (h) to make cuttings and excavations;
- (i) to deposit sand, clay, stone, earth, gravel, timber, wood and other materials and things;
- (j) to erect workshops, sheds and other buildings;
- (k) to make roads;

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- (l) to manufacture and work materials of any kind;
- (m) to demolish, destroy and remove any plant, machinery, equipment, goods, workshop, shed, building and road;
- (n) to inspect, patrol (including aerial patrol), alter, renew, reconstruct, replace, repair, cleanse, maintain and change the size of any pipeline or part thereof;
- (o) to remove any pipeline or part thereof;
- (p) to have the right of support of any pipeline or part thereof;
- (q) to convey through any such pipeline petroleum belonging to the Authority or to other persons;
- (r) to do all things necessary or convenient to be done in connection with or incidental to the exercise of the aforesaid rights.

Dated this fifth day of September 1974.

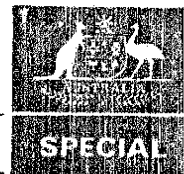
F. M. DALY
Minister of State for Services and Property

(Ex. Min. No. 92)

29.

Australian Government Gazette

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No. 79 D

Canberra, Friday, 27 September 1974

AUSTRALIA

Lands Acquisition Act 1955-1973

NOTICE OF THE ACQUISITION OF LAND BY THE COMMONWEALTH

Corrigendum

The first line of Schedule 1 of *Gazette* No. 73 A of 5 September 1974 should read:

"All that piece of land 24.385 metres wide bounded"

In lieu of that notified.

The Corrigendum appearing on page 14 of *Gazette* No. 76 of 17 September 1974 in reference to this matter is hereby cancelled.

F. D. ATKINSON, Government Printer, Canberra

17218/74—Recommended retail price 5c (plus postage)

[Handwritten signature]

Australian Government Gazette
No. G7, 18 February 1975
AUSTRALIA

Lands Acquisition Act 1955-1973

NOTICE OF THE ACQUISITION OF LAND

1. In this notification 'Authority', 'petroleum', and 'pipeline' have respectively the same meaning as those expressions have in the *Pipeline Authority Act 1973*.

2. I hereby notify that His Excellency the Governor-General of Australia, acting with the advice of the Executive Council, has pursuant to the provisions of the *Pipeline Authority Act 1973* (hereinafter called 'the Act') and the *Lands Acquisition Act 1955-1973*, authorised the acquisition by compulsory process of an easement in favour of the Authority over the land described in Schedule 1 at all times and from time to time to construct, maintain and operate pipelines or parts thereof under the Act together with the rights set out in Schedule 2 in, under, on, across, over and through the said land for the purposes of the construction, maintenance and operation of any such pipeline or part thereof and for any purpose incidental to any of those purposes.

3. I hereby declare that the said easement is acquired for the following public purpose approved by the Governor-General namely: For the purposes of the Authority under the Act, such purposes being the construction, maintenance and operation of pipelines or parts thereof under and in accordance with the Act—(Ex. Min. No. 9).

SCHEDULE 1

Firstly: All that piece of land situate near Ungarie in the Shire of Lachlan containing an area of 60.5 square metres more or less being part of Portion 5 of the Parish of Currah County of Gipps State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18058 N.S.W.; commencing on a northern boundary of the

W. Sh. Lachlan

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pipeline easement 24.385 metres wide acquired by notification in the *Australian Government Gazette* No. 56A dated 9 July 1974 at a point bearing successively 98 degrees 12 minutes 1158.32 metres and 139 degrees 26 minutes 20 seconds 106.04 metres from the northwestern corner of Portion 5 of the Parish of Currah and bounded thence on the north-east and the east by lines bearing respectively 128 degrees 27 minutes 20 seconds 24.605 metres and 188 degrees 12 minutes 3.045 metres thence on the south and the southwest by parts of northern and northeastern boundaries of the aforesaid pipeline easement bearing respectively 278 degrees 12 minutes 3.635 metres and 319 degrees 26 minutes 20 seconds 23.43 metres to the point of commencement all bearings being referred to the true meridian.

Secondly: All that piece of land situate at Murrays Flats in the Shire of Mulwaree containing an area of 586.2 square metres more or less being part of Public Road and parts of Portion 228 Parish of Towrang County of Argyle State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18102 N.S.W.; commencing at a northeastern corner of the pipeline easement 24.385 metres wide acquired by notification in the *Australian Government Gazette* No. 73A dated 5 September 1974 at a point bearing 12 degrees 39 minutes 50 seconds 24.73 metres from the eastern extremity of a southern boundary of the aforesaid pipeline easement designated 93 degrees 3 minutes 30 seconds 1612.4 metres such extremity being on a northwestern side of a Public Road 20.115 metres wide and bounded thence on the north and on parts of the northeast by lines bearing successively 93 degrees 3 minutes 30.485 metres 127 degrees 41 minutes 20 seconds 44.03 metres and 162 degrees 19 minutes 40 seconds 30.485 metres thence on parts of the southwest by northeastern boundaries of the aforesaid pipeline easement bearing successively 323 degrees 6 minutes 48.85 metres and 292 degrees 16 minutes 40 seconds 48.85 metres to the point of commencement all bearings being referred to the true meridian.

Thirdly: All that piece of land situate at Murrays Flats in the Shire of Mulwaree containing an area of 563.3 square metres more or less being part of Portion 228 Parish of Towrang County of Argyle State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18102 N.S.W.; commencing at a point on a north-eastern boundary of the pipeline easement 24.385 metres wide acquired by notification in the *Australian Government Gazette* No. 73A dated 5 September 1974 bearing successively 192 degrees 39 minutes 50 seconds 24.73 metres 112 degrees 16 minutes 40 seconds 38 metres 143 degrees 6 minutes 38 metres 162 degrees 19 minutes 40 seconds 97.63 metres and 14 degrees 30 minutes 55 seconds 45.775 metres from the westernmost corner of the land secondly herein described and bounded thence on parts of the north-east by lines bearing 142 degrees 11 minutes 45 seconds 43.635 metres and 109 degrees 25 minutes 45 seconds 43.635 metres thence on the south and parts of the southwest by part of a northern boundary a northeastern boundary and part of a northeastern boundary of the aforesaid pipeline easement bearing successively 269 degrees 17 minutes 55 seconds 30.695 metres 305 degrees 48 minutes 45 seconds 34.38 metres and 342 degrees 19 minutes 35 seconds 30.695 metres to the point of commencement all bearings being referred to the true meridian.

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Fourthly: All that piece of land situate near Sutton Forest in the Shire of Wingecarribee containing an area of 271.9 square metres more or less being part of the Hawarra Highway and part of Lot 5 of Deposited Plan 41147 Parish of Belanglo County of Camden State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18114 N.S.W.; commencing at a northwestern corner of the pipeline easement 24.385 metres wide acquired by notification in the *Australian Government Gazette* No. 73A dated 5 September 1974 bearing 281 degrees 34 minutes 45 seconds 24.555 metres from the northern extremity of an eastern boundary of the aforesaid pipeline easement designated 4 degrees 48 minutes 40 seconds 110.22 metres and bounded thence on the west and parts of the northwest by lines bearing successively 4 degrees 48 minutes 30 seconds 24.215 metres 29 degrees 48 minutes 37.14 metres and 54 degrees 47 minutes 30 seconds 24.215 metres thence on parts of the southeast by northwestern boundaries of the aforesaid pipeline easement bearing successively 221 degrees 15 minutes 41.345 metres and 198 degrees 21 minutes 41.345 metres to the point of commencement all bearings being referred to the true meridian.

Fifthly: All that piece of land situate near Yanderra in the Shire of Mittagong containing an area of 353.3 square metres more or less being part of Crown Land of the State of New South Wales being part of Water Reserve 50787 notified in the New South Wales State Government Gazette dated 23 June 1915 Parish of Bargo County of Camden State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18122 N.S.W.; commencing at a point on a northwestern boundary of the pipeline easement 24.385 metres wide acquired by notification in the *Australian Government Gazette* No. 73A dated 5 September 1974 bearing 246 degrees 24 minutes 15 seconds 41.485 metres from the northern extremity of the southeastern boundary of the aforesaid pipeline easement designated 30 degrees 24 minutes 35 seconds 1320.12 metres and bounded thence on the northwest and on the southwest by lines bearing respectively 14 degrees 5 minutes 5 seconds 38.65 metres and 145 degrees 59 minutes 45 seconds 38.65 metres thence on the northeast on the east and on the southeast by part of a southwestern boundary a western boundary and part of a northwestern boundary of the aforesaid pipeline easement bearing respectively 149 degrees 40 minutes 35 seconds 26.945 metres 180 degrees 2 minutes 25 seconds 28.51 metres and 210 degrees 24 minutes 15 seconds 26.945 metres to the point of commencement all bearings being referred to the true meridian.

Sixthly: All that piece of land situate near Yanderra in the Shire of Mittagong containing an area of 465.5 square metres more or less being part of the Great Southern Railway and part of Crown Land of the State of New South Wales being part of Water Reserve 50787 notified in the New South Wales State Government Gazette dated 23 June 1915 Parish of Bargo County of Camden State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18122 N.S.W.; commencing at a point on a southwestern boundary of the pipeline easement acquired by notification in the *Australian Government Gazette* No. 73A dated 5 September 1974 bearing successively 171 degrees 40 minutes 35 seconds 41.485 metres 329 degrees 40 minutes 35 seconds 87.7 metres and 247 degrees 50

minutes 10 seconds 24.64 metres from the northernmost corner of the land fifthly hereindescribed and bounded thence on the southwest on the west and on the northwest by lines bearing respectively 329 degrees 40 minutes 35 seconds 29.39 metres 0 degrees 4 minutes 50 seconds 42.91 metres and 30 degrees 29 minutes 5 seconds 29.39 metres thence on the southeast and on the northeast by a northwestern and a southwestern boundary of the aforesaid pipeline easement bearing respectively 194 degrees 9 minutes 55 seconds 48.26 metres and 165 degrees 59 minutes 45 seconds 48.26 metres to the point of commencement all bearings being referred to the true meridian.

Seventhly: All that piece of land situate near Yanderra in the Shire of Mittagong containing an area of 410 square metres more or less being part of Crown Land of the State of New South Wales being part of Water Reserve 50787 notified in the New South Wales State Government Gazette dated 23 June 1915 Parish of Bargo County of Camden State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18122 N.S.W.; commencing at a point on a northwestern boundary of the pipeline easement acquired by notification in the Australian Government Gazette No. 73 A dated 5 September 1974 bearing successively 67 degrees 50 minutes 10 seconds 24.64 metres 345 degrees 59 minutes 45 seconds 38.64 metres 14 degrees 9 minutes 55 seconds 38.64 metres 30 degrees 29 minutes 5 seconds 741.08 metres and 245 degrees 26 minutes 42.58 metres from the southernmost corner of the land sixthly hereindescribed and bounded thence on the west and on the southwest by lines bearing respectively 11 degrees 30 minutes 40 seconds 37.92 metres and 339 degrees 52 minutes 37.92 metres thence on the northeast on the east and on the southeast by part of a southwestern boundary a western boundary and part of a northwestern boundary of the aforesaid pipeline easement bearing respectively 140 degrees 52 minutes 40 seconds 27.26 metres 175 degrees 41 minutes 20 seconds 28.2 metres and 210 degrees 30 minutes 27.26 metres to the point of commencement all bearings being referred to the true meridian.

Eighthly: All that piece of land situate near Wilton in the Shire of Wollondilly containing an area of 7567 square metres more or less being part of the bed of Carters Creek and part of Portions 154 and 158 of the Parish of Bargo County of Camden State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18129 N.S.W.; commencing on a southeastern boundary of the pipeline easement 24.385 metres wide acquired by notification in the Australian Government Gazette No. 73 A dated 5 September 1974 at a point bearing 90 degrees 9 minutes 20 seconds 52.67 metres 22 degrees 10 minutes 20 seconds 161.45 metres 28 degrees 34 minutes 40 seconds 30.29 metres and 34 degrees 59 minutes 141.56 metres successively from the southwestern corner of Portion 158 of the Parish of Bargo and bounded thence on part of the northwest by part of a southeastern boundary of the aforesaid pipeline easement bearing 34 degrees 59 minutes 166.21 metres thence on part of the northwest by lines bearing successively 43 degrees 25 minutes 48.35 metres and 27 degrees 4 minutes 40 seconds 55.71 metres thence on the remainder of the northwest by part of a southeastern boundary of the aforesaid pipeline easement bearing 32 degrees 51 minutes 242.4 metres thence on the southeast by lines bearing 207 degrees 4 minutes 40 seconds 300.4 metres and

223 degrees 25 minutes 216.26 metres to the point of commencement all bearings being referred to the magnetic meridian.

Ninthly: All that piece of land situate near Wilton in the Shire of Wollondilly containing an area of 37.53 hectares more or less being part of Lots 5 G and 7 of Deposited Plan 201250 part of Hornby Street West part of the land comprised in Filed Plan 62847 part of the Main Road from Picton to Wilton part of Lots 1 and 2 of Deposited Plan 218290 and part of Portion 1 of the Parish of Wilton County of Camden State of New South Wales as delineated on plan catalogued in the New South Wales Branch of the Department of Services and Property Negative No. 18139 N.S.W.; commencing on a southeastern boundary of the pipeline easement 24.385 metres wide acquired by notification in the Australian Government Gazette No. 73 A dated 5 September 1974 in Schedule 2 thereof at a point bearing 59 degrees 28 minutes 50 seconds 237.35 metres from the intersection of the said southeastern boundary with the western boundary of Lot 7 of Deposited Plan 201250 and bounded thence on part of the southeast by lines bearing successively 48 degrees 33 minutes 20 seconds 594.55 metres and 52 degrees 52 minutes 25 seconds 653.84 metres the lastmentioned boundary intersecting the northern boundary of Lot 5 of Deposited Plan 201250 at a point bearing 279 degrees 49 minutes 10 seconds 87 metres from its northeastern corner thence on the remainder of the southeast by lines bearing successively 45 degrees 14 minutes 10 seconds 464.86 metres and 59 degrees 51 minutes 40 seconds 33.225 metres thence on the south by lines bearing successively 84 degrees 14 minutes 40 seconds 33.225 metres and 98 degrees 52 minutes 10 seconds 251.53 metres thence on the north by southern boundaries of the aforesaid pipeline easement 24.385 metres wide bearing 279 degrees 8 minutes 55 seconds 251.33 metres and 265 degrees 25 minutes 50 seconds 33.455 metres thence on part of the northwest by southeastern boundaries and part of a southeastern boundary of the aforesaid easement bearing successively 242 degrees 13 minutes 10 seconds 33.455 metres 228 degrees 30 minutes 194.66 metres and 256 degrees 16 minutes 20 seconds 20.71 metres thence on part of the northwest by lines bearing successively 225 degrees 14 minutes 10 seconds 252.67 metres 232 degrees 52 minutes 25 seconds 648.85 metres and 248 degrees 33 minutes 20 seconds 494.43 metres thence on the remainder of the northwest by parts of southeastern boundaries of the aforesaid pipeline easement bearing successively 234 degrees 17 minutes 35 seconds 97.53 metres and 239 degrees 28 minutes 50 seconds 2.28 metres to the point of commencement all bearings being referred to the true meridian.

SCHEDULE 2

The full and free right for the Authority by itself, its servants and agents and any person authorised by it at all times and from time to time:

- to enter, go, return, pass, repass and remain with or without tools, implements, machinery, animals and vehicle;
- to clear and remove any obstruction, timber, trees, undergrowths, crops and fences;
- to dig, break up and restore the surface;
- to make surveys, take levels, sink bores, dig pits and examine the soil;
- to lay down pipes together with any associated equipment and structures;

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Government departments 21

- (f) to construct, build and place any plant, machinery, equipment and goods;
- (g) to take sand, clay, stone, earth, gravel, timber, wood and other materials and things;
- (h) to make cuttings and excavations;
- (i) to deposit sand, clay, stone, earth, gravel, timber, wood and other materials and things;
- (j) to erect workshops, sheds and other buildings;
- (k) to make roads;
- (l) to manufacture and work materials of any kind;
- (m) to demolish, destroy and remove any plant, machinery, equipment, goods, workshop, shed, building and road;
- (n) to inspect, patrol (including aerial patrol), alter, renew, reconstruct, replace, repair,

cleanse, maintain and change the size of any pipeline or part thereof;

- (o) to remove any pipeline or part thereof;
- (p) to have the right of support of any pipeline or part thereof;
- (q) to convey through any such pipeline petroleum belonging to the Authority or to other persons;
- (r) to do all things necessary or convenient to be done in connection with or incidental to the exercise of the aforesaid rights.

Dated this eighth day of February 1975.

F. M. DALY
Minister of State for
Services and Property

John H. and

This and the succeeding ⁵⁴ 23 pages comprise the Second Schedule referred to in the annexed Notice of Acquisition of Easement by the Commonwealth of Australia DATED the fourteenth day of March, One thousand nine hundred and seventy-seven.

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portions 1 and 2	Hermitage	Tongowoko	Part	5137	197
Portion 3	Cunellie	Fitzgerald	Part	781	140
Portion 1	Cunellie	Fitzgerald	Part	761	144
Portion 96	Guagong Guagong	Flaxland	Part	5035	216
Portion 44	Whyaddra	Dowling	Part	4869	18
Portion Part 5	Whyaddra	Dowling	Part	10533	64
Closed Road	Whyaddra	Dowling	Part	4880	174
Portion 26	Whyaddra	Dowling	Part	3109	214
Portion 25	Whyaddra	Dowling	Part	6143	21
Portion 38	Whyaddra	Dowling	Part	5041	27
Portion 42	Whyaddra	Dowling	Part	1435	191
Portions 28 and 30	Wardry	Dowling	Part	7322	193 [P]
Portion 3	Brotherony	Dowling	Part	7295	71
Portion 9	Wardry	Gipps	Part	10360	82 [P]
Portions 6,7 and 8	Wardry	Gipps	Part	7847	59 [P]
Lot 122 in D.P. 580540	Wardry	Gipps	Part	12975	64
Portion 3	Wardry	Gipps	Part	7704	94 [P]
Portion 4	Wardry	Gipps	Part	7399	249 [P]
Portion 19	Milbee	Gipps	Part	9808	237
Portion 24	Milbee	Gipps	Part	9808	238
Portion 6	Milbee	Gipps	Part	8403	233
Portion 5	Milbee	Gipps	Part	2501	47
Portion 4	Merribooka	Gipps	Part	7940	210
Portion 24	Merribooka	Gipps	Part	8472	16
Portion 36	Cookaburragong	Gipps	Part	7943	11

SCHEDULE

J. H. H. H. H. H.

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Closed Road	Cookaburragong	Gipps	Part	10001	60
Portion 7	Cookaburragong	Gipps	Part	8475	34
Lot 1 in D.P. 580284	Currah	Gipps	Part	12925	52 [P]
Lot 2 in D.P. 580284	Currah	Gipps	Part	12925	53
Portion 44	Euglo South	Gipps	Part	6506	204 [P]
Portion 38	Euglo South	Gipps	Part	6833	24 [P]
Portions 8,9,10,18 and 27	Euglo South	Gipps	Part	9751	60
Portions 7,14 and 26	Livingstone	Gipps	Part	9751	60
Portion 37	Livingstone	Gipps	Part	4103	124
Portions 16 and part 38	Livingstone	Gipps	Part	5258	194
Portion 20	Livingstone	Gipps	Part	5007	148
Portion 22	Livingstone	Gipps	Part	2540	140
Portion 19	Livingstone	Gipps	Part	2610	209
Portion 24	Livingstone	Gipps	Part	10245	78
Lot 1 in D.P. 204493	Wamboyne	Gipps	Part	9159	90 [P]
Portion 20	Wamboyne	Gipps	Part	6109	43 [P]
Portion 31	Wamboyne	Gipps	Part	10191	246 [P]
Portion 32	Wamboyne	Gipps	Part	6092	204
Portion 44	Wamboyne	Gipps	Part	8446	69
Portion 45	Wamboyne	Gipps	Part	7815	159
Portion 33	Wamboyne	Gipps	Part	8434	170
Portion 60	Corringle	Gipps	Part	5145	224 [P]
Portion 59	Corringle	Gipps	Part	5151	17 [P]
Portion 46	Corringle	Gipps	Part	7785	13



SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 23	Corringle	Gipps	Part	4859	111
Portion 25	Corringle	Gipps	Part	7416	68
Portions 19 and 26	Corringle	Gipps	Part	8391	227
Portion 65	Cowal	Gipps	Part	6969	162
Portion 66	Cowal	Gipps	Part	6969	161
Lot 2 in D.P. 578520	Cowal	Gipps	Part	12958	178
Portion 32	Cowal	Gipps	Part	11400	154
Portion 33	Cowal	Gipps	Part	5155	13
Portion 36	Cowal	Gipps	Part	11400	155
Portion 21	Cowal	Gipps	Part	11938	185
Portions 54 and 55	Bimbella	Bland	Part	6527	43
Portion 53	Bimbella	Bland	Part	12713	146
Portion 43	Bimbella	Bland	Part	6527	43
Portions 39,40 and 44	Bimbella	Bland	Part	12713	146
Portion 75	Bimbella	Bland	Part	7406	227
Portion 16	Bimbella	Bland	Part	12713	144
Portion 7	Bimbella	Bland	Part	12713	139
Portion 95	Bimbella	Bland	Part	5320	126
Portion 85	Bimbella	Bland	Part	2824	169
Portion 76	Bimbella	Bland	Part	12713	142
Portion 69	Berrigan	Bland	Part	4777	136
Portion 70	Berrigan	Bland	Part	10191	198
Portions 22,29,40, 49,50,56,57,58 and 59	Berrigan	Bland	Part	6834	25
Portions 33,52 and 67	Berrigan	Bland	Part	6834	25

4.

J. Holland

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 42	Berrigan	Bland	Part	3139	37
Closed Road	Berrigan	Bland	Part	10770	200
Portions 16,30 and 50, and part 48	Mininjary	Bland	Part	3139	37
Portion 50	Mininjary	Bland	Part	6456	232
Lot 4 in D.P. 18075	Caragabal	Bland	Part	10746	81
Portion 76	Caragabal	Bland	Part	6739	97
Part Lot 8 in D.P. 18075	Caragabal	Bland	Part	7190	246
Closed Road	Caragabal	Bland	Part	10580	140
Portions 45 and part 46 in P.P. 370272	Caragabal	Bland	Part	6381	12/13
Portion 51	Caragabal	Bland	Part	7454	106
Closed Road	Caragabal	Bland	Part	8494	243
Portion 49	Barbingal	Bland	Part	7960	194
Portion 108	Berendebba	Bland	Part	7681	4
Portion 73	Berendebba	Bland	Part	5141	19
Portion 116	Berendebba	Bland	Part	7715	80
Portion 89	Euroka	Bland	Part	8487	104
Portion 83	Euroka	Bland	Part	7715	110
Portion 91	Euroka	Bland	Part	5196	38
Portion 100	Euroka	Bland	Part	5155	66
Portion 37	Euroka	Bland	Part	5430	166
Portion 78	Euroka	Bland	Part	5246	219
Lot 1 in D.P. 511770	Euroka	Bland	Part	9903	162
Lot 2 in D.P. 511770	Euroka	Bland	Part	9903	163

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Lot 3 in D.P. 511770	Euroka	Bland	Part	9903	164
Portion 101	Euroka	Bland	Part	8404	101
Portion 74	Euroka	Bland	Part	4800	1
Portion 76	Bimbi	Bland	Part	7994	50
Portion Part 1	Bimbi	Bland	Part	9709	148
Portion 57	Bimbi	Bland	Part	6528	64
Portion 58	Bimbi	Bland	Part	6528	65
Portion 22	Bimbi	Bland	Part	2296	102
Portion 23	Bimbi	Bland	Part	2183	133
Portion 83	Bimbi	Bland	Part	7909	76
Portion 71	Bimbi	Bland	Part	12906	9
Portion 45	Bimbi	Bland	Part	10205	90
Portions 20 and 69	Bribaree	Bland	Part	10616	194
Portion 51	Bribaree	Bland	Part	5760	118
Portions 37 and 54	Bribaree	Bland	Part	5050	225
Portion 36	Bribaree	Bland	Part	3048	184
Portions 38 and 39	Bribaree	Bland	Part	6162	116
Portion 42	Bribaree	Bland	Part	6162	117
Closed Road	Bribaree	Bland	Part	7831	226
Portions 45,46 and 47	Bribaree	Bland	Part	6561	193
Portion 78	Bribaree	Bland	Part	6280	145
Portion part 56 in F.P. 375376	Bribaree	Bland	Part	10509	195
Portion part 56	Bribaree	Bland	Part	6455	26
Portion 133	Kikiamah	Monteagle	Part	7386	118

6.

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 136	Kikiamah	Monteagle	Part	13033	8
Portion 135	Kikiamah	Monteagle	Part	13033	7
Portion 45	Kikiamah	Monteagle	Part	8247	138
Closed Road	Kikiamah	Monteagle	Part	11153	239
Lot 1 in D.P. 571813	Kikiamah	Monteagle	Part	12553	147
Lot 2 in D.P. 571813	Kikiamah	Monteagle	Part	12553	148
Portion 52	Kikiamah	Monteagle	Part	12653	53
Portion 100	Kikiamah	Monteagle	Part	1465	174
Portion 110	Kikiamah	Monteagle	Part	1818	85
Portion 108	Kikiamah	Monteagle	Part	10659	232
Portion 30	Burramunda	Monteagle	Part	4117	230
Portion 140	Burramunda	Monteagle	Part	1816	82
Portion 95	Burramunda	Monteagle	Part	10673	52
Portions 44 and 96	Burramunda	Monteagle	Part	9635	238
Closed Road	Burramunda	Monteagle	Part	3542	83
Portion 42	Burramunda	Monteagle	Part	13209	172
Portion 41	Burramunda	Monteagle	Part	12946	242
Portions 43 and 92	Burramunda	Monteagle	Part	9635	238
Portion 94	Burramunda	Monteagle	Part	10320	142
Portions 18,145 and 146	Thuddungara	Monteagle	Part	7719	84
Lot 1 in D.P. 557275	Thuddungara	Monteagle	Part	11941	75
Part Lot 2 in D.P. 557275	Thuddungara	Monteagle	Part	11941	76
Portions 262,275	Burrangong	Monteagle	Part	12406	19
Portion 333	Burrangong	Monteagle	Part	10558	150

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 274	Burrangong	Monteagle	Part	12725	245
Lot 2 in D.P. 574153	Burrangong	Monteagle	Part	12677	72 P
Portions part 151 and 152	Burrangong	Monteagle	Part	1611	3
Closed Road	Burrangong	Monteagle	Part	10866	187
Portions 12,13,153 and Closed Road	Burrangong	Monteagle	Part	8380	11
Lot A in D.P. 20185	Burrangong	Monteagle	Part	7748	79
Part Lot B in D.P. 20185	Burrangong	Monteagle	Part	8325	93
Lot H in D.P. 20185 Portion part 46 and Closed Road	Burrangong	Monteagle	Part	12955	195
Portion part 46 in F.P. 358656	Burrangong	Monteagle	Part	8190	31
Lot 1 in D.P. 579266	Burrangong	Monteagle	Part	12955	193
Lot 2 in D.P. 579266	Burrangong	Monteagle	Part	12955	194
Portion 113	Woodonga	Monteagle	Part	5221	169
Lot 1 in D.P. 218200	Woodonga	Monteagle	Part	9515	244
Portion part 118, part 200 Portion 117 and 194	Woodonga	Monteagle	Part	7188	183
Portion 202	Woodonga	Monteagle	Part	1465	3
Portion 192	Woodonga	Monteagle	Part	1404	158
Portion 193	Woodonga	Monteagle	Part	813	57
Portion 151	Woodonga	Monteagle	Part	6378	25 P
Lot 1 in D.P. 217848	Woodonga	Monteagle	Part	9475	94 P
Portion 48	Woodonga	Monteagle	Part	9822	131
Portion 255	Woodonga	Monteagle	Part	1779	70 P
Portion 311	Woodonga	Monteagle	Part	9585	228

NOW Lot 7 D.P. 250253
 NOW Lot 3 D.P. 250253
 b.c.11

8.

J. H. ...

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 305	Woodonga	Monteagle	Part	6510	39 ☒
Portion 149	Dananbilla	Monteagle	Part	1653	156
Portion 127	Dananbilla	Monteagle	Part	8363	56
Portions 114 and 128	Dananbilla	Monteagle	Part	3844	69
Portion 146	Dananbilla	Monteagle	Part	1611	246
Portion 107	Dananbilla	Monteagle	Part	1583	190
Portion 70	Dananbilla	Monteagle	Part	1609	35
Portion part 87 in F.P. 388732	Dananbilla	Monteagle	Part	6897	96
Portions 72 and part 87	Dananbilla	Monteagle	Part	8420	113
Portions 21 and 23	Dananbilla	Monteagle	Part	799	62
Portion 186	Dananbilla	Monteagle	Part	5777	176
Portions 74,89,90, 92 and 93	Dananbilla	Monteagle	Part	10951	160
Portion 39	Dananbilla	Monteagle	Part	3341	95
Portion 37	Dananbilla	Monteagle	Part	3341	94
Portion 36	Dananbilla	Monteagle	Part	3341	93
Portion 35	Dananbilla	Monteagle	Part	3341	92
Portion 41	Dananbilla	Monteagle	Part	3341	96
Portions 40 and 42	Dananbilla	Monteagle	Part	13157	210
Portion 94	Willawong	Monteagle	Part	13157	210
Portions 77 and 78	Murringo	Monteagle	Part	13157	210
Lot 2 in D.P. 549306	Murringo	Monteagle	Part	11634	165
Portion 70	Willawong	Monteagle	Part	4319	16
Portion 13	Willawong	Monteagle	Part	4540	53

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 97	Willawong	Monteagle	Part	2326	34
Portion 16	Willawong	Monteagle	Part	13056	93
Portion 160	Willawong	Monteagle	Part	10409	209
Portion 195	Willawong	Monteagle	Part	10166	58
Part Lot 4 in D.P. 225862	Willawong	Monteagle	Part	10336	86
Parts Lot 1 in D.P. 225862	Willawong	Monteagle	Part	10336	83
Part Lot 5 in D.P. 543663	Willawong	Monteagle	Part	11436	212
Portion 444 and 383	Geegullalong	Monteagle	Part	7888	82/83
Portions 148,314 and 382	Geegullalong	Monteagle	Part	10366	186
Portion 283 and 282	Geegullalong	Monteagle	Part	4720	212
Portion part 105	Geegullalong	Monteagle	Part	2163	236
Portion part 105 and 106	Geegullalong	Monteagle	Part	3745	165
Portions 97 and 89	Geegullalong	Monteagle	Part	11084	113
Portion 90	Geegullalong	Monteagle	Part	73	100
Portions 88 and 87	Geegullalong	Monteagle	Part	11084	115
Portion 84	Geegullalong	Monteagle	Part	1015	105
Portion 85	Geegullalong	Monteagle	Part	1015	106
Lots 196 and 197 in D.P. 2493	Geegullalong	Monteagle	Part 9	1747	404
Lot 198 in D.P. 2493	Geegullalong	Monteagle	Part	12794	9
Lots 170,169,168 in D.P. 2493	Gcorama	Harden	Part	6091	5
Lots 59 and 60 in D.P. 2493	Boorowa	King	Part	3010	109

Now being PART of and comprised in
Part of the Vol 1319 Fol 89

10.

J.R. Shilland

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Lot 84 in D.P. 2493	Boorowa	King	Part	6980	67
Lots 83 and 82 in D.P. 2493	Boorowa	King	Part	1056	103
Portion part 143 Railway Reserve 200 Links wide	Boorowa	King	Part	1185	111
Lot 96 in D.P. 2493	Boorowa	King	Part	2629	184
Lot 158 and part 159 in D.P. 2493	Boorowa	King	Part	5758	225
Portion part 50 part Railway Line as shown in F.P. 957876	Boorowa	King	Part	3234	208
Lots 148,149,150 and 157 in D.P. 2493	Boorowa	King	Part	5758	225
Lots 140,141 and 142 in D.P. 2493	Boorowa	King	Part	10953	215
Part Lot 8 in D.P. 236227	Boorowa	King	Part	10904	146 [F]
Lot 7 in D.P. 236227	Boorowa	King	Part	10953	214 [F]
Portions 103,104, 162,163,164,165 and 167	Boorowa	King	Part	7364	84
Portion 148	Boorowa	King	Part	6971	217
Portion 185 and 197	Boorowa	King	Part	10390	29
Portion 12	Boorowa	King	Part	2357	130 and 131
Portion 146	Boorowa	King	Part	2403	31
Portion part 210 in F.P. 167508	Olney	King	Part	3081	218
Portion part 210	Olney	King	Part	4760	105
Closed Roads	Olney	King	Part	7205	62
Portion 302	Olney	King	Part	6466	49
Portions 95,96 and 99	Olney	King	Part	4760	105

5 New Lot 1 in DP 167508

J. H. Holland

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 97	Olney	King	Part	7952	62
Portion 279	Olney	King	Part	4414	56
Portion 126 part Lot D in D.P. 33061	Olney	King	Part	7020	171 and 172
Portion 216	Olney	King	Part	5501	26
Portion 148	Olney	King	Part	10014	187
Portion 298	Olney	King	Part	5271	229
Portion 151 and 204	Olney	King	Part	4640	123
Closed Road	Olney	King	Part	4500	34
Portion 153	Olney	King	Part	295	34
Portion 295	Olney	King	Part	3699	106
Portion 296	Olney	King	Part	7604	162
Portions 53 and part 188	Olney	King	Part	7429	20
Portion part 188	Olney	King	Part	3762	95 [B]
Portion 51	Olney	King	Part	6718	244 [B]
Portion 71	Olney	King	Part	6768	99 [B]
Portion 285	Olney	King	Part	3762	182
Portion 9	Opton	King	Part	3294	179
Portion 11	Opton	King	Part	9694	114
Portion 130	Elakney	King	Part	8084	244
Portion 98	Opton	King	Part	4969	151
Portion 122	Opton	King	Part	4969	231
Portion 97	Opton	King	Part	4839	172
Portions 19,44 and 103	Blakney	King	Part	4839	172

12.

J. B. Howard

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 42	Blakney	King	Part	10428	196
Portion 58	Blakney	King	Part	10279	112
Portion 41	Blakney	King	Part	10428	196
Portion 48	Blakney	King	Part	10428	198
Portion 171	Blakney	King	Part	9767	91
Portion 185	Blakney	King	Part	12625	187
Portion 156	Blakney	King	Part	10722	81
Portion 70	Blakney	King	Part	4594	164
Portion 35	Blakney	King	Part	10918	13
Closed Road	Blakney	King	Part	5091	202
Portion 119	Blakney	King	Part	3578	221
Portion 203	Blakney	King	Part	10201	229
Portion 145	Blakney	King	Part	2881	196
Portion 146	Blakney	King	Part	7362	20
Portions 118 and 143	Blakney	King	Part	5440	186
Portion 127	Blakney	King	Part	4271	239
Portion 141	Blakney	King	Part	3287	184
Portion 152	Blakney	King	Part	4560	233
Closed Road	Blakney	King	Part	5440	187
Portion 108 and part closed road	Blakney	King	Part	5440	186
Lot 2 in D.P. 560252	Blakney	King	Part	12066	42
Lot 1 in D.P. 560252	Blakney	King	Part	12066	41
Portion 153	Blakney	King	Part	3484	180
Portion 37	Blakney	King	Part	1574	205

Now being PART of land comprised in Cert. of Title, Vol. 1321, Fol. 95

Should read 5440-186 A 66-17

(P) (P) (P)

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 4	Kildare	King	Part	223	119
Portion 124	Kildare	King	Part	1769	104
Portion 245	Kildare	King	Part	1900	238
Portion 218	Kildare	King	Part	3484	128
Portion 219	Kildare	King	Part	6591	126
Portion 198	Kildare	King	Part	5547	246
Portion 215	Kildare	King	Part	6591	125
Portion 7	Kildare	King	Part	3605	97
Portion 238	Kildare	King	Part	6996	88
Portion 91	Kildare	King	Part	1598	204
Portion 246	Kildare	King	Part	1956	118
Portion 221	Kildare	King	Part	6591	186
Portion 71	Kildare	King	Part	451	212
Portion 237	Kildare	King	Part	6996	87
Portion 249	Bunton	King	Part	2933	63
Portion 290	Bunton	King	Part	4486	189
Portion 257	Kildare	King	Part	6996	89
Portion 329	Bunton	King	Part	8309	178
Portion 289	Bunton	King	Part	8397	59
Portion 255	Bunton	King	Part	5279	114
Portion 92	Bunton	King	Part	903	118
Portion 146	Bunton	King	Part	3633	202
Portion 148	Bunton	King	Part	3657	113
Portions 224 and 97	Bunton	King	Part	7169	13/14

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 100	Bunton	King	Part	6921	191
Portion 69	Bunton	King	Part	2290	44
Portion 164	Dalton	King	Part	1380	82
Portion 112	Dalton	King	Part	2042	141
Portion part 188	Dalton	King	Part	13040	123
Portion 149	Dalton	King	Part	467	146
Portions 40 and 147	Dalton	King	Part	3740	191
Portion 274	Dalton	King	Part	1691	128
Portion 239	Dalton	King	Part	3336	91
Portion 280	Dalton	King	Part	1863	132
Portion 258	Dalton	King	Part	3336	91
Portion 259	Dalton	King	Part	10557	155
Portion 308	Dalton	King	Part	10557	156
Portion 291	Dalton	King	Part	1860	72
Part Lot 1 in D.P. 506211	Dalton	King	Part	9643	127
Part Lot 2 in D.P. 506211	Dalton	King	Part	9643	128
Portion 4	Garway	King	Part	2583	169
Part Lot B in F.P. 361534	Garway	King	Part	6981	177
Lots 2/3 in F.P. 361533	Garway	King	Part	11424	156
Portion part 64 in F.P. 361533	Garway	King	Part	5975	161
Portion 51 and Closed Road	Merrill	King	Part	7286	105
Lot A in F.P. 408354	Cullarin	King	Part	7713	219

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portions 162 and 166	Cullarin	King	Part	7713	219
Portion 195	Cullarin	King	Part	3578	197
Portion 171 and 172	Cullarin	King	Part	8321	138 
Portion 150	Cullarin	King	Part	3970	72
Portion 51	Cullarin	King	Part	4556	215
Portion 52	Cullarin	King	Part	8316	3
Portion 194	Cullarin	King	Part	10422	80
Closed Road	Cullarin	King	Part	12133	204
Portion 167	Cullarin	King	Part	10422	79
Portion 98	Mutmutbilly	Argyle	Part	7702	122/123
Portion 16	Mutmutbilly	Argyle	Part	7713	224
Portion part 15	Mutmutbilly	Argyle	Part	4711	153 to 156 Incl.
Part Lot 1 in D.P. 208463	Mutmutbilly	Argyle	Part	3373	156 
Portion 124	Bredalbane 	Argyle	Part	11081	205 
Portion 113	Bredalbane	Argyle	Part	2637	10 
Portion 62	Bredalbane	Argyle	Part	3330	127
Portion 107	Bredalbane	Argyle	Part	7561	101
Portion 122	Bredalbane	Argyle	Part	10475	65
Portion part 134	Bredalbane	Argyle	Part	2361	237 and  238 
Lot A in F.P. 176415	Bredalbane	Argyle	Part	2776	61/62
Part Lot 1 in D.P. 563946	Bredalbane	Argyle	Part	12233	192
Part Lot 2 in D.P. 563946	Bredalbane	Argyle	Part	12233	193
Portion part 210 in D.P. 443891	Baw Baw	Argyle	Part	7837	25

227 227
Vol. 13315 Fol. 220/221
Now Vol. 13315 Fol. 220/221

16.

J. Holland

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion 77	Baw Baw	Argyle	Part	10151	50
Portion 76	Baw Baw	Argyle	Part	10151	49
Portion 75	Baw Baw	Argyle	Part	10151	48
Lot 7 D.P. 251952 Closed Road	Baw Baw	Argyle	Part	10441	221
Portion 78	Baw Baw	Argyle	Part	5615	163
Portion 73	Baw Baw	Argyle	Part	12149	23
Portion 72	Baw Baw	Argyle	Part	12149	22
Portion 43	Baw Baw	Argyle	Part	10392	42
Lot 5 in D.P. 251952	Baw Baw	Argyle	Part	10516	99
Portion 79	Baw Baw	Argyle	Part	7362	250
Lot 6 in D.P. 251952	Baw Baw	Argyle	Part	10670	112
Closed Road	Baw Baw	Argyle	Part	7909	9
Lot 1 in D.P. 580930	Baw Baw	Argyle	Part	12983	44
Lot 2 in D.P. 580930	Baw Baw	Argyle	Part	12983	45
Lot 3 in D.P. 580930	Baw Baw	Argyle	Part	12983	46
Lot 4 in D.P. 580930	Baw Baw	Argyle	Part	12983	47
Portion 132	Baw Baw	Argyle	Part	12370	19
Lot 4 in D.P. 29252	Narrangarril	Argyle	Part	7872	201
Lot 3 in D.P. 221213	Narrangarril	Argyle	Part	9715	111
Lot 2 in D.P. 29252	Narrangarril	Argyle	Part	7973	231
Lot 1 in D.P. 29252	Narrangarril	Argyle	Part	9081	5
Lot 20 in D.P. 562173	Narrangarril	Argyle	Part	12168	205
Lot 21 in D.P. 562173	Narrangarril	Argyle	Part	12168	206
Lot 22 in D.P. 562173	Narrangarril	Argyle	Part	12168	207

Now Lot 13 in D.P. 251952
Surplunge - Pipeline does not affect titles
Now Crown Land vide R.P. 756

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Lot 29 in D.P. 479 part of F.P. 916825	Narrangarril	Argyle	Part	6518	119
Lots 1 to 3 Inclusive in D.P. 569505	Narrangarril	Argyle	Part	12501	235, 236 and 237
Lot A in F.P. 357487	Narrangarril	Argyle	Part	5776	52
Part Lot 34 in D.P. 479	Narrangarril	Argyle	Part	1525	76
Part Lot 34 in D.P. 729	Narrangarril	Argyle	Part	1524	82
Part Lot 31 in D.P. 479	Narrangarril	Argyle	Part	1525	14
Lots 32 and 33 in D.P. 479	Narrangarril	Argyle	Part	513	167
Lot 10 in D.P. 581728	Towrang	Argyle	Part	13094	200
Portion part 121 in F.P. 56980	Towrang	Argyle	Part	2541	99
Portion 165	Norrong	Argyle	Part	9854	122
Closed Road	Norrong	Argyle	Part	9854	122
Portion 48	Nattery	Argyle	Part	8440	243
Portion 98	Nattery	Argyle	Part	7010	3
Lot 2 in D.P. 245851	Nattery	Argyle	Part	12330	243
Lot 3 in D.P. 245851	Nattery	Argyle	Part	12330	242
Portion 78	Nattery	Argyle	Part	13160	111
Portion 66	Nattery	Argyle	Part	4060	63
Lot 2 in D.P. 574255	Nattery	Argyle	Part	12832	6
Lot 1 in D.P. 574255	Nattery and Billyrambija	Argyle	Part	12832	5
Portion 230	Marulan	Argyle	Part	3633	103
Portion 214	Uringalla	Argyle	Part	2815	3
Portion 215	Uringalla	Argyle	Part	4590	102

18.

J. McLeod

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portions 174 and 113	Uringalla	Argyle	Part	6710	190
Closed Road	Uringalla	Argyle	Part	11196	60
Portion part 246	Uringalla	Argyle	Part	7745	232
Lot 2 in D.P. 553787	Uringalla	Argyle	Part	8464	244
Portion 117	Uringalla	Argyle	Part	3992	226
Portion 255	Uringalla	Argyle	Part	7847	203
Portions 211, 12, 182 and 184	Uringalla	Argyle	Part	8361	249
Portion 243	Uringalla	Argyle	Part	4991	37
Portions 40, 50, 51, 122, 185, 204, 209 and 261	Uringalla	Argyle	Part	12782	243
Portion 15	Wingello	Camden	Part	10878	230
Lot 11 in D.P. 250694	Wingello	Camden	Part	13060	14
Lot 12 in D.P. 250694	Wingello	Camden	Part	13060	15
Portion 156	Wingello	Camden	Part	11141	248
Portion 157	Wingello	Camden	Part	11141	246
Lot 3 in D.P. 551824	Wingello	Camden	Part	11952	206
Portion 173	Wingello	Camden	Part	11141	247
Portion 183	Wingello	Camden	Part	8478	198
Portion part 137	Murrumba	Camden	Part	5546	77
Lot 2 in D.P. 506714	Murrumba	Camden	Part	9623	67
Lot 1 in D.P. 506714	Murrumba	Camden	Part	9623	66
Lot B in D.P. 411735	Murrumba	Camden	Part	10103	147

Does not affect surplusage
 Lot 15 in D.P. 250694

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J. B. Howard

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Lot 9 in D.P.240164	Murrumba	Camden	Part	11517	9 E
Lot 8 in D.P.240164	Murrumba	Camden	Part	11517	8
Lot 7 in D.P.240164	Murrumba	Camden	Part	11517	7 P
Lot 6 in D.P.240164	Murrumba	Camden	Part	11517	6
Lot 5 in D.P.240164	Murrumba	Camden	Part	11517	5
Lot 4 in D.P.240164	Murrumba	Camden	Part	11517	4
Lot 3 in D.P.240164	Murrumba	Camden	Part	11517	3
Lot 2 in D.P.240164	Murrumba	Camden	Part	11517	2
Lot 1 in D.P.240164	Murrumba	Camden	Part	11517	1
Lot 13 in D.P.584791	Murrumba	Camden	Part	13141	16
Lot 14 in D.P.584791	Murrumba	Camden	Part	13141	17
Lot 12 in D.P.556965	Murrumba	Camden	Part	12003	87
Lot 2 in D.P.239391	Murrumba	Camden	Part	11355	12
Lot 3 in D.P.239391	Murrumba	Camden	Part	11355	13
Lot 4 in D.P.239391	Murrumba	Camden	Part	11355	14
Lot 5 in D.P.241054	Murrumba	Camden	Part	11658	155
Lot 6 in D.P.241054	Murrumba	Camden	Part	11658	156
Lot 7 in D.P.241054	Murrumba	Camden	Part	11658	157 P
Lot 8 in D.P.241054	Murrumba	Camden	Part	11658	158
Lot 9 in D.P.241054	Murrumba	Camden	Part	11658	159
Lot 10 in D.P.241054	Murrumba	Camden	Part	11658	160
Lot 11 in D.P.241054	Murrumba	Camden	Part	11658	161
Lot 2 in D.P.219595	Murrumba	Camden	Part	* 9711	247
Portion 126	Sutton Forest	Camden	Part	4839	95 E

20.

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Polio
Portions 129 and 130	Sutton Forest	Camden	Part	3529	97 ☒
Portion 113	Sutton Forest	Camden	Part	4839	95 ☒
Lot 1 in D.P.219841	Sutton Forest	Camden	Part	9699	13
Lot 2 in D.P.239258	Sutton Forest	Camden	Part	11340	121
Lots 3 and 4 in D.P. 239258	Sutton Forest	Camden	Part	11340	122/123
Lot 1 in D.P.239258	Sutton Forest	Camden	Part	11340	120
Lot 5 in D.P.239258	Sutton Forest	Camden	Part	11340	124
Portion part 9 in F.P. 63772	Sutton Forest	Camden	Part	8410	84
Lot 9 in D.P.567386	Sutton Forest	Camden	Part	12362	180
Lot 2 in D.P.243463	Sutton Forest	Camden	Part	11985	17 ☒
Lots 5, 4 and 5 in D.P. 243463	Sutton Forest	Camden	Part	11985	18,19 and 20
Lot part 2 in D.P. 18079	Sutton Forest	Camden	Part	11985	22
Lot 10 in D.P. 567386	Sutton Forest	Camden	Part	12362	181
Lot 5 in D.P.11147	Belanglo	Camden	Part	6532	37
Lot 4 in D.P.11147	Belanglo	Camden	Part	3729	219 ☒
Portion part 37	Bong Bong	Camden	Part	7264	90
Reserve in D.P. 2715	Bong Bong	Camden	Part	1012	169
Lots 6,7 and 8 in D.P. 2715	Bong Bong	Camden	Part	7661	129,130 and 131 ☒
Portion part 37 Lot 2 in D.P.406439	Bong Bong	Camden	Part	5300	237
Portion part 37	Bong Bong	Camden	Part	6816	171
Portion part 33 in F.P. 88227	Bong Bong	Camden	Part	10579	176

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Portion part 32	Bong Bong	Camden	Part	3213	191
Portion part 32	Bong Bong	Camden	Part	3628	52
Lot 10 in D.P.10658	Bong Bong	Camden	Part	3628	52
Part Lot 5 in D.P. 10658	Bong Bong	Camden	Part	9961	99
Lots 1 and 2 in D.P. 581071	Bong Bong	Camden	Part	12985	156/157
Lot 2 in D.P.510645	Bong Bong	Camden	Part	9800	15
Lot 2 in D.P.580513	Bong Bong	Camden	Part	12956	250
Lot 13 Section C in D.P. 2810	Bong Bong	Camden	Part	3362	159
Lots 11 and 12 Section C D.P. 2810	Bong Bong	Camden	Part	4856	234
Part Lots 7 and 8 Section C in D.P. 2810	Bong Bong	Camden	Part	2624	5
Lots 11 and 18 Section D in D.P. 2810	Bong Bong	Camden	Part	12396	90
Lot 22 in D.P. 5284	Bong Bong	Camden	Part	1362	235 ☒
Portion part 188 in F.P. 367112	Yarrunga	Camden	Part	6231	54
Lot 11 in D.P.551149	Yarrunga	Camden	Part	11706	59
Lot 13 in D.P.553406	Yarrunga	Camden	Part	11779	231
Lot 12 in D.P.553406	Yarrunga	Camden	Part	11779	230
Lot 28 in D.P. 3147	Yarrunga	Camden	Part	10932	10
Lots 4A and 5A in D.P. 3147	Mittagong	Camden	Part	1675	114
Lot 16 Section A in D.P. 1416	Mittagong	Camden	Part	12789	15
Lot 1 in D.P.573955	Mittagong	Camden	Part	12789	13
Lot 2 in D.P.573955	Mittagong	Camden	Part	12789	14

SCHEDULE

Should read D.P. 573272 }
 Now Lot 1 in D.P. 942940 } *Q* 6-6-77

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SCHEDULE

Lot or Portion	Parish	County	Whole of Part	Volume	Folio
Lot 31 in D.P.12975	Bargo	Camden	Part	9913	155
Lot 32 in D.P.12975	Bargo	Camden	Part	9913	156
Lots 33 and 34 in D.P. 12975	Bargo	Camden	Part	6690	221
Lots 35 to 39 Inclusive in D.P. 12975	Bargo	Camden	Part	4364	147
Lot 40 in D.P.12975	Bargo	Camden	Part	7251	36
Lot 41 in D.P.12975	Bargo	Camden	Part	4635	157
Lot 42 in D.P.12975	Bargo	Camden	Part	6584	44
Lots 5 and 6 in D.P. 12975	Bargo	Camden	Part	6408	186
Lot 1 in D.P.12975	Bargo	Camden	Part	6434	41
Lot 43 in D.P.9024	Bargo	Camden	Part	9299	14
Portion 103 in D.P. 554355	Bargo	Camden	Part	11909	196
Lot 44 in D.P.9024	Bargo	Camden	Part	2974	136
Lot 113 in D.P.9024	Bargo	Camden	Part	3386	176
Lot 115 in D.P.9024	Bargo	Camden	Part	2885	227
Lot 1 in D.P. 566595	Bargo	Camden	Part	12477	156
Lot 21 in D.P.581399	Bargo	Camden	Part	13054	91
Lot 22 in D.P.581399	Bargo	Camden	Part	13054	92
Lots 3 and 4 in D.P. 566595	Bargo	Camden	Part	12514	193/194
Lot 1051 in D.P. 547158	Bargo	Camden	Part	11894	135
Lot 9 in D.P.250750	Bargo	Camden	Part	13072	37
Lot 4 in D.P.243562	Bargo	Camden	Part	11943	89

Lot 4 in D.P. 12975 - Vol. 13054 Folio 93 & 94 respectively

24.

J. R. Holland

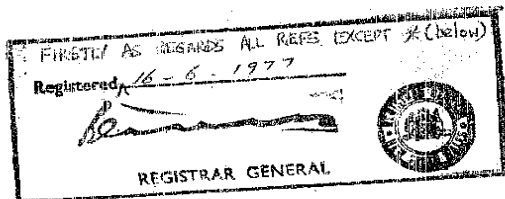
SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Lot 14 in D.P.250498	Bargo	Camden	Part	12943	158
Lot 15 in D.P.250498	Bargo	Camden	Part	12943	159
Lot 16 in D.P.250498	Bargo	Camden	Part	12943	160
Lot 17 in D.P.250498	Bargo	Camden	Part	12943	161
Lot 25 in D.P.250498	Bargo	Camden	Part	12943	169
Portion part 80 and 79 (Part Lot C F.P. 364722)	Bargo	Camden	Part	7539	204
Lot 25 in D.P.250498	Bargo	Camden	Part	12943	169
Lot 2 in D.P.561804	Bargo	Camden	Part	12190	123
Portion 210	Bargo	Camden	Part	3092	191
Portion 158	Bargo	Camden	Part	5665	202
Portion 154	Bargo	Camden	Part	9523	133
Portion part 152	Bargo	Camden	Part	7353	153
Portion part 152 in F.P.400703	Bargo	Camden	Part	7353	152 <u>121</u>
Lot A in F.P.392056	Bargo	Camden	Part	7053	169
Lot 3 in D.P.251761	Bargo	Camden	Part	13144	143
Lot 5 in D.P.251761	Bargo	Camden	Part	13144	144
Lot 18 in D.P.251051	Wilton	Camden	Part	12985	178
Part Lot 10 in D.P. 233845 (Mineral Rights)	Wilton	Camden	Part	10622	193
Lot 7 in D.P.201250 (Title excludes mineral rights in Transfer H864463)	Wilton	Camden	Part	9162	199B <u>P</u>
Lot 7 in D.P.201250 (Mineral Rights)	Wilton	Camden	Part	9162	199A
Lot 6 in D.P.201250 (Title excludes mineral rights in Transfer M325099)	Wilton	Camden	Part	12014	101

Now being Part of land comprised in
 Cert. of Title, Vol. 13307, p. 202

SCHEDULE

Lot or Portion	Parish	County	Whole or Part	Volume	Folio
Lot 6 in D.P. 201250 (Mineral Rights)	Wilton	Camden	Part	9162	198
Lot 5 in D.P.201250 (Title excludes mineral rights)	Wilton	Camden	Part	12014	107
Lot 5 in D.P.201250 (Mineral Rights)	Wilton	Camden	Part	9162	197
Lots 7 and part 6 in F.P.62947	Wilton	Camden	Part	4798	189/190
Lot 1 in D.P. 218290	Wilton	Camden	Part	11510	38
Lot 2 in D.P.218290 (All mines and minerals below 500 feet from surface excepted)	Wilton	Camden	Part	11510	39
Portion 1.(Title excludes all mines and minerals excepted by Transfer B896159)	Wilton	Camden	Part	9596	127
Portion 1 (Mineral Rights)	Wilton	Camden	Part	6260	35
Lot 3 in D.P.570000	Wilton	Camden	Part	12814	232



LODGED BY:-

DEPUTY Crown Solicitor
119 Phillip Street, Sydney.
Ext. SP27550/4/1063
238-0211 EXT. 207

Passed in S.D.B. *[Signature]*

9.6.77

25 *[Signature]*

[Signature]
RB

* (except for Vol. 3633 Fol. 103)

" 6591	" 125
" 6996	" 87-89 incl.
" 7872	" 201
" 7960	" 169
" 8247	" 138
" 8321	" 138
" 10918	" 13
" 13307	" 168/169/200-202 incl.
" 12214	" 101-107
" 13306	" 201-204 incl.

Passed in S.D.B. *[Signature]* 10-11-77

[Signature]

Registered FINALLY as regards the following references:

Vol. 6591	Fol. 125	Vol. 7872	Fol. 201
" 8321	" 138	" 13306	" s 201 to 204 incl.
" 13307	" 168&169	" 13307	" s 200 to 202 incl.

[Signature] 
Registrar General.

M.P.R. - 1981

97-11R



REQUEST

Real Property Act 1900



U
335764 V

(A) STAMP DUTY

If applicable.

SEE COPIES - "A, B, C, D, E, F, G, H, I, K, L, M, N, P, Q, R, S, T, U"
Office of State Revenue use only V, W, X, Y, Z,

(B) TITLE

Show no more than 20.

SEE ANNEXURE "A" HERETO

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box

245R

Name, Address or DX and Telephone

AUSTRALIAN GOVERNMENT SOLICITOR

133 CASTLEREAGH STREET

SYDNEY NSW 2000

DX444 SYDNEY (02) 581 7595

REFERENCE (max 15 characters): 94030482/dixon

Dealing Code

OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND

EAST-AUSTRALIAN PIPELINE LIMITED ACN 064 629 009

(F) REQUEST

The Applicant hereby requests the Registrar General to note the following with respect to the Easement for Pipeline on the titles listed in Annexure "A":

"NOTE: Pursuant to Section 14(1) of the Moomba-Sydney Pipeline System Sale Act 1994 the Easement for Pipeline is now owned by the Commonwealth of Australia and East-Australian Pipeline Limited as Tenants-in-Common in Equal Shares."

Copies of the following documents in support of this Application are attached to registered dealing 06128:

- A. Commonwealth Gazette No. S272 dated 12 July 1994.
- B. Commonwealth Gazette No. S225 dated 24 June 1994.
- C. Certificate of Registration on Change of Name dated 2 August 1994.
- D. Certificate under Section 25 of the Moomba-Sydney Pipeline System Sale Act 1994.

CHECKED BY (office use only)

EM 23

(G) .

STANDARD EXECUTION

Certified correct for the purposes of the Real Property Act 1900.

DATE

26th June 1995

Signed in my presence by the Applicant who is personally known to me.

Signature of Witness

Name of Witness (BLOCK LETTERS)

Address of Witness

Megan Pitt
(Signature of Applicant)
(MEGAN PITT)

AUSTRALIAN GOVERNMENT SOLICITOR
AND SOLICITOR FOR THE APPLICANT

EXECUTION INCLUDING STATUTORY DECLARATION

I make this solemn declaration conscientiously believing the same to be true and by virtue of the Oaths Act 1900, and I certify this Application correct for the purposes of the Real Property Act 1900, Made and subscribed at in the State of on 19 in the presence of

Signature of Witness

Name of Witness (BLOCK LETTERS)

Address and Qualification of Witness

Signature of Applicant

"A"

This and the following 38 pages is the Annexure marked with the letter "A"
referred to in the annexed Request dated the 26th day of June 1995

1. 1/593579
2. 1989/764118
- 2A. ~~6580/767189~~ 6503/767189 
- 2B. Auto Cons 5137-197
- 2C. 4352/767188
- 2D. 5260/767188
3. ~~4623/768085~~ as regards Commonwealth
1/832569
2/832569 Gazette dated 26.2.1974. 
4. 4621/768083
5. 4627/768087
6. 4624/768086
7. 3563/765915
8. 1087/762411 as regards Commonwealth
Gazette dated 26.2.1974.
9. 1088/762412
10. 1/593525
11. 3542/765894
12. 3543/765895
13. 3546/765898
14. 1064/762311
15. 3545/765897
16. 3556/765908

17. 556/761654
18. 559/761519
19. 557/761517
20. 3688/766070
21. 3689/766071
22. 3/752774
23. 1/752774
24. 3692/766074
25. 3/593787
26. 3694/766076
- 26A. 3698/766080
27. 3659/766041
28. 3983/766456 as regards Commonwealth
Gazette dated 26.2.1974.
29. 6147/768987
- 29A. ~~6146/768987~~ 6146/768986. 
30. 5/760118
31. 2383/764346
32. 913/762070
33. 2385/764348
34. 3226/765431

- 35. 2392/764355
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- 39. 848/761957 as regards Commonwealth
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- 40. 849/761947
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- 44. 3730/766143 as regards Commonwealth
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- 45. 3735/766148
- 46. 4605/45037 as regards Commonwealth
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- 47. 1200/762841
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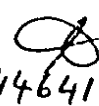
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MANUAL

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DO NOT USE BOTH SIDES OF THE FORM

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SECOND SCHEDULE AND OTHER DIRECTIONS

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6455-26 ✓				
6527-43 ✓				
6980-67 ✓	ON	AA		Encumbrance created by R147076
7169-13 ✓				vested in The Commonwealth
7169-14 ✓				of Australia and East Australian
7190-246 ✓				Pipelines Limited
7286-105 ✓				
7429-20 ✓				
7702-122 ✓				
7702-123 ✓				
7800-76 ✓				
7800-77 ✓				
7952-62 ✓				
8420-113 ✓				
8494-243 ✓				
9751-60 ✓				
9854-122 ✓				
10001-62				
10509-195 ✓				
10580-140 ✓				
10770-200 ✓				
10866-187 ✓				
11938-185 ✓				
13623-241 ✓				
13623-242 ✓				
13836-33 ✓				

OVER

MANUAL

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FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
9961-99 ✓	ON	AA		Easement created by Q147076 vested in The Commonwealth of Australia and East-Australian Pipeline Limited
14603-12				
14603-130 ✓				
15175-12 ✓				
12034-205	ON	AA		Easement created by 0515092 vested in The Commonwealth of Australia and East-Australian Pipeline Limited.
Quail Point				
ALL - CT			NOCT	

97-114



REQUEST

Real Property Act 1900

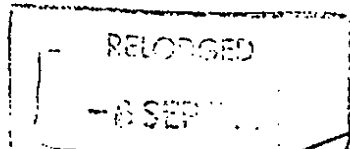
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(A) STAMP DUTY

If applicable.

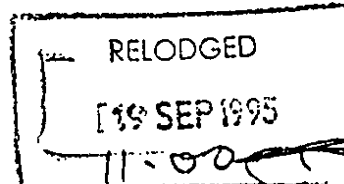
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(B) TITLE

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D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
EAST-AUSTRALIAN PIPELINE LIMITED ACN 064 629 009

(F) REQUEST

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- D. Certificate under Section 25 of the Moomba-Sydney Pipeline System Sale Act 1994.

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REGISTRATION DIRECTION ANNEXURE

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SECOND SCHEDULE AND OTHER DIRECTIONS

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
52/635578	{ UNDR ON	AB VA		
51/713978	{ UNDR ON	EA		
531/747509		EA		
532/747509		VA		
3822/701691	{ UNDR ON	EA		
2/361804		EA		
210/751250		EA		
158/751250		EA	Q147076	Easement vested in the Commonwealth of Australia and East-Australian Pipeline Limited.
154/751250		VA		
1/120009				
1/400703				
22/623841				
37/255689	{ UNDR ON	EA		
36/255689		EA		
35/255689		EA		
2/622888		EA	Q147076	
1/622888		VA		
33/255689				
32/255689				
31/618097				
ALL	CT	NOCT		

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REQUEST

Real Property Act 1900

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If applicable.

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(B) TITLE

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(C) REGISTERED DEALING

If applicable.

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(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS	
3/570000	{ UNDR	AA			
1/832569		VA			
3/588809	{ UNDR	AB			
6508/767189		VA			
21/623841	{			Easement vested in The Commonwealth of Australia and East-Australian Pipeline Limited	
5/251741					
18/251051					
74/837310					
2/702025					
1/115476		UNDR	EA		Q147076
2/836296		ON	VA		
3/836296					
4/836296					
5/836296					
6/836296					
11/702024					
1/130301					
75/837310	{ UNDR	EB	Q147076		
31/847564		ON	VA		
73/837310	{ UNDR	RY		Easement created by Q147076 vested in The Commonwealth of Australia and East-Australian Pipeline Limited	
		ON	VA		

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REQUEST

Real Property Act 1900

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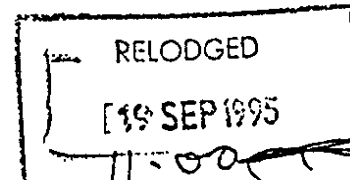
If applicable.

Office of State Revenue use only

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(B) TITLE

Show no more than 20.



SEE "C" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box

245R

Name, Address or DX and Telephone

AUSTRALIAN GOVERNMENT SOLICITOR

133 CASTLEREAGH STREET

SYDNEY NSW 2000

DX444 SYDNEY (02) 581 7595

REFERENCE (max 15 characters): 94030482/dixon

Dealing Code

OVER

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

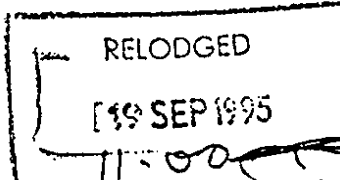
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE

Show no more than 20.



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D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

If applicable.

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(B) TITLE

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RELODGED
[19 SEP 1995]

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D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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DO NOT USE BOTH SIDES OF THE FORM

0335764"E"

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
1/593579	} UNDR	AA		<i>Easement vested in the Commonwealth of Australia and East-Australian Pipeline Australia Limited</i>
1/593525		VA		
4352/767188	} UNDR	AB		
5260/767188		VA		
1989/762118				
4421/768083				
4627/768087				
4624/768086				
3563/765915				
1087/762411				
1088/762412	} UNDR	BA		
3542/765894		VA		
3543/765895				
3546/765898				
1064/762311				
3545/765897				
3556/765908				
556/761654				
559/761519				
5137-197	} UNDR	EA	Q147076	
		VA		
ALL	CT		NOCT	

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

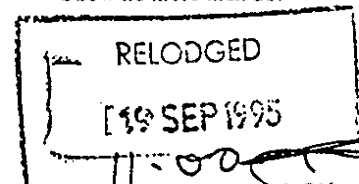
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE

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(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

If applicable.

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- 8 SEP 1995

(B) TITLE

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RELODGED
[19 SEP 1995]

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(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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REQUEST

Real Property Act 1900

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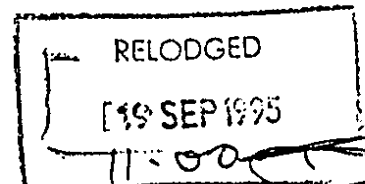
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE

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(C) REGISTERED DEALING

If applicable.

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(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
4105/766110				
1850/763803	UNDR	AB		
895/762051	ON	UA		
610/761596				
4697/767251				
6418/762969				
896/762064				
897/762065				
3647/766029	UNDR	EA		
3648/766030	ON	UA		
323/765472				
3124/765473				
4366/767203				
6133/769375				
894/762050	UNDR	EB		
	ON	UA		
2/778426				
96/750668	UNDR	EA	Q147076	
44/752356	ON	UA		
26/752356				
5/752356	UNDR	EC	Q147076	
	ON	UA		
874/762050	OFF	RNB	DP641803	
ALL - CT -		DOCT		

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

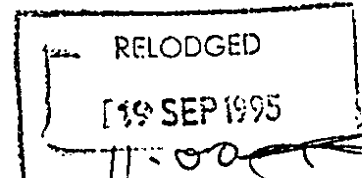
If applicable.

Office of State Revenue use only

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(B) TITLE

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D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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CHECKED BY (office use only)

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Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM

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FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
14115-37				
2/83337	{ UNDR	AA		
122/580540	{ ON	UA		
36/753123				
1/111975	{ UNDR	AB		
23/753103	{ ON	UA		
7847-59				
34/753123	{ UNDR	EM		
15/753103	{ ON	UA.		
5041-27				
421/604341				
7322-198				
3/752313	{ UNDR	EA	R147076	
9/753126	{ ON	UA.		
4/753126				
3/753126				
6/753103				
15379-127				
24/753103	{ UNDR	EB	R147076	
19/753103	{ ON	UA		
14115-37	OFF	BA	Request	
1/111975	OFF	BA	(R373559)	
ALL - CT -			NOCT	

97-11R



REQUEST

Real Property Act 1900

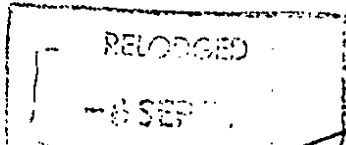
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(A) STAMP DUTY

If applicable.

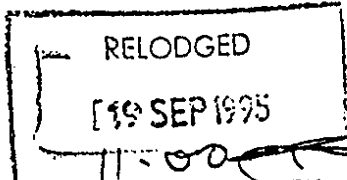
Office of State Revenue use only

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(B) TITLE

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(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
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REQUEST

Real Property Act 1900

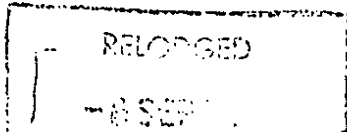
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(A) STAMP DUTY

If applicable.

Office of State Revenue use only

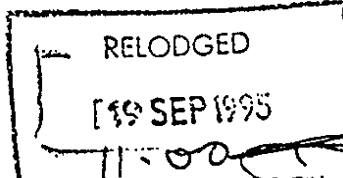
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(B) TITLE

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(C) REGISTERED DEALING

If applicable.

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(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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97-11K



REQUEST

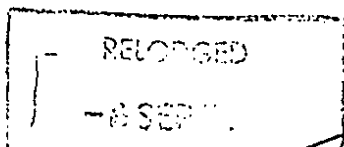
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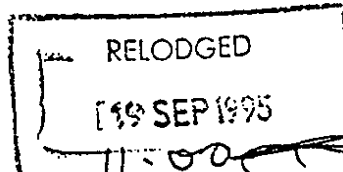
(A) STAMP DUTY
If applicable.

Office of State Revenue use only

R1/1



(B) TITLE 3.40
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(C) REGISTERED DEALING
If applicable.

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(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
EAST-AUSTRALIAN PIPELINE LIMITED ACN 064 629 009

(F) REQUEST

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0335764¹ M¹¹

DO NOT USE BOTH SIDES OF THE FORM

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
192/75R50				
191/75I250	{ UNDR	AA		
131/85I807	ON	VA		
62/589365				Easement created in The Commonwealth of Australia and East-Australian Pipeline Limited
61/589365				
190/650138				
29/12975				
28/12975				
31/12975				
32/12975	{ UNDR	EA R147076		
33/12975	ON	VA		
34/12975				
40/12975				
41/12975				
42/12975				
6408-186				
43/9024				
44/629344				
4364-147				
21/813656	{ UNDR	RX		Easement created by R147076
	ON	VA		created in The Commonwealth of Australia and East-Australian Pipeline Limited
ALL - CT - NOCT				

ALL - CT - 20 CT

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REQUEST

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(A) STAMP DUTY

If applicable.

Office of State Revenue use only

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- 8 SEP -

(B) TITLE

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SEE "N" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box

245R

Name, Address or DX and Telephone

AUSTRALIAN GOVERNMENT SOLICITOR

133 CASTLEREAGH STREET

SYDNEY NSW 2000

DX444 SYDNEY (02) 581 7595

REFERENCE (max 15 characters): 94030482/dixon

Dealing Code

OVER

(E) APPLICANT

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(A) STAMP DUTY

If applicable.

Office of State Revenue use only

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(B) TITLE

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19 SEP 1995

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D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box

245R

Name, Address or DX and Telephone

AUSTRALIAN GOVERNMENT SOLICITOR
133 CASTLEREAGH STREET
SYDNEY NSW 2000
DX444 SYDNEY (02) 581 7595
REFERENCE (max 15 characters): 94030482/dixon

Dealing Code

OVER

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FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
13188-144	UNDR	EA		
6162-116	ON	UA		
101/750600				
74/750600				
1/826417				
9709-148				
57/750580				
6528-65				
22/750580				
23/750580				
83/750580	UNDR	EA	Q147076	
45/750580	ON	UA		
71/750580				
10616-194				
51/750585				
54/750585				
37/750585				
36/750585				
6162-117				
1/120837				
ALL — CT — NO CT				

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REQUEST

Real Property Act 1900

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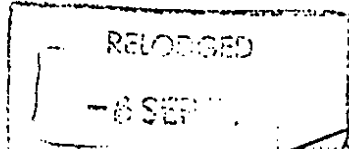
(A) STAMP DUTY

If applicable.

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Office of State Revenue use only

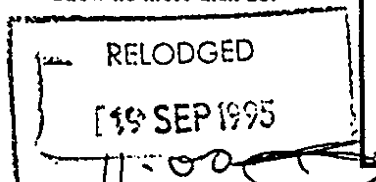
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(B) TITLE

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SEE "Q" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone.	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM.

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FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
136/754594	{ UNDR	AA		
	ON	UA		
6561-193	{ UNDR	EA		
50/754594	ON	UA		
78/750585				
133/754594				
135/754594				
45/657973				
1/653499				
1/571813				
2/571813	{ UNDR	EA	Q 147076	Encumbrance vested in Commonwealth of Australia and East - Australia Pipeline Limited
62/754594	ON	UA		
102/754594				
110/754594				
108/754594				
30/754581				
140/754581				
95/754581				
9635-238				
3542-83				
9589-172	{ UNDR	EA	U304654	
	ON	UA		
1/571813	{ OFF	BA	(N8)9415	
2/571813				
52/754594	OFF	BA		
ALL	- CT -		NOCT	

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(A) STAMP DUTY

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Office of State Revenue use only

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(B) TITLE

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[19 SEP 1995]

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(C) REGISTERED DEALING

If applicable.

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(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM

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FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
1/557275	UNDR	AA		
6/754609	ON	UA		
333/754582				
12894-52	UNDR	EA		
299/754582	ON	UA		
2/804524	UNDR	AA	R147076	
2/574153	ON	UA		
12809-172				
41/754581				
94/754581				
7719-84	UNDR	EA	R147076	
8380-11	ON	UA		
12955-196				
1/358656				
2/579266				
1/579266				
12/815416				
11/815416	UNDR	EA		
8/812968	ON	UA		
1/812968				
12894-52	OFF	BA	P535877	
2/574153	OFF	BA	N975331	
299/754582	OFF	BA	X308413	
ALL - CT			NOCT	

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY
If applicable.

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- 8 SEP -

(B) TITLE 3.40
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(C) REGISTERED DEALING
If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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SECOND SCHEDULE AND OTHER DIRECTIONS

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
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2/587905	DN	VA		
202/754609	UNDR	EA		
1/388732	DN	VA		
5221-169				
192/754609				
193/754609				
5/285071				
1/317848				
255/754609				
6510-39	UNDR	EA	R147076	
1653-156	DN	VA		
127/754588				
13959-103				
146/754588				
107/754588				
70/754588				
5777-176				
1/318200	UNDR	EB	R147076	
	DN	VA		
7188-183	UNDR	ED	R147076	
	DN	VA		
ALL	CT	NOCT		

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REQUEST

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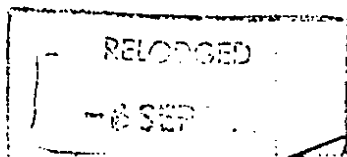
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(A) STAMP DUTY

If applicable.

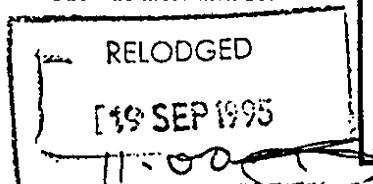
Office of State Revenue use only

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(B) TITLE

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(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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Use this slide only for **Second Schedule** directions

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(A) STAMP DUTY
If applicable.

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- 6 SEP 1995

(B) TITLE 3.40
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RELODGED
[19 SEP 1995]

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(C) REGISTERED DEALING
If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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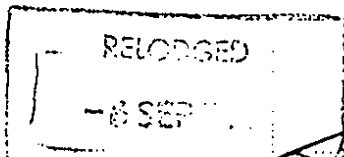
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(A) STAMP DUTY

If applicable.

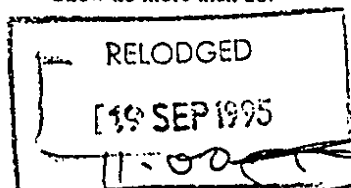
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(B) TITLE

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D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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(A) STAMP DUTY

If applicable.

Office of State Revenue use only

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(B) TITLE

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(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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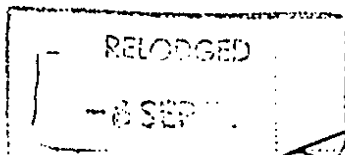
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(A) STAMP DUTY

If applicable.

Office of State Revenue use only



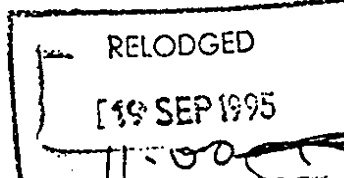
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(B) TITLE

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(C) REGISTERED DEALING

If applicable.

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(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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REGISTRATION DIRECTION ANNEXURE

Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM

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SECOND SCHEDULE AND OTHER DIRECTIONS

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
1/560252	UNDR	AA		Encement vested in The Commonwealth of Australia and East-Australian Pipeline Limited
	ON	UA		
2/560252	UNDR	AB		
	ON	UA		
6/754125	UNDR	EA		
	ON	UA		
145/754102				
146/754102				
A/c 15323-180				
127/754102				
141/754102				
152/754102				Encement vested in The Commonwealth of Australia and East-Australian Pipeline Limited
A/c 15323-179				
153/754102	UNDR	EA	R147076	
A/c 1574-205	ON	UA		
42/827790				
41/827790				
124/754125				
245/754125				
218/754125				
219/754125				
198/754125				Encement vested in The Commonwealth of Australia and East-Australian Pipeline Limited
215/754125				
ALL	CT	NOCT		

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REQUEST

Real Property Act 1900

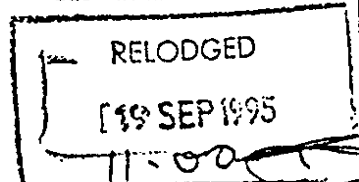
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335764 'Y'

(A) STAMP DUTY
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE 3.40
Show no more than 20.



SEE 'Y' OVER

D

(C) REGISTERED DEALING
If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
EAST-AUSTRALIAN PIPELINE LIMITED ACN 064 629 009

(F) REQUEST

The Applicant hereby requests the Registrar General to note the following with respect to the Easement for Pipeline on the titles listed in Annexure "A":

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- D. Certificate under Section 25 of the Moomba-Sydney Pipeline System Sale Act 1994.

CHECKED BY (office use only)

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~~DO NOT USE BOTH SIDES OF THE FORM~~

SECOND SCHEDULE AND OTHER DIRECTIONS					
FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS	
34/754106	{	UNDR	AA	Equipment vested in The Commonwealth of Australia and East Australian Pipeline Limited.	
39/754106		ON	VA		
7/754125	{				
91/754125					
238/754125					
246/754125					
221/754125					
71/754125					
237/754125					
249/754106					
290/754106		{	UNDR		EA R 1147076
257/754125			ON		VA
329/754106					
259/754106					
255/754106					
92/754106					
146/754106					
148/754106					
12921-191					
129/754106					
ALL — CT — NO CT					

ALL CT — NO CT

A/c

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REQUEST

Real Property Act 1900

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335764 "Z"
copy "Z"

(A) STAMP DUTY

If applicable.

Office of State Revenue use only

R1/1

RELODGED

-8 SEP 1995

(B) TITLE

Show no more than 20.

RELODGED

[19 SEP 1995]

SEE "Z" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box

245R

Name, Address or DX and Telephone

AUSTRALIAN GOVERNMENT SOLICITOR
133 CASTLEREAGH STREET
SYDNEY NSW 2000
DX444 SYDNEY (02) 581 7595
REFERENCE (max 15 characters): 94030482/dixon

Dealing Code

OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
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CHECKED BY (office use only)

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~~DO NOT USE BOTH SIDES OF THE FORM.~~

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
54/754111	{ UNDR ON	AA VA		
43/754106	{ UNDR ON	AB VA		
52/754111				
53/754111				
56/754111				
29/754111	{ UNDR ON	EA VA		
30/754111				
31/754111				
33/754111				
55/754111	{ UNDR ON	EB VA		
112/754111				
188/754111				
149/754111				
3740-191	{ UNDR ON	EA VA	Q147076	
274/754111				
(3336-9D)				
259/754111				
164/754111	{ UNDR ON	EB VA	Q147076	
1/630238	{ UNDR ON	RY VA		
2/630238				
* 43/754106	OFF	QB		
ALL - CT -		NOCT		

97-11K



REQUEST

Real Property Act 1900

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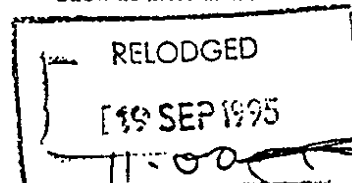
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(A) STAMP DUTY
If applicable.

Office of State Revenue use only

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(B) TITLE 3.40
Show no more than 20.



SEE 'A' OVER

D

(C) REGISTERED DEALING
If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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CHECKED BY (office use only)

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DO NOT USE BOTH SIDES OF THE FORM

SECOND SCHEDULE AND OTHER DIRECTIONS				
FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
29/754110	{ UNDR ON	AA		Investment vested in The Commonwealth of Australia and East-Australian Pipeline Limited
		UA		
1/743171	{ UNDR ON	EA		
1/732868				
23/750035		UA		
308/754111	{ UNDR ON	EA	R147076	
291/754111				
1/506211				
2/506211				
1/361532				
14546-233				
195/754110				
8321-138				
150/754110				
51/754110				
52/754110				
174/754110				
12133-204				
167/754110				
1/361534	{ UNDR ON	EB	R147076	
11424-156		UA		
ALL - CT - NOCT				

AM	CT	Noct
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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

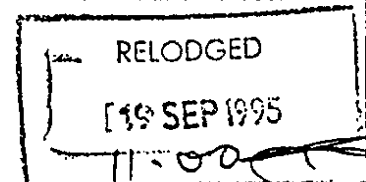
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE

Show no more than 20.



SEE "B" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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DO NOT USE BOTH SIDES OF THE FORM.

SECOND SCHEDULE AND OTHER DIRECTIONS				DETAILS
FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	
22/750035				
104/750035				
124/750006	UNDR	AA		
1/198315	ON	UA		
1/198316				
1/586968				
1/563946	UNDR	AB		
1/836184	ON	UA		
1/742254				
1/742348	UNDR	EB		
1/832499	ON	UA		
7713-224				
A/c. 114349-178				
113/750006				
62/750006	UNDR	EA	Q147076	
107/750006	ON	UA		
122/750006				
8/702679				
1/657415				
1/208463	UNDR	EB	Q147076	
	ON	UA		
ALL - CT - NO CT				

Freemantle vested in The Commonwealth of Australia and East-Australian Pipeline Limited

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REQUEST

Real Property Act 1900

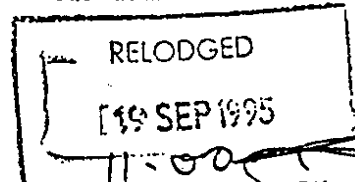
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(A) STAMP DUTY
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE 3.40
Show no more than 20.



SEE "P" OVER

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(C) REGISTERED DEALING
If applicable.

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(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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CHECKED BY (office use only)

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Use this side only for **Second Schedule** directions

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

If applicable.

Office of State Revenue use only

R1/1

RELODGED

- 8 SEP 1995

(B) TITLE

Show no more than 20.

RELODGED

[19 SEP 1995

SEE "D" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box

245R

Name, Address or DX and Telephone

AUSTRALIAN GOVERNMENT SOLICITOR
133 CASTLEREAGH STREET
SYDNEY NSW 2000
DX444 SYDNEY (02) 581 7595
REFERENCE (max 15 characters): 94030482/dixon

Dealing Code

OVER

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Em23

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DO NOT USE BOTH SIDES OF THE FORM

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
1/566595				
23/583199				
1051/547158				
12/580784				
11/580784	UNDR	AA		
1/202891	ON	VA		
1/250750				
83/619054				
3/255768				
9/616757				
51/635578				
1/633257	UNDR	AC		
	ON	VA		
190/832091	UNDR	EA		
	ON	VA		
4/243562				
115/9024	UNDR	EA	Q147076	
113/9024	ON	VA		
14/250498				
15/250498				
16/250498	UNDR	AA	Q147076	
17/250498	ON	UA		
ALL	CT		DOCT	

97-11R



REQUEST

Real Property Act 1900

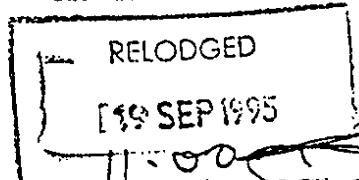
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335764 "E"
copy "E"

(A) STAMP DUTY
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE 3-40
Show no more than 20.



SEE "E" OVER

D

(C) REGISTERED DEALING
If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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REGISTRATION DIRECTION ANNEXURE

Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM

0335764 "E"

SECOND SCHEDULE AND OTHER DIRECTIONS

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
2/574255	{ UNDR ON	AB VA		
1/251779	{ UNDR ON	EA		
2/251779		EA		
1/807146		VA		
102/791867	{ UNDR ON	AB VA	Q147076	
1/56980	{			
48/750038				
96/750038				
* 2/245851				
* 3/245851	{ UNDR ON	EA VA	Q147076	Easement vested in The Commonwealth of Australia and East-Australian Pipeline Limited
4060-63				
230/750029				
214/750053				
215/750053				
1/610063				
1/198294	{ UNDR ON	EA VA	DP449002	
3/198294				
78/750038	{ UNDR ON	EB VA	Q147076	
1/574255	{ UNDR ON	EC VA	Q147076	
2/807146	{ UNDR ON	RY VA		Easement created by Q147076 vested in The Commonwealth of Australia and East Australian Pipeline Limited
* 2/245851	{ OFF	BA	M826890	
* 3/245851				

ALL - CT - NOCT

97-11R



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REQUEST

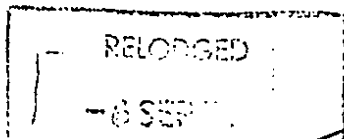
Real Property Act 1900

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335764 "F"
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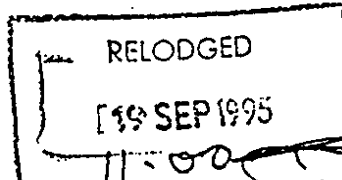
(A) STAMP DUTY
If applicable.

Office of State Revenue use only

R 1/1



(B) TITLE 3.40
Show no more than 20.



SEE "F" OVER

D

(C) REGISTERED DEALING
If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
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CHECKED BY (office use only)

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0335764" F"

~~DO NOT USE BOTH SIDES OF THE FORM~~

SECOND SCHEDULE AND OTHER DIRECTIONS				
FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
11/250694	{ UNDR	RA		Investment nested in The Commonwealth of Australia and East-Australian Pipeline Limited
62/700454		ON	UA	
50/738347	{ UNDR	EA		
		ON	UA	
2/553787				
117/750053				
12782-243				
15/751298				
156/751298	{ UNDR	EA	Q147076	
157/751298		ON	UA	
15/250694				
173/751298				
137/751298				
186/751298				
243/750053				
246/750053	{ UNDR	EB	Q147076	
		ON	UA	
1/771123	{ UNDR			Investment created by Q147076 nested in The Commonwealth of Australia and East-Australian Pipeline Limited.
5/812826				
2/829457		RA		
1/829457		ON	UA	
3/812826				
11/250694	OFF	EA	M704913	
ALL - CT -			NO CT	

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

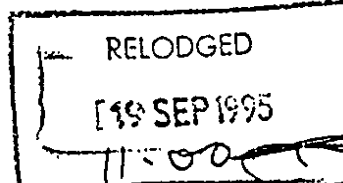
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE

Show no more than 20.



SEE "C" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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CHECKED BY (office use only)

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DL6

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REGISTRATION DIRECTION ANNEXURE

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Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM.

SECOND SCHEDULE AND OTHER DIRECTIONS

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
X 4/240164	{	UNDR AA		
X 5/240164				
X 6/240164				
X 7/240164				
X 8/240164	{	UNDR AC		
7/624965				
	{	ON VA		
122/802050	{	UNDR AD	DP499002	X
1/751234	{	UNDR EA		Exempt noted in The Commonwealth of Australia and East-Australian Pipeline Limited
23/852229	{	ON VA		
1/506714				
X 4/253706	{	UNDR EA	Q147076	
13/584791				
14/584791	{	ON VA		
2/239391				
3/239391	{	UNDR AA	Q147076	
4/239391				
1/240164	{	ON VA		
2/240164				
3/240164	{	UNDR RY		Exempt created by R147076 noted in the Commonwealth of Australia and East-Australian Pipeline Limited
1/771295				
	{	ON VA		
X 4/240164	{	OFF BA	M512122	
X 5/240164				
X 6/240164				
X 8/240164				
X 4/253706	{			

ALL - CT - NOCT

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REQUEST

Real Property Act 1900

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(A) STAMP DUTY

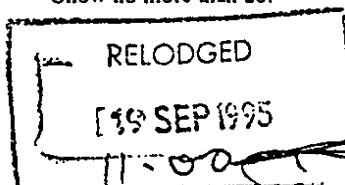
If applicable.

Office of State Revenue use only

R 1/1

(B) TITLE

Show no more than 20.



SEE "H" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

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DO NOT USE BOTH SIDES OF THE FORM

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
5/241054				
6/241054				
7/241054				
8/241054	{ UNDR	AA		
9/241054	{ ON	VA		
10/241054				
11/241054				
5/239258				
2/253435				
3/253435	{ UNDR	AA	Q147076	
4/253435	{ ON	VA		Easement created in The Commonwealth of Australia and East-Australian Pipeline Limited.
30/813662				
1/630087				
2/630087	{ UNDR	EA	Q147076	
8/260791	{ ON	VA		
2/718101				
7/260791				
3/239258	{ UNDR	EB	Q147076	
4/239258	{ ON	VA		
10/811912	{ UNDR	RY		
	{ ON	VA		Easement created by Q147076 created in The Commonwealth of Australia and East-Australian Pipeline Limited.
ALL - CT			NOST	

97-11R



4521
E: Sue
V: M

REQUEST

Real Property Act 1900

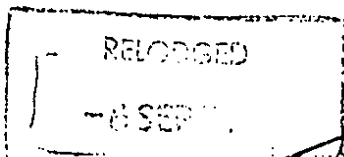
0
335764 R
COPY 'R'

(A) STAMP DUTY

If applicable.

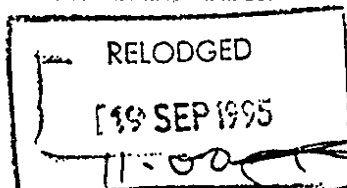
Office of State Revenue use only

R₁/1



(B) TITLE

Show no more than 20.



SEE 'R' OVER	D
--------------	---

(C) REGISTERED DEALING

If applicable.

--

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
EAST-AUSTRALIAN PIPELINE LIMITED ACN 064 629 009

(F) REQUEST

The Applicant hereby requests the Registrar General to note the following with respect to the Easement for Pipeline on the titles listed in Annexure "A":

"NOTE: Pursuant to Section 14(1) of the Moomba-Sydney Pipeline System Sale Act 1994 the Easement for Pipeline is now owned by the Commonwealth of Australia and East-Australian Pipeline Limited as Tenants-in-Common in Equal Shares."

Copies of the following documents in support of this Application are attached to registered dealing 06128:

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- D. Certificate under Section 25 of the Moomba-Sydney Pipeline System Sale Act 1994.

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EM23
OLB

10-1280

REGISTRATION DIRECTION ANNEXURE

Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM.

0335764 R

SECOND SCHEDULE AND OTHER DIRECTIONS

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
9/567386	{ UNDR	AA		
	ON	UA		
1/549837	{ UNDR	EA		
2624-5	ON	UA		
3/250747	{ UNDR	AA	Q147076	
	ON	UA		
1/112008				
1/88221				
5/613941	{ UNDR	EA	Q147076	Easement vested in The Commonwealth of Australia and East-Australian Pipeline Limited.
2/617670	ON	UA		
1/617670				
13/6/2810				
4856-234				
4/250747	{ UNDR	EB	Q147076	
2/250743	ON	UA		
14299-37	{ UNDR	EL	Q147076	
	ON	UA		
101/739673				
102/749283				
103/749283	{ UNDR	R1		
4/826337	ON	UA		Easement created by Q147076 vested in The Commonwealth of Australia and East-Australian Pipeline Limited.
2/748714				
4/746930				
ALL	—CT—		NOCT	

97-11R



REQUEST

Real Property Act 1900

0
335764 "K"
copy "K"

(A) STAMP DUTY

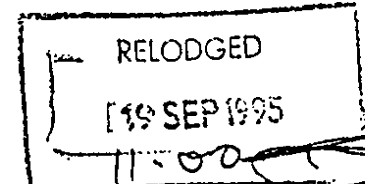
If applicable.

Office of State Revenue use only

R1/1

(B) TITLE

Show no more than 20.



SEE "K" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
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CHECKED BY (office use only)

Em23
066

10-1280

REGISTRATION DIRECTION ANNEXURE

Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM.

0335764 K"

SECOND SCHEDULE AND OTHER DIRECTIONS

FOLIO IDENTIFIER	DIRECTION	NOTFN TYPE	DEALING NUMBER	DETAILS
100/44348	UNDR	AA		
1/573956	ON	VA		
99/44348	UNDR	EA		
96/39660	ON	VA		
2/821729				
1675-114	UNDR	EA	Q147076	Encumbrance created in the Commonwealth of Australia and East-Australian Pipeline Limited
4/264034	ON	VA		
5/264034				
14/1736185				
87/751253	UNDR	EA	U304654	
	ON	VA		
41/850588	UNDR	EB	Q147076	
42/850588	ON	VA		
1/802451				
2/802451				
3/802451				
22/792646	UNDR	RY		
2/807660	ON	VA		Encumbrance created by Q147076 vested in the Commonwealth of Australia and East-Australian Pipeline Limited
1/774529				
31/740660				
10/805837	UNDR	RY		
	ON	VA		Encumbrance created by DPP 99002 vested in the Commonwealth of Australia and East-Australian Pipeline Limited
ALL - CT -		NOCT		

NE

97-11K



REQUEST

Real Property Act 1900

0
335764 L

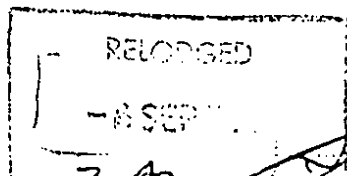
copy L

(A) STAMP DUTY

If applicable.

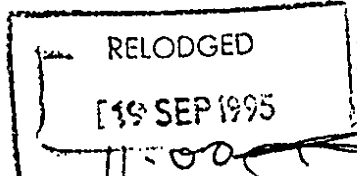
Office of State Revenue use only

R 1/1



(B) TITLE

Show no more than 20.



SEE "L" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

THE COMMONWEALTH OF AUSTRALIA AND
EAST-AUSTRALIAN PIPELINE LIMITED ACN 064 629 009

(F) REQUEST

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CHECKED BY (office use only)

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DO NOT USE BOTH SIDES OF THE FORM

[illegible]

97-11R



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REQUEST

Real Property Act 1900

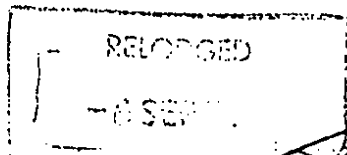
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335764 "M"
copy "M"

(A) STAMP DUTY

If applicable.

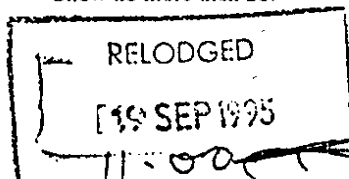
Office of State Revenue use only

R11



(B) TITLE

Show no more than 20.



SEE "M" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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OLV

DO NOT USE BOTH SIDES OF THE FORM

0335764 M

[illegible]

97-11R



4519
7 Lri
V IN

REQUEST

Real Property Act 1900

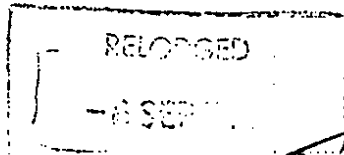
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335764 "N"
copy "N"

(A) STAMP DUTY

If applicable.

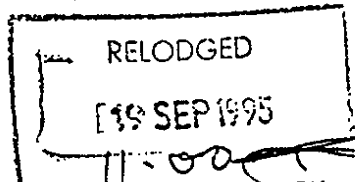
Office of State Revenue use only

R 1/1



(B) TITLE

Show no more than 20.



SEE "N" OVER

D

(C) REGISTERED DEALING

If applicable.

(D) LODGED BY

L.T.O. Box	Name, Address or DX and Telephone	Dealing Code
245R	AUSTRALIAN GOVERNMENT SOLICITOR 133 CASTLEREAGH STREET SYDNEY NSW 2000 DX444 SYDNEY (02) 581 7595 REFERENCE (max 15 characters): 94030482/dixon	OVER

(E) APPLICANT

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CHECKED BY (office use only)

EMB
CLB

Use this side only for Second Schedule directions

DO NOT USE BOTH SIDES OF THE FORM

0335764 N³

[illegible]

RP 13A

NEW SOUTH WALES

STAMP DUTY

DEPARTMENT OF FINANCE

STAMP
DUTY
P

\$1.00

CHIEF COMMISSIONER



TRANSFER

(INCLUDING EASEMENT/COVENANTS)

REAL PROPERTY ACT, 1900

(See Instructions for Completion on back of form)



X329748

517 of 11 X
\$ 39.

R918
(7) R3/4
RTH

DESCRIPTION
OF LAND
Note (a)

LAND being transferred

Torrens Title Reference	If Part Only, Delete Whole and Give Details	Location
FOLIO IDENTIFIER 4,746930	WHOLE	AT: MOSS VALE

TENEMENTS
PANEL
Note (b)

This panel also to be
completed for
covenants by transferor

Servient Tenement (Land burdened by easement)		Dominant Tenement (Land benefited by easement)	
Torrens Title Reference	Torrens Title Reference	Torrens Title Reference	Torrens Title Reference

TRANSFEROR
Note (c)

RICHARD JOHN THROSBY OSLEAR and PAMELA JEAN OSLEAR

OFFICE USE ONLY

N

Note (d)

(the abovenamed TRANSFEROR) hereby acknowledges receipt of the consideration of \$ 25,000.00
and transfers an estate in fee simple in the land being transferred above described to the TRANSFEREE

TRANSFEREE
Note (c)

MAXWELL FRANKLIN WILLIS of
Lytton Road, Moss Vale

OFFICE USE ONLY

S

TENANCY
Note (e)

as joint tenants/tenants in common

PRIOR
ENCUMBRANCES
Note (f)

subject to the following PRIOR ENCUMBRANCES 1. NIL
2. 3.

Note (g)

AND the TRANSFEROR

(i) GRANTS/RESERVES an easement as set out in SCHEDULE ONE hereto
(ii) COVENANTS with the TRANSFEREE as set out in SCHEDULE TWO hereto

Note (g)

AND the TRANSFEREE COVENANTS with the TRANSFEROR as set out in SCHEDULE THREE hereto

24 JUL 1987

DATE OF TRANSFER

We hereby certify this dealing to be correct for the purposes of the Real Property Act, 1900.

EXECUTION
Note (h)

Signed in my presence by the Transferor who is personally known to me.

Andrew S. Cameron
Signature of Witness

ANDREW S. CAMERON
Name of Witness (BLOCK LETTERS)

SOLICITOR, MOSS VALE
Address and occupation of Witness

R. Oslear
Phan
Signature of Transferor

Note (h)

Signed in my presence by the Transferee who is personally known to me.

Signature of Witness

Name of Witness (BLOCK LETTERS)

Address and occupation of Witness

TO BE COMPLETED
BY LODGING PARTY
Notes (i) and (j)

LODGED BY		LOCATION OF DOCUMENTS	
REED HANIGAN & TURNER LAW STATIONERS 44 YOUNG ST., SYDNEY 2000 PX. 452 SYDNEY. PH.: 232 1466 39U		CT	OTHER
Delivery Box Number			
Extra Fee	Checked by	REGISTERED - -19	Herewith. In R.G.O. with Produced by
	<i>ef</i>	2 FEB 1988	
OFFICE USE ONLY		DN CU CP LP	
		Registrar General	

RP 13A

SCHEDULE ONE HEREINBEFORE REFERRED TO

The Transferor hereby grants/reserves

Notes (k) and (l)

SCHEDULE TWO HEREINBEFORE REFERRED TO

The Transferor hereby covenants with

Notes (m) and (l)
Also complete
tenements panel on
front of form

RP 13A

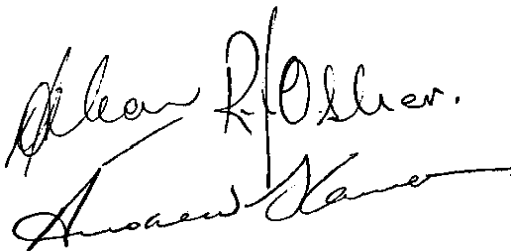
SCHEDULE THREE HEREINBEFORE REFERRED TO

Notes (n) and (f)

The Transferee hereby covenants with the Transferor but only during the ownership of Lots 1 and 3 in Deposited Plan 746930 by the Transferor that the Transferee shall not erect any fence or wall on the land transferred to divide it from Lots 1 and 3 in Deposited Plan 746930 without the consent of the Transferor who shall not withhold that consent if the fence or wall is erected without expense to the Transferor

And it is agreed and declared that:-

- (a) the land to which the benefit of the restriction is appurtenant is all the parts of Lots 1 and 3 in Deposited Plan 746930;
- (b) the land which is subject to the burden of the restriction is the land transferred; and
- (c) no person other than the person owning a part of the land having the benefit of restrictive covenant has the right to release, vary or modify it in relation to that part and no other person's consent is required to a release, variation or modification of that covenant in relation to that part.



Alan R. Osher.
Andrew Kane

RP 13A

INSTRUCTIONS FOR COMPLETION

This form is only to be used for the transfer of land together with the granting or reservation of easements and/or the creation of restrictive covenants. For other transfers use forms RP 13, RP 13B, RP 13C, as appropriate.

This dealing should be marked by the Commissioner of Stamp Duties before lodgment at the Registrar General's Office.

Typewriting and handwriting should be clear, legible and in permanent black non-copying ink.

Alterations are not to be made by erasure; the words rejected are to be ruled through and initialled by the parties to the dealing.

If the space provided is insufficient, additional sheets of the same size and quality of paper and having the same margins as this form should be used. Each additional sheet must be identified as an annexure and signed by the parties and the attesting witnesses.

Registered mortgagees, chargees and lessees of the servient tenement should consent to any grant or reservation of easement; otherwise the mortgage, charge or lease should be noted in the memorandum of prior encumbrances.

The signatures of the parties and the attesting witnesses should appear below the last provision in the last completed schedule.

Rule up all blanks.

The following instructions relate to the side notes on the form.

(a) Description of land.

- (i) **TORRENS TITLE REFERENCE.**—Insert the current Folio Identifier or Volume and Folio of the Certificate of Title/Crown Grant for the land being transferred, e.g., 135/SP12345 or Vol. 8514 Fol. 126.
(ii) **PART/WHOLE.**—If part only of the land in the folio of the Registrar is being transferred, delete the word "WHOLE" and insert the lot and plan number, portion, &c. See also sections 327 and 327AA of the Local Government Act, 1919.
(iii) **LOCATION.**—Insert the locality shown on the Certificate of Title/Crown Grant, e.g., St Chullora. If the locality is not shown, insert the Parish and County, e.g., Ph. Lismore Co. Ross.

(b) **Tenement panel.**—Insert the current Folio Identifier or Volume and Folio of the Certificate of Title/Crown Grant for both the servient and dominant tenements of the easements, e.g., 135/SP12345 or Vol. 8514 Fol. 126, &c. This panel is also to be completed for covenants by the transferor.

(c) Show the full name, address and occupation or description.

(d) If the estate being transferred is a lessor estate than an estate in fee simple, delete "fee simple" and insert appropriate estate.

(e) Delete if only one transferee. If more than one transferee, delete either "joint tenants" or "tenants in common", and, if the transferees hold as tenants in common, state the shares in which they hold.

(f) In the memorandum of prior encumbrances, state only the registered number of any mortgage, charge or lease (except where the consent of the mortgagee, chargee or lessee is furnished) and of any writ recorded in the Register.

(g) Delete whichever words are inappropriate.

(h) Execution.

- GENERALLY** (i) Should there be insufficient space for execution of this dealing, use an annexure sheet.
(ii) The certificate of correctness under the Real Property Act, 1900 must be signed by all parties to the transfer, each party to execute the dealing in the presence of an adult witness, not being a party to the dealing, to whom he is personally known. The solicitor for the transferee may sign the certificate on behalf of the transferee, the solicitor's name (not that of his firm), to be typewritten or printed adjacent to his signature. Any person falsely or negligently certifying is liable to the penalties provided by section 117 of the Real Property Act, 1900.
ATTORNEY (iii) If the transfer is executed by an attorney for the transferor/transferee pursuant to a registered power of attorney, the form of attestation must set out the full name of the attorney, and the form of execution must indicate the source of his authority, e.g., "AB by his attorney (or receiver or delegate, as the case may be) XY pursuant to power of attorney registered Book No. , and I declare that I have no notice of the revocation of the said power of attorney".
AUTHORITY (iv) If the transfer is executed pursuant to an authority (other than specified in (iii)) the form of execution must indicate the statutory, judicial or other authority pursuant to which the transfer has been executed.
CORPORATION (v) If the transfer is executed by a corporation under seal, the form of execution should include a statement that the seal has been properly affixed, e.g., in accordance with the Articles of Association of the corporation. Each person attesting the affixing of the seal must state his position (e.g., director, secretary) in the corporation.

(i) Insert the name, postal address, Document Exchange reference, telephone number and delivery box number of the lodging party.

(j) The lodging party is to complete the LOCATION OF DOCUMENTS panel. Place a tick in the appropriate box to indicate the whereabouts of the Certificate of Title. List, in an abbreviated form, other documents lodged, e.g., stat. dec. for statutory declaration, pbte for probate, L/A for letters of administration, &c.

(k) State the nature of the easement (see, e.g., section 181A of the Conveyancing Act, 1919) and accurately describe the site of the easement. The grant or reservation of easement (other than an easement in gross) must comply with section 88 of the Conveyancing Act, 1919. If not applicable, rule through this space.

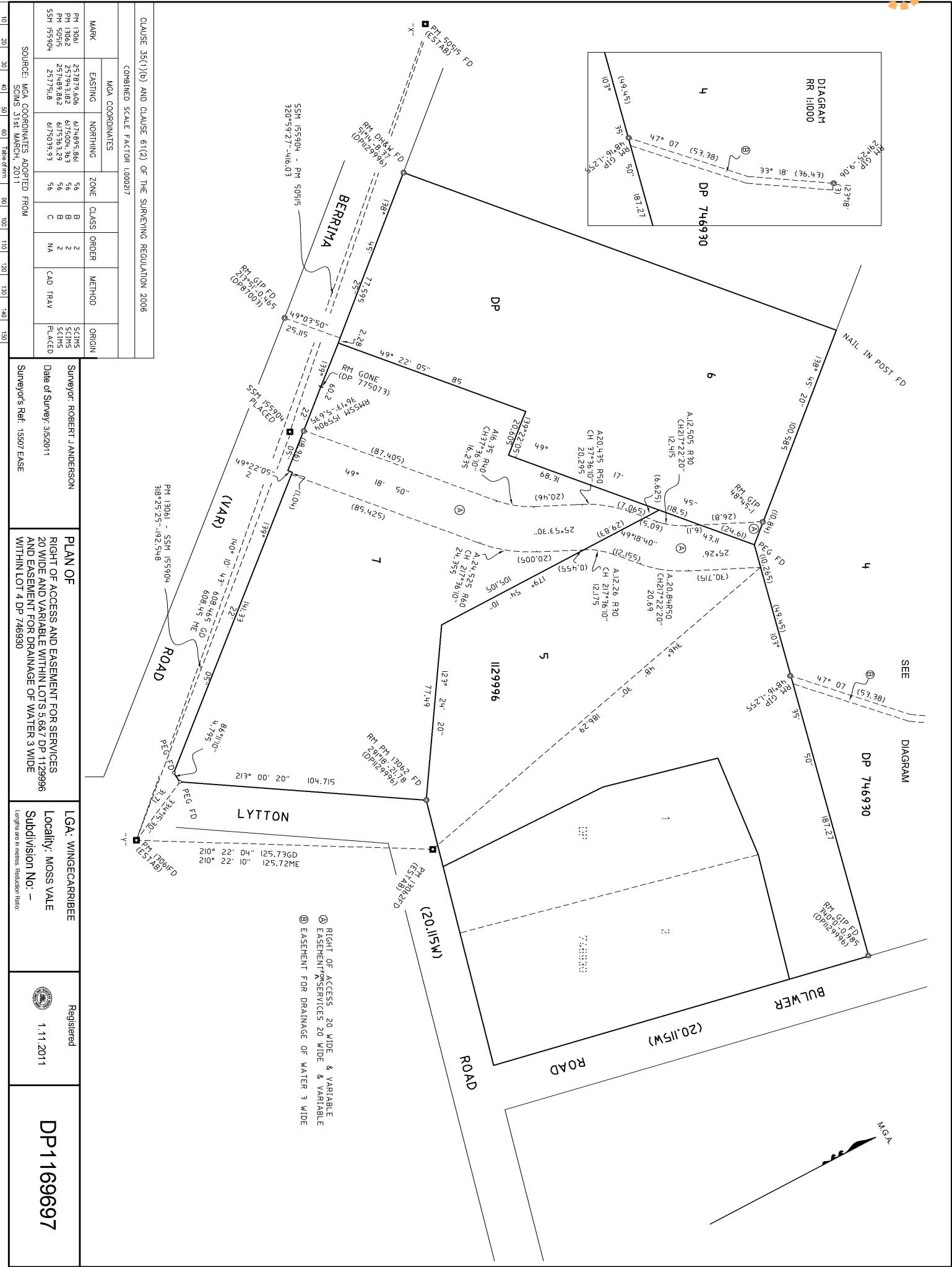
(l) Annexures should be of the same size and quality of paper and have the same margins as the transfer form. Each such annexure must be identified as an annexure and signed by the parties and the attesting witnesses. Any plan annexed should comply with regulation 37 of the Real Property Act regulations, 1970.

(m) This space is provided for any restrictive covenant by the transferor (which must comply with section 88 of the Conveyancing Act, 1919). If not applicable, rule through this space.

(n) This space is provided for any restrictive covenant by the transferee (which must comply with section 88 of the Conveyancing Act, 1919). If not applicable, rule through this space.

OFFICE USE ONLY

FIRST SCHEDULE DIRECTIONS						
DIRECTION: PROP						
No. OF NAMES:						
(A)	FOLIO IDENTIFIER	(B) No.	(C) SHARE	(D) J	(E)	NAME AND DESCRIPTION
SECOND SCHEDULE & OTHER DIRECTIONS						
(F)	FOLIO IDENTIFIER (OR REGD. DEALING & FOLIO IDENTIFIER)	(G) DIRECTION	(H) NOTFN TYPE	(I) DEALING NUMBER	(K)	DETAILS



PLAN FORM 6

WARNING: Creasing or folding will lead to rejection

DEPOSITED PLAN ADMINISTRATION SHEET

Sheet 1 of 1 sheet(s)

SIGNATURES, SEALS AND STATEMENTS of intention to dedicate public roads, public reserves and drainage reserves or create easements, restrictions on the use of land and positive covenants PURSUANT TO SEC 88B OF THE CONVEYANCING ACT OF 1919 AS AMENDED IT IS INTENDED TO CREATE:

1. RIGHT OF ACCESS 20 WIDE AND VARIABLE
2. EASEMENT FOR SERVICES 20 WIDE AND VARIABLE
3. EASEMENT FOR DRAINAGE OF WATER 3 WIDE



Executed by Konui Pty Limited ACN 001 720 841

Silvano Bordignon
Director
Marcia Bordignon
Secretary
SILVANO BORDIGNON MARCIA BORDIGNON

Name Name



Signature of Attorney
Attorneys name Silvano Bordignon
Signing on behalf of Linda Bordignon
Power of Attorney book number Reg No. 960 Book 3881

Office Use Only

DP1169697

Office Use Only

Registered:  1.11.2011

Title System: TORRENS

Purpose: EASEMENT

PLAN OF

RIGHT OF ACCESS AND EASMENT FOR SERVICES 20 WIDE AND VARIABLE WITHIN LOTS 5,6 & 7 DP 112996 & EASEMENT FOR DRAINAGE OF WATER 3 WIDE WITHIN LOT 4 DP 746930

LGA: WINGECARRIBEE

Locality: MOSS VALE

Parish: BONG BONG

County: CAMDEN

Survey Certificate

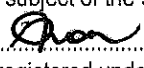
I, ROBERT J ANDERSON.....

of 357 BONG BONG STREET BOWRAL.....

a surveyor registered under the Surveying and Spatial Information Act 2002, certify that the survey represented in this plan is accurate, has been made in accordance with the Surveying and Spatial Information Regulation 2006 and was completed on 3rd May, 2011

The survey relates to easements and connections.....

(specify the land actually surveyed or specify any land shown in the plan that is not the subject of the survey)

Signature  Dated: 10/5/2011
Surveyor registered under the Surveying and Spatial Information Act 2002

Datum Line: 'X-Y'

Type: Urban

Plans used in the preparation of survey/compilation
DP 746930, 112996

If space is insufficient use PLAN FORM 6A annexure sheet

Crown Lands NSW/Western Lands Office Approval

I.....in approving this plan certify

(Authorised Officer)

that all necessary approvals in regard to the allocation of the land shown herein have been given

Signature:

Date:

File Number:

Office:

Subdivision Certificate

I certify that the provisions of s.109J of the Environmental Planning and Assessment Act 1979 have been satisfied in relation to:

the proposed set out herein
(insert 'subdivision' or 'new road')

* Authorised Person/*General Manager/*Accredited Certifier

Consent Authority:

Date of Endorsement:

Accreditation no:

Subdivision Certificate no:

File no:

* Strike through Inapplicable parts.

If space is insufficient use PLAN FORM 6A annexure sheet

Surveyor's Reference: 15507-EASE

Instrument setting out terms of Easements or Profits à Prendre intended to be created or released and of Restrictions on the Use of Land or Positive Covenants intended to be created pursuant to Section 88B Conveyancing Act 1919

Sheet 1 of 4 Sheets

Plan:

DP1169697

Of right of access and easement for services 20 wide and variable within Lots 5, 6 & 7 in DP 1129996 and easement for drainage of water 3 wide within Lot 4 DP 746930

**Full name and address
of owner/s of the land/s:** **Konui Pty. Limited
Karen Vanessa Bordignon
Linda Maria Bordignon
PO Box 97
Bowral NSW 2575**

PART 1 (Creation)

Number of item shown in the intention panel on the plan	Identity of easement, profit à prendre, restriction or positive covenant to be created and referred to in the plan.	Burdened lot(s) or parcel(s):	Benefited lot(s), road(s), bodies or Prescribed Authorities:
1	Right of Access 20 wide and variable	5/1129996, 6/1129996 & 7/1129996	4/746930
2	Easement for services 20 wide and variable	5/1129996, 6/1129996 & 7/1129996	4/746930
3	Easement for Drainage of water 3 wide	4/746930	5/1129996

PART 2 (Terms)

1. Terms of easement, profit à prendre, restriction, or positive covenant numbered 1 in the plan.

Right of Access within the meaning of Part 14 of Schedule 8 of the Conveyancing Act 1919 (as amended) are added to by the following provisions in this clause:

- a) The person/s benefitted by the grant of right of access must, before using the right of access construct a road from the boundary of the benefitted lot to the fully constructed existing road situate on Lot 7 in DP1129996, and such road is to be constructed to Council's and/or the Roads & Traffic Authorities specifications.

AB
AB

DP1169697

Instrument setting out terms of Easements or Profits à Prendre intended to be created or released and of Restrictions on the Use of Land or Positive Covenants intended to be created pursuant to Section 88B Conveyancing Act 1919

Sheet 2 of 4 Sheets

Where there is any conflict between the provisions of this clause and the definition of the right of access in Part 14 of Schedule 8 of the Conveyancing Act (as amended) the provisions of this clause will prevail with the necessary changes being deemed to have been made to the definition of right of access.

Name of person empowered to release, vary or modify restriction or positive covenant numbered 1 in the plan.

The owners jointly of the land benefited and the land burdened.

2. Terms of easement, profit à prendre, restriction, or positive covenant numbered 2 in the plan.

Easement for services within the meaning of Part 11 Schedule 8 of the Conveyancing Act (as amended).

Name of person empowered to release, vary or modify restriction or positive covenant numbered 2 in the plan.

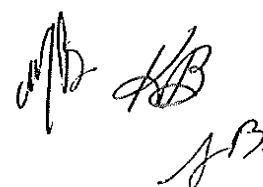
The owners jointly of the land benefited and the land burdened.

3. Terms of easement, profit à prendre, restriction, or positive covenant numbered 3 in the plan.

Easement for drainage of water within the meaning of Part 8 Schedule 8 of the Conveyancing Act (as amended).

Name of person empowered to release, vary or modify restriction or positive covenant numbered 3 in the plan.

The owners jointly of the land benefited and the land burdened.

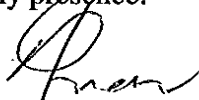
Three handwritten signatures in black ink, likely representing the parties involved in the instrument.

DP1169697

Instrument setting out terms of Easements or Profits à Prendre intended to be created or released and of Restrictions on the Use of Land or Positive Covenants intended to be created pursuant to Section 88B Conveyancing Act 1919

Sheet 3 of 4 Sheets

I certify that Karen Vanessa Bordignon the owner, with whom I am personally acquainted or as to whose identity I am otherwise satisfied, signed this instrument in my presence.



Signature of witness

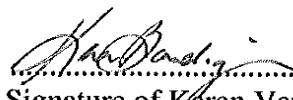
ROBERT JAMES ANDERSON

Name of witness

357 ROAD ROAD ST BOWRAL

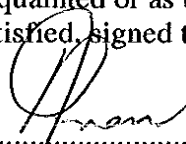
Address of witness

Certified correct for the purposes of the Real Property Act 1900.



Signature of Karen Vanessa Bordignon

I certify that person signing opposite on behalf of Linda Bordignon, with whom I am personally acquainted or as to whose identity I am otherwise satisfied, signed this instrument in my presence.



Signature of witness

357 ROAD ROAD ST BOWRAL

Name of witness

R.J. ANDERSON

Address of witness

Certified correct for the purposes of the Real Property Act 1900 by the person named below who signed this instrument pursuant to the power of attorney specified.



Signature of Attorney

Attorneys Name: Silvano Bordignon

Signing on behalf of: Linda Bordignon

Power of attorney Book-No:

Regol No. 960 Book 3881

Certified correct for the purposes of the Real Property Act 1900 and executed on behalf of the corporation named below by the authorised person(s) whose signature(s) appears(s) below pursuant to the authority specified.

Corporation: **Konui Pty Limited ACN 001 720 841**

Capacity: Registered Proprietor

Authority: section 127 of the Corporations Act 2001

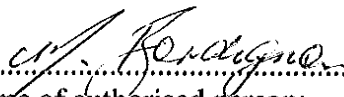
Signature of authorised person:



Name of authorised person:

Office held: Director

Signature of authorised person:



Name of authorised person:

Office held: Director

DP1169697

Instrument setting out terms of Easements or Profits à Prendre intended to be created or released and of Restrictions on the Use of Land or Positive Covenants intended to be created pursuant to Section 88B Conveyancing Act 1919

Sheet 4 of 4 Sheets

REGISTERED



1.11.2011



Civic Centre
68 Elizabeth Street Moss Vale
PO Box 141 Moss Vale NSW 2577

02 4868 0888

mail@wsc.nsw.gov.au

ABN 49 546 344 354



Planning Certificate

Pursuant to section 10.7 of the *Environmental Planning and Assessment Act 1979*

To: INFOTRACK
GPO Box 4029
SYDNEY NSW 2001

Your Ref: 446426
Fees Paid: \$ 67.00
Receipt Number:

Date of Issue: 25 August 2023

Certificate Number: S10.724/0403

This certificate relates to: 6 BULWER ROAD MOSS VALE NSW 2577

Legal Description: Lot 4 DP 746930

Property No: 273100

Advice on this certificate: Advice is provided under section 10.7(2): See Items 1-22.

IMPORTANT: Please read this certificate carefully.

This certificate contains important information regarding the land as listed above. The information provided in this certificate is in accordance with data held by Council in its Geospatial Information System (GIS) and its Property and Rating Operating System.

Please check for any items which could be inconsistent with the proposed use or development of the land and notify Council immediately should this be the case. If there is anything in this certificate that you do not understand please contact Council's Customer Service Centre on 02 4868 0888 or alternatively by email at mail@wsc.nsw.gov.au.

The information provided in this certificate relates only to the land described above. If you require information regarding adjacent or nearby land or further information regarding Council's Planning and Development Policies for the general area, please contact Council's Customer Service Centre.

All information is considered to be correct as at 25 August 2023. However, it is possible that changes may have occurred since this certificate was issued. If in doubt it is suggested that you apply for another certificate.

Working with you

ADVICE PROVIDED IN ACCORDANCE WITH SECTION 10.7(2) OF THE ENVIRONMENTAL PLANNING AND ASSESSMENT (EP&A) ACT 1979 AND SCHEDULE 2 OF THE EP&A REGULATION 2021

Attention: The explanatory notes denoted by the prefix "Note" and appearing in italic print within this certificate are provided to assist in understanding, but do not form part of the advice provided under section 10.7(2).

All legislation (including Acts, Regulations, State Environmental Planning Policies and Local Environmental Plans) referred to in this certificate may be accessed from the NSW Legislation website at www.legislation.nsw.gov.au.

1. Names of relevant planning instruments and development control plans

(1) The name of each environmental planning instrument and development control plan that applies to the carrying out of development on the land.

(a) State Environmental Planning Policies

State Environmental Planning Policy No. 65 Design Quality of Residential Apartment Development
State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004
State Environmental Planning Policy (Exempt and Complying Development Codes) 2008
State Environmental Planning Policy (Planning Systems) 2021
State Environmental Planning Policy (Biodiversity and Conservation) 2021
State Environmental Planning Policy (Resilience and Hazards) 2021
State Environmental Planning Policy (Transport and Infrastructure) 2021
State Environmental Planning Policy (Industry and Employment) 2021
State Environmental Planning Policy (Resources and Energy) 2021
State Environmental Planning Policy (Primary Production) 2021
State Environmental Planning Policy (Housing) 2021

(b) Local Environmental Plans

Wingecarribee Local Environmental Plan 2010

(c) Development Control Plans

Moss Vale Enterprise Corridor DCP

(2) The name of each proposed environmental planning instrument and draft development control plan, which is or has been subject to community consultation or public exhibition under the *Environmental Planning and Assessment Act 1979*, that will apply to the carrying out of development on the land.

Note: Proposed environmental planning instruments include Planning Proposals. The following list excludes proposed environmental planning instruments and draft development control plans that completed public exhibition more than three (3) years ago and those proposed environmental planning instruments notified by the Planning Secretary that have been deferred indefinitely or not approved.

(a) Draft State Environmental Planning Policies

Proposed Amendments to State Environmental Planning Policy (Transport and Infrastructure) 2021 (formerly State Environmental Planning Policy (Infrastructure) 2007) for:
– Health Infrastructure (Explanation of Intended Effect October 2020)
– Protection of fuel pipelines (Explanation of Intended Effect April 2022).

Proposed Amendments to State Environmental Planning Policy (Housing) 2021 for in-fill affordable housing, group homes, supportive accommodation and social housing provisions of the (Explanation of Intended Effect November 2022).

(b) Draft Local Environmental Plans

Shire Wide

Nil

Site Specific

Nil

Note: See Question 2 (b) for relevant zoning and land use details of any Planning Proposal or draft LEP.

(c) Draft Development Control Plans

Nil

2. Zoning and land use under relevant planning instruments

Zoning and land use under the *Wingecarribee Local Environmental Plan 2010*

(a) & (b) Identification of zone and zoning table (permissible and prohibited purposes)

Zone E4 General Industrial

1 Objectives of zone

- To provide a range of industrial, warehouse, logistics and related land uses.
- To ensure the efficient and viable use of land for industrial uses.
- To minimise any adverse effect of industry on other land uses.
- To encourage employment opportunities.
- To enable limited non-industrial land uses that provide facilities and services to meet the needs of businesses and workers.
- To allow non-industrial land uses, including certain commercial activities, that, because of the type, scale or nature of the use, are appropriately located in the zone and will not impact the viability of business and commercial centres in Wingecarribee.
- To ensure new development and land uses incorporate measures that take into account the spatial context and mitigate potential impacts on neighbourhood amenity and character and the efficient operation of the local and regional road system.

2 Permitted without consent

Environmental protection works; Home-based child care; Home occupations

3 Permitted with consent

Depots; Freight transport facilities; Garden centres; General industries; Goods repair and reuse premises; Hardware and building supplies; Industrial retail outlets; Industrial training facilities; Landscaping material supplies; Light industries; Local distribution premises; Neighbourhood shops; Oyster aquaculture; Plant nurseries; Rural supplies; Specialised retail premises; Take away food and drink

premises; Tank-based aquaculture; Timber yards; Vehicle sales or hire premises; Warehouse or distribution centres; Any other development not specified in item 2 or 4

4 Prohibited

Agriculture; Air transport facilities; Airstrips; Amusement centres; Business premises; Camping grounds; Cemeteries; Correctional centres; Crematoria; Eco-tourist facilities; Exhibition homes; Exhibition villages; Farm buildings; Forestry; Health services facilities; Heavy industrial storage establishments; Highway service centres; Home occupations (sex services); Industries; Open cut mining; Residential accommodation; Restricted premises; Retail premises; Schools; Sex services premises; Tourist and visitor accommodation; Water recreation structures; Wharf or boating facilities

Note: Land use terms are defined in the Dictionary that forms part of the Wingecarribee Local Environmental Plan (WLEP) 2010. The WLEP 2010 instrument and maps can be accessed from the NSW Legislation website at <https://www.legislation.nsw.gov.au/view/html/inforce/current/epi-2010-0245> or via Council's website. The maps can also be viewed on the ePlanning Spatial Viewer at www.planningportal.nsw.gov.au/spatialviewer.

Note: On 26 April 2023, Business and Industrial zones will be replaced by the new Employment zones under the Standard Instrument (Local Environmental Plans) Order 2006. The Department of Planning and Environment is currently exhibiting details of how each Local Environmental Plan that includes a current Business or Industrial zone will be amended to use the new Employment zones. The Explanation of Intended Effect (EIE) and a searchable web tool that displays the current and proposed zone for land covered in this public exhibition is available on the [NSW Planning Portal <https://www.planningportal.nsw.gov.au/employment-zones>](https://www.planningportal.nsw.gov.au/employment-zones)

(c) Additional permitted uses

The following additional permitted uses apply to the land:

Nil

Note: Additional permitted uses are listed in Schedule 1 of the Wingecarribee Local Environmental Plan 2010.

(d) Fixed land dimensions for dwelling houses

Nil

(e) Outstanding Biodiversity

The land IS NOT in an area of outstanding biodiversity value under the *Biodiversity Conservation Act 2016*.

(f) Conservation Area

The land IS NOT within a Conservation Area (however described).

(g) Environmental heritage

An item of environmental heritage (however described) IS NOT situated on the land.

Zoning and land use under applicable draft environmental planning instruments

Nil

3. Contributions plans

The following contributions plan/s under Division 7.1 of the *Environmental Planning and Assessment Act 1979* apply to the land:

Section 94A Plan

There are NO special contributions areas applicable in the Wingecarribee Shire.

Note: There are also Developer Servicing Plans that may apply to the land that include water, sewer and stormwater contributions.

4. Complying development

Note: this section provides the following information:

1. *If the land is land on which complying development may be carried out under each of the complying development codes under clause 1.17A(1)(c)–(e), (2), (3) or (4), clause 1.18(1)(c3) or clause 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 (the Policy).*
2. *The reasons why complying development may not be carried out.*
3. *If council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land, a statement that a restriction applies to the land, but it may not apply to all of the land, and/or the council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land.*
4. *If any complying development codes are varied under clause 1.12 of the Policy.*

Housing Code:

Complying development under the Housing Code MAY NOT be carried out on the land or part of the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
 - (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
 - (f) land within 100m of land to which paragraph (c), (d) or (e) applies,
 - (g) land identified in this or any other environmental planning instrument as being of high Aboriginal cultural significance or high biodiversity significance,
 - (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act applies,
 - (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
 - (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Clause 1.12 and Schedule 3 of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* contain variations to the Housing Code for developments within the Wingecarribee Shire in relation to minimum setbacks (clause 3.10) and minimum landscaped area (clause 3.13).

Rural Housing Code:

Complying development under the Rural Housing Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
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 - (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Low Rise Housing Diversity Code:

Complying development under the Low Rise Housing Diversity Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
 - (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
 - (f) land within 100m of land to which paragraph (c), (d) or (e) applies,
 - (g) land identified in this or any other environmental planning instrument as being of high Aboriginal cultural significance or high biodiversity significance,
 - (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act

applies,

- (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
- (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Greenfield Housing Code:

Complying development under the Greenfield Housing Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
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 - (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act applies,
 - (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
 - (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Housing Alterations Code:

Complying development under the Housing Alterations Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,

- (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
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- (g) land identified in this or any other environmental planning instrument as being of high Aboriginal cultural significance or high biodiversity significance,
- (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act applies,
- (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
- (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

General Development Code:

Complying development under the General Development Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
 - (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
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 - (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
 - (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Industrial and Business Alterations Code:

Complying development under the Industrial and Business Alterations Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,

- (b) a coastal lake,
- (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
- (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
- (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
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- (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
- (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Industrial and Business Buildings Code:

Complying development under the Industrial and Business Buildings Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
 - (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
 - (f) land within 100m of land to which paragraph (c), (d) or (e) applies,
 - (g) land identified in this or any other environmental planning instrument as being of high Aboriginal cultural significance or high biodiversity significance,
 - (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act applies,
 - (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
 - (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Container Recycling Facilities Code:

Complying development under the Container Recycling Facilities Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
 - (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
 - (f) land within 100m of land to which paragraph (c), (d) or (e) applies,
 - (g) land identified in this or any other environmental planning instrument as being of high Aboriginal cultural significance or high biodiversity significance,
 - (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act applies,
 - (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
 - (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Subdivisions Code:

Complying development under the Subdivisions Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
 - (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
 - (f) land within 100m of land to which paragraph (c), (d) or (e) applies,
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 - (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act applies,

- (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
- (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Demolition Code:

Complying development under the Demolition Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
 - (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
 - (f) land within 100m of land to which paragraph (c), (d) or (e) applies,
 - (g) land identified in this or any other environmental planning instrument as being of high Aboriginal cultural significance or high biodiversity significance,
 - (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act applies,
 - (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
 - (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Fire Safety Code:

Complying development under the Fire Safety Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
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- (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
- (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

Agritourism and Farm Stay Accommodation Code:

Complying development under the Agritourism and Farm Stay Accommodation Code MAY NOT be carried out on the land.

- Environmentally sensitive area means any of the following:
 - (a) the coastal waters of the State,
 - (b) a coastal lake,
 - (c) land to which State Environmental Planning Policy No 14-Coastal Wetlands or State Environmental Planning Policy No 26-Littoral Rainforests applies,
 - (d) land reserved as an aquatic reserve under the Fisheries Management Act 1994 or as a marine park under the Marine Parks Act 1997,
 - (e) land within a wetland of international significance declared under the Ramsar Convention on Wetlands or within a World heritage area declared under the World Heritage Convention,
 - (f) land within 100m of land to which paragraph (c), (d) or (e) applies,
 - (g) land identified in this or any other environmental planning instrument as being of high Aboriginal cultural significance or high biodiversity significance,
 - (h) land reserved under the National Parks and Wildlife Act 1974 or land to which Part 11 of that Act applies,
 - (i) land reserved or dedicated under the Crown Lands Act 1989 for the preservation of flora, fauna, geological formations or for other environmental protection purposes,
 - (j) land identified as being critical habitat under the Threatened Species Conservation Act 1995 or Part 7A of the Fisheries Management Act 1994.

The reasons why Complying Development may not be carried out are as follows:

The land is identified by the *Wingecarribee Local Environmental Plan 2010* as being environmentally sensitive land.

The land is unsewered land within the Sydney Drinking Water Catchment to which Chapter 6 (Water catchments) of *State Environmental Planning Policy (Biodiversity and Conservation) 2021* applies.

Council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land.

5. Exempt development

Note: this section provides the following information:

1. If the land is land on which exempt development may be carried out under each of the exempt development codes under clause 1.16(1)(b1)–(d) or clause 1.16A of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 (the Policy).
2. The reasons why exempt development may not be carried out.
3. If council does not have sufficient information to ascertain the extent to which exempt development may or may not be carried out on the land, a statement that a restriction applies to the land, but it may not apply to all of the land, and/or the council does not have sufficient information to ascertain the extent to which exempt development may or may not be carried out on the land.
4. If any exempt development codes are varied under clause 1.12 of the Policy.

If the land is land on which exempt development may be carried out under each of the exempt development codes under *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*, because of that Policy, clause 1.16(1)(b1)–(d).

Is the land or part of the land is identified as declared area of outstanding biodiversity value under the <i>Biodiversity Conservation Act 2016</i> .	NO
Is the land or part of the land is identified as critical habitat under Part 7A of the <i>Fisheries Management Act 1994</i>	NO
Is the land or part of the land is identified as, or on which there is, a heritage item that is listed on the State Heritage Register under the <i>Heritage Act 1977</i> , or that is subject to an interim heritage order under the Act.	NO
Is the land or part of the land is identified as land, or is part of, a wilderness area (within the meaning of <i>Wilderness Act 1987</i>).	NO

If any of the above answers YES, exempt development MAY NOT be carried out on the land or part of the land.

If all of the above answers NO, exempt development MAY be carried out on this land, under each of the exempt development codes under *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Variation of exempt development codes for the site

NONE of the exempt development codes are varied for Wingecarribee Shire under clause 1.12 of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

The reasons why Exempt Development may not be carried out are as follows:

Nil

Note: Specific provisions under individual exempt development categories may restrict exempt development to be carried out on the land or part of the land. Please check the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, to ensure that development complies with all relevant provisions of the SEPP.

6. Affected building notices and building product rectification orders

There IS NOT any affected building notice of which Council is aware that is in force in respect of the land.

There IS NOT any building product rectification order of which the council is aware that is in force in respect of the land and has not been fully complied with.

There IS NOT any notice of intention to make a building product rectification order of which the council is aware has been given in respect of the land and is outstanding.

In this section:

affected building notice has the same meaning as in Part 4 of the *Building Products (Safety) Act 2017*.

building product rectification order has the same meaning as in the *Building Products (Safety) Act 2017*.

7. Land reserved for acquisition

The land IS NOT identified for acquisition by a public authority (as referred to in section 3.15 of the *Environmental Planning and Assessment Act 1979*) by any environmental planning instrument or proposed environmental planning instrument applying to the land.

8. Road widening and road realignment

The land IS NOT AFFECTED by any road widening or road re-alignment under Division 2 of Part 3 of the *Roads Act 1993*.

The land IS NOT AFFECTED by any road widening or road re-alignment under an environmental planning instrument.

The land IS NOT AFFECTED by any road widening or road realignment under a resolution of the Council.

9. Flood related development controls

The land or part of the land IS within the flood planning area.

The land or part of the land IS between the flood planning area and the probable maximum flood.

The land or part of the land IS subject to flood related development controls.

Note: Words and expressions used above have the same meanings as in the Floodplain Development Manual published by the NSW Government in April 2005.

10. Council and other public authority policies on hazard risk restrictions

Except as stated below and elsewhere in this certificate, the land IS NOT affected by an adopted policy that restricts the development of the land because of the likelihood of land slip, bush fire, tidal inundation, subsidence, acid sulfate soils, contamination, aircraft noise, salinity, coastal hazards, sea level rise or another risk, other than flooding.

Note: The absence of a policy to restrict development of the land because of the likelihood of a particular risk does not imply that the land is free from that risk. The Council considers the likelihood of natural and man-made risks when determining development applications under section 4.15 of the Environmental Planning and Assessment Act 1979. Detailed investigations carried out in conjunction with the preparation or assessment of a development application may result in the Council either refusing development consent or imposing conditions of consent on the basis of risks that are identified above.

11. Bush fire prone land

NONE of the land is bush fire prone land as designated by the Commissioner of the NSW Rural Fire Service under section 10.3 of the *Environmental Planning and Assessment Act 1979*.

12. Loose-fill asbestos information

The land DOES NOT include any residential premises (within the meaning of Division 1A of Part 8 of the *Home Building Act 1989*) that are listed on the register that is required to be maintained under that Division.

13. Mine subsidence

The land IS NOT a declared Mine Subsidence District under section 20 of the *Coal Mine Subsidence Compensation Act 2017*.

14. Paper subdivision information

The land IS NOT affected by any development plan that applies to the land or that is proposed to be subject to a consent ballot.

15. Property vegetation plans

Council HAS NOT been notified of a property vegetation plan relating to the land. Approved under Part 4 of the *Native Vegetation Act 2003* (and that continues in force).

16. Biodiversity stewardship sites

Council HAS NOT been notified by the Biodiversity Conservation Trust that the land is a biodiversity stewardship site under a biodiversity stewardship agreement under Part 5 of the *Biodiversity Conservation Act 2016*.

Note: Biodiversity stewardship agreements include biobanking agreements under Part 7A of the Threatened Species Conservation Act 1995 that are taken to be biodiversity stewardship agreements under Part 5 of the Biodiversity Conservation Act 2016.

17. Biodiversity certified land

The land IS NOT biodiversity certified land under Part 8 of the *Biodiversity Conservation Act 2016*.

Note: Biodiversity certified land includes land certified under Part 7AA of the Threatened Species Conservation Act 1995 that is taken to be certified under Part 8 of the Biodiversity Conservation Act 2016.

18. Orders under Trees (Disputes Between Neighbours) Act 2006

Council HAS NOT been notified of an order that has been made under the *Trees (Disputes between Neighbours) Act 2006* to carry out work in relation to a tree on the land.

19. Annual charges under Local Government Act 1993 for coastal protection services that relate to existing coastal protection works

There are NO charges for coastal protection services under the *Local Government Act 1993* because the *Coastal Management Act 2016* DOES NOT apply to any land within the Wingecarribee Shire.

20. Western Sydney Aerotropolis

Chapter 4 of *State Environmental Planning Policy (Precincts—Western Parkland City) 2021* which relates to the Western Sydney Aerotropolis DOES NOT apply to any land within in the Wingecarribee Shire.

21. Development consent conditions for seniors housing

The land IS NOT affected by any condition of development consent granted after 11 October 2007 that relates to restrictions on occupation of seniors housing (as required by clause 88(2) of *State Environmental Planning Policy (Housing) 2021*).

22. Site compatibility certificates and development consent conditions for affordable rental housing

The land IS NOT affected by a current site compatibility certificate for affordable rental housing, of which Council is aware, in respect of proposed development on the land.

The land DOES NOT have any conditions of a development consent that are of a kind referred to in *State Environmental Planning Policy (Housing) 2021*, section 21(1) or 40(1).

The land DOES NOT have any conditions of a development consent that are of a kind referred to in *State Environmental Planning Policy (Housing) 2021*, clause 17(1) or 38(1).

Contaminated Land Management Act 1997

Note: The following matters are included as prescribed by section 290 of the Environmental Planning and Assessment Regulation 2021 to address specific requirements under section 59 (2) of the Contaminated Land Management Act 1997.

- (a) **that the land to which the certificate relates is significantly contaminated land within the meaning of that Act—if the land (or part of the land) is significantly contaminated land at the date when the certificate is issued,**

Council HAS NO record that the the land is significantly contaminated land at the date or the issue of this certificate.

- (b) **that the land to which the certificate relates is subject to a management order within the meaning of that Act—if it is subject to such an order at the date when the certificate is issued,**

Council HAS NO record that the land is subject to a management order within the meaning of that Act at the date of the issue of this certificate.

- (c) **that the land to which the certificate relates is the subject of an approved voluntary management proposal within the meaning of that Act—if it is the subject of such an approved proposal at the date when the certificate is issued,**

Council HAS NO record that the land is the subject of an approved voluntary management proposal within the meaning of that Act at the date of the issue of this certificate.

- (d) **that the land to which the certificate relates is subject to an ongoing maintenance order within the meaning of that Act—if it is subject to such an order at the date when the certificate is issued,**

Council HAS NO record that the land is the subject of an ongoing maintenance order within the meaning of that Act at the date of the issue of this certificate.

- (e) **that the land to which the certificate relates is the subject of a site audit statement within the meaning of that Act—if a copy of such a statement has been provided at any time to the local authority issuing the certificate.**

Council HAS NO record that the land is the subject of a site audit statement within the meaning of that Act at the date of the issue of this certificate.

Lot 4 DP 746930 ,
6 BULWER ROAD MOSS VALE NSW 2577

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For
Lisa Miscamble – General Manager



Our Ref: DD22/0763
Your Ref: 256056
Property No: 273100

Civic Centre, 68 Elizabeth St,
Moss Vale NSW 2577
PO Box 141, Moss Vale

02 4868 0888

mail@wsc.nsw.gov.au

ABN 49 546 344 354

03 December 2021

OWEN HODGE LAWYERS
LEVEL 2/12-14 ORMONDE PARADE
HURSTVILLE NSW 2220

Dear Sir/Madam

Re: Application for Sewer Reference Sheet and Drainage Diagram
Property: Lot 4 DP 746930 - 6 BULWER ROAD MOSS VALE NSW 2577

Reference is made to your application for a sewer reference sheet and drainage diagram for the abovementioned property.

Please see enclosed sewer reference sheet, however you are advised that Council does not have any records of the house drainage.

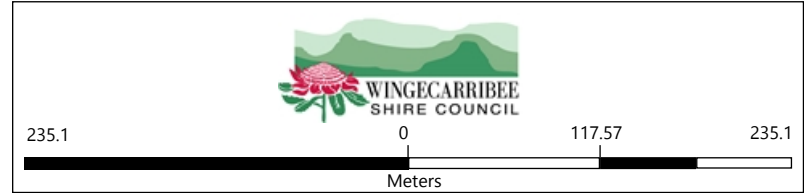
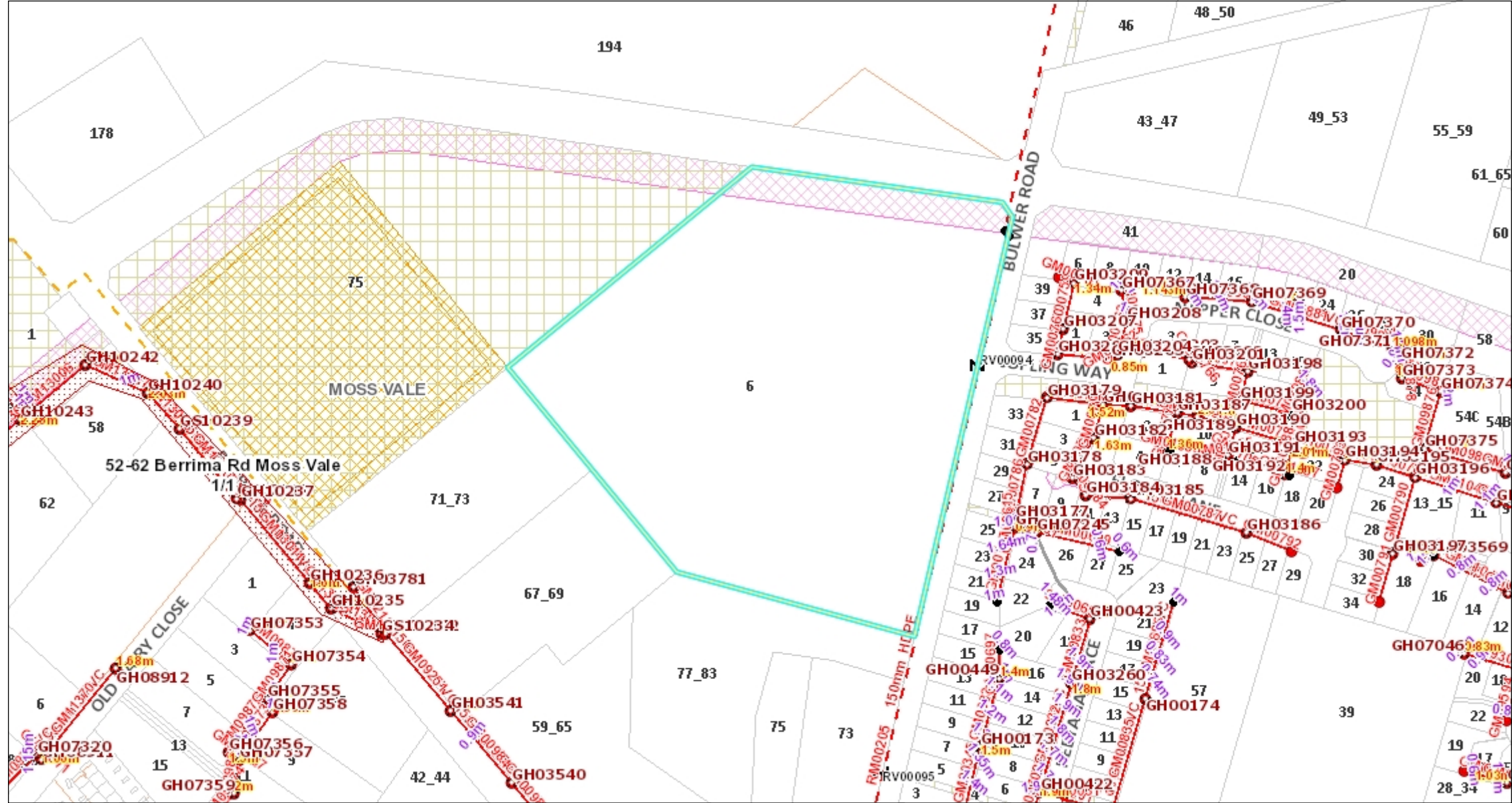
Please note that the fee paid for the drainage diagram is a search fee, therefore no refund is applicable.

Should you have any enquiries regarding this matter please contact Council's Customer Service staff on (02) 4868 0888 during office hours, Monday to Friday.

Yours faithfully

Planning, Development & Regulatory Services

Working with you



Wingecarribee Shire Council

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Envelope Id: DAB9A9A297E640DA8C1F5C53A32269E9

Status: Completed

Subject: Complete with DocuSign: Contract for Sale - 6 Bulwer Road, Moss Vale

Source Envelope:

Document Pages: 250

Signatures: 1

Envelope Originator:

Certificate Pages: 4

Initials: 0

Cody Newton

AutoNav: Enabled

49 Dumaresq Street

Enveloped Stamping: Enabled

Campbelltown, New South Wales 2560

Time Zone: (UTC+10:00) Canberra, Melbourne, Sydney

cnewton@marsdens.net.au

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Joseph Frederick Sassen

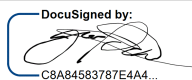
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Director

Captcha Property No 2 Pty Ltd

Security Level: Email, Account Authentication
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Accepted: 9/15/2023 3:30:59 PM

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In Person Signer Events**Signature****Timestamp****Editor Delivery Events****Status****Timestamp****Agent Delivery Events****Status****Timestamp****Intermediary Delivery Events****Status****Timestamp****Certified Delivery Events****Status****Timestamp****Carbon Copy Events****Status****Timestamp****Witness Events****Signature****Timestamp****Notary Events****Signature****Timestamp****Envelope Summary Events****Status****Timestamps**

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Browsers (for SENDERS):	Internet Explorer 6.0? or above
Browsers (for SIGNERS):	Internet Explorer 6.0?, Mozilla FireFox 1.0, NetScape 7.2 (or above)
Email:	Access to a valid email account
Screen Resolution:	800 x 600 minimum
Enabled Security Settings:	•Allow per session cookies •Users accessing the internet behind a Proxy Server must enable HTTP 1.1 settings via proxy connection

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